

POLICYHOLDER NOTICE

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THE INSURANCE COMPANY OF THE STATE OF PENNSYLVANIA
A CAPITAL STOCK COMPANY (HEREIN CALLED THE COMPANY)
A MEMBER COMPANY OF AIG
EXECUTIVE OFFICES: 1271 AVE OF THE AMERICAS FL 37
NEW YORK, NY 10020-1304

DECLARATIONS FOREIGN COMMERCIAL PACKAGE POLICY

Policy No.:

WS11014566

Policy Term:

From: January 28, 2026

To: January 28, 2027

12:01 A.M. AT THE "PRINCIPAL PLACE OF BUSINESS" ADDRESS SET FORTH BELOW

Date of Issue:

03/05/2026

Named Insured(s) and Address(es):

PARTNERS OF THE AMERICAS INC

First Named Insured's Address (principal place of business):

1424 K ST NW STE 700
WASHINGTON, DC 20005

Detailed descriptions and certain limitations applicable to this insurance policy (or parts of this insurance policy) can be found in the specific coverage parts, forms, endorsements, schedules of limits, and other materials attached to and made a part of this policy at the time of issuance or subsequent thereto. This policy, including the forms, endorsements, schedules of limits, and other materials shown on the Schedule of Documents attached hereto, is effective only for the Policy Term indicated above. Thus, for the avoidance of doubt, any forms, endorsements, schedules of limits, and other materials that form a part of any prior Policy Term correspond only to such prior Policy Term, and have no effect on this Policy Term.

All Premiums and amounts indicated in the forms, endorsements, schedules of limits, and other materials attached to and made a part of this policy at the time of issuance or subsequent thereto are in the currency of US\$ dollar.

Coverages

Foreign Commercial General Liability

Foreign Commercial Auto Liability and Physical Damage

Foreign Voluntary Compensation and Employers Liability

Foreign Business Travel Property

Total (US\$) Premium :

Premiums

\$1,000

\$310

\$11,936

\$500

\$13,746

Minimum Earned Premium: \$5,499 Deposit Premium: \$13,746

Broker:

AP BENEFIT ADVISORS, LLC.
15200 OMEGA DRIVE
ROCKVILLE, MD 20850

Broker Number:

0000106739

By signing below, the President and Secretary of the Insurer agree on behalf of the Insurer to all the terms of this Policy. This policy shall not be valid unless signed at the time of issuance by an Authorized Representative of the Insurer.

President

Secretary

Authorized Representative



SCHEDULE OF DOCUMENTS

Policy No.:

WS11014566

Policy Term:

From: January 28, 2026 To: January 28, 2027
12:01 A.M. AT THE FIRST NAMED INSURED'S ADDRESS

Date of Issue:

03/05/2026

Named Insured(s):

PARTNERS OF THE AMERICAS INC

<u>Form Number</u>	<u>Title</u>
WS4853 (05/25)	Access or Disclosure of Confidential or Personal Material and related exclusions (with Limited BI-PD Exceptions)
WS0092 (02/06)	Additional Insured - Where Required Under Contract
WR3605 (06/18)	Business Travel Property Schedule of Limits
WS3599 (06/19)	Common Conditions and Definitions
89338WR (06/18)	Coverage Territory-Amended (Excluded Locations)
84025WR (07/04)	Declarations
WS2324WR (02/13)	Emergency Security and Political Evacuation Endorsement
WS4857 (07/25)	Employee Business Trip Coverage Extension
83866WR (01/04)	Exclusion - Injury to Participants
79035WR (11/03)	Exclusion-Testing or Consulting Errors and Omissions
78690WR (12/03)	Exclusion-Transmissible Spongiform Encephalopathy (TSE)
WS0979WR (07/16)	Explanation of Assistance Services
WS0050 (12/05)	Fellow Employee Exclusion - Deleted
83241WR (03/04)	Foreign Auto Liability & Physical Damage Coverage Part
83992WR (11/04)	Foreign Auto Liability & Physical Damage Schedule of Limits
WR3612 (06/18)	Foreign BusinessTravel Property Coverage Part
WR3762 (06/19)	Foreign Commercial General Liability Coverage Part
WR3764 (06/19)	Foreign Commercial General Liability Schedule of Limits
WS84015WR (03/08)	Foreign Voluntary Compensation & EL Schedule of Limits
WS0971WR (03/08)	Foreign Voluntary Compensation and Employers Liability Coverage Part
WS2501WR (05/13)	Newly Acquired Entity Coverage Extended
WR 0426 (12/06)	Newly Acquired or Formed Organizations
91222 (09/16)	NYAIG Policyholder Notice
WS2237WR (09/12)	Stated Benefit Endorsement
WS0990WR (03/08)	Terrorism Employers Liability Exclusion Deleted
WS0098WR (02/06)	Terrorism Exclusion - Deleted
80995WR (06/19)	U.S. and Canada Jurisdiction Exclusion
WS0398WR (10/06)	US and Canada Jurisdiction Exclusion
WR4224 (06/22)	War Exclusion Revised - Designated Countries Only
WR4223 (06/22)	War Exclusion Revised - Designated Countries Only
WS0287WR (06/18)	What to do if a Loss Occurs
93640 AMS (06/18)	WorldRisk Assistance Card



FOREIGN COMMERCIAL GENERAL LIABILITY COVERAGE PART SCHEDULE OF LIMITS

Policy No.:

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If the words NOT COVERED are shown instead of a limit corresponding to any Coverage in the Schedules below, then no insurance is provided for that Coverage.

STANDARD COVERAGE

COVERAGE	LIMITS OF INSURANCE
Master Control Program Aggregate Limit <i>(applies to Coverages A, B and the medical expenses under Coverage C)</i>	\$4,000,000
General Aggregate Limit <i>(applies to Coverages A, B and the medical expenses under Coverage C)</i>	\$2,000,000

Coverage A: Bodily Injury and Property Damage Liability	
Products/Completed Operations Aggregate Limit	\$2,000,000
Each Occurrence Limit	\$1,000,000
Damage to Premises Rented to You Limit	\$50,000

Coverage B: Personal and Advertising Injury Liability	
Personal and Advertising Injury Limit	\$1,000,000 any one person or organization

Coverage C: Medical, Dismemberment and Fatality Payments©	
Medical Expense Limit	\$10,000 any one person
Dismemberment and Fatality Expense Aggregate Limit©	\$100,000
Dismemberment and Fatality Expense Limit©	\$25,000 any one person
Bereavement and Trauma Counseling Expenses and Repatriation of Mortal Remains Aggregate Limit©	\$25,000

Bereavement Counseling Expense Limit©	\$5,000 any one immediate family member
Trauma Counseling Expense Limit©	\$5,000 any one person or immediate family member
Repatriation of Mortal Remains Limit©	\$5,000 any one decedent

COROLLARY COVERAGE

The limits corresponding to the Coverages in the Schedule below are in addition to, and not part of, the Master Control Program Aggregate, the General Aggregate, and any other limit shown in the above Schedule for Standard Coverage.

COVERAGE	LIMITS OF INSURANCE
Coverage D: Employee Benefits Liability	
Employee Benefits Annual Aggregate	\$1,000,000
Each Wrongful Act or Series of Related Wrongful Acts Limit	\$1,000,000
No Deductible	
No Retro Date	

Coverage E: CrisisResponse®	
Crisis Response Aggregate Limit©	\$300,000
Crisis Response Costs Limit©	\$250,000 any one crisis event
Crisis Management Loss Limit©	\$50,000 any one crisis event

Coverage F: Employee Criminal Defense©	
Employee Criminal Defense Annual Aggregate©	\$25,000
Employee Criminal Defense Limit©	\$10,000 any one employee

Coverage G: Archaeological Liability©	
Archaeological Liability Aggregate Limit©	\$100,000
Archaeological Liability Limit©	\$25,000 any one discovery

Coverage H: Wildfire Liability©	
Wildfire Suppression Costs Aggregate Limit©	\$250,000
Wildfire Suppression Costs Limit©	\$100,000 any one occurrence

Coverage I: Reputational Defense©	
Reputational Defense Aggregate Limit©	\$100,000
Reputational Defense Limit©	\$25,000 any one reputation attack

Coverages A, B, D, G, H: Tax Liability©	
Tax Liability Aggregate Limit©	\$50,000
Tax Liability Payment Limit©	\$50,000 any one occurrence , offense, wrongful act , or discovery



**FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL
DAMAGE COVERAGE PART
SCHEDULE OF LIMITS**

Policy No.:

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FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE

Covered Autos for (if checked):

	<u>Liability</u>	<u>Comprehensive</u>	<u>Collision</u>	<u>Specified Cause(s) of Loss</u>
Owned Private Passenger Autos	☐	☐	☐	☐
Owned Autos-other than Private Passenger	☐	☐	☐	☐
Hired Autos	☒	☒	☒	☐
Nonowned Autos	☒	N/A	N/A	N/A

Limits of Liability - Auto Liability:

Coverage A: Liability Coverage Limit
_____ \$1,000,000 any one Accident

Coverage B: Medical Expense Coverage
_____ \$25,000 each Accident Limit

Physical Damage Limits - Coverage C

	<u>Limit Each Auto</u>	<u>Deductible Each Auto</u>	<u>Each Loss Limit</u>
Hired Autos	<u>\$25,000</u>	<u>\$1,000</u>	<u>\$25,000</u>



**FOREIGN VOLUNTARY COMPENSATION
AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART
SCHEDULE OF COVERAGES AND LIMITS**

Policy No.:

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FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY

Business Operation(s) conducted at or from the following location(s):
Anywhere in the world within the coverage territory

Schedule of Coverages by Classification of Employees:

<u>Classification of Employee</u>	<u>Part One - Employee Injury Benefits Insurance</u> (BENEFIT or NOT COVERED*)	<u>Part One - Supplemental Repatriation Expenses</u> (BENEFIT or NOT COVERED*)	<u>Part Two - Employers Liability Coverage</u> (BENEFIT or NOT COVERED*)
U.S. Employee:	State of Hire	Covered	Covered
U.S. Employee Traveler:	State of Hire	Covered	Covered
Canadian Employee:	Not Covered	Not Covered	Not Covered
Canadian Employee Traveler:	Not Covered	Not Covered	Not Covered
Third Country National:	Not Covered	Not Covered	Not Covered
Local Hire or National:	Country of Hire	Covered	Covered

* If no benefit or coverage selection is indicated above for a Classification of Employee, "NOT COVERED" shall apply.

Limit Of Liability for Part One - Supplemental Repatriation Expense: \$1,000,000 Per Person



**FOREIGN VOLUNTARY COMPENSATION
AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART
SCHEDULE OF COVERAGES AND LIMITS**

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PARTNERS OF THE AMERICAS INC

FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY

Limits of Liability for Part Two – Employers Liability:

Injury by Accident: \$1,000,000 Each Accident
Injury by Disease: \$1,000,000 Coverage Part Limit
Injury by Disease: \$1,000,000 Each Employee



**FOREIGN BUSINESS TRAVEL PROPERTY
COVERAGE PART
SCHEDULE OF LIMITS**

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PARTNERS OF THE AMERICAS INC

FOREIGN BUSINESS TRAVEL PROPERTY

A. Mortgageholders, Loss Payees, and Additional Insureds: Per Certificates on file with us or any endorsement attached to and forming a part of this Policy.

B. LIMITS OF INSURANCE

\$50,000 Personal Property at Any One Location, Any One Occurrence

\$50,000 Inland Transit, Any One Occurrence

C. DEDUCTIBLES

\$2,500 Any One Occurrence



WHAT TO DO IF A LOSS OCCURS GENERAL INFORMATION

If **you** suffer a loss which **you** believe is covered by one of the Coverage Parts of this Policy, call **your** Agent or Broker immediately. If he or she is not available, contact **us** at:

E-mail: WorldRiskClaimsReporting@aig.com

OR

Complete a claim form on-line at **our** internet site at the following address:

<https://www.aig.com/wsclaimsreporting>

Contact information for Assistance Services and Kidnap and Ransom has been attached separately to this Policy, if applicable.

In the event a loss occurs or is imminent, the Insured's primary duty is to act in every aspect as if no insurance existed and to employ reasonable means to minimize the loss and prevent further damage.

PLEASE REFER TO EACH COVERAGE PART FOR SPECIFIC INSTRUCTIONS IN THE EVENT OF A LOSS SPECIFIC TO THAT COVERAGE PART.

**COMMON CONDITIONS AND DEFINITIONS
FOREIGN COMMERCIAL PACKAGE POLICY**

PLEASE READ THE ENTIRE FORM CAREFULLY

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered. Words and phrases that appear in bold type have special meaning and are defined in Section III – Common Definitions or in the respective Coverage Parts in which they are used.

SECTION I – WHO IS INSURED

Throughout this policy, the words **you** and **your** refer to the first Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. The words **we**, **us** and **our** refer to the Company identified in the Declarations as issuing this policy.

BROAD NAMED INSURED

The term “Named Insured” includes:

- (1) Any other person or organization named as a Named Insured on the Declarations Page; and
- (2) Any subsidiary, associated, affiliated, allied, or acquired company or corporation (including subsidiaries thereof), partnership, Joint Venture, or Limited Liability Company, of which any insured named as the Named Insured on the Declarations Page:
 - (a) Has more than 50% ownership interest in, or
 - (b) Exercises management or financial control over, or
 - (c) Is required to provide insurance for,

except as otherwise provided or restricted in this policy’s individual Coverage Parts.

SECTION II – COMMON CONDITIONS

The following Conditions apply to all Coverage Parts. Additional Conditions may apply separately – please read each Coverage Part carefully for such Conditions.

1. Authorization

By acceptance of this policy, the first Named Insured shown in the Declarations agrees to act on behalf of any of its subsidiaries and any other insureds (if any) with respect to the giving and receiving of any return Premiums that may become due under this policy, the acceptance of endorsements or other materials relating to this policy, and the giving or receiving of any other notice provided for in this policy; and such subsidiaries and other insureds (if any) agree that such first Named Insured will act on their behalf.

2. Bankruptcy

Bankruptcy or insolvency of the insured or the insured's estate will not relieve **us** of **our** obligations.

3. Broad Knowledge of **Occurrence**, Offense, **Accident**, **Injury** or Loss

With respect to loss reporting requirements included in the Conditions sections of the coverage part(s) of this policy, knowledge of an **occurrence**, offense, **accident**, **injury**, or loss by **your** agent, **your** servant, or **your employee** will not in itself constitute knowledge to **you** unless **your** executive officer, **your** partner (if **you** are a partnership), **your** director of risk management or the person to whom **you** have assigned responsibility for insurance matters, at the address shown on the Declarations page, has received such notice.

4. Cancellation and Method of Calculating Premium Refund

- a. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to **us** advance written notice of cancellation.
- b. If the first Named Insured cancels either this policy, or any of its Coverage Part(s) in conjunction with which **we** have issued **local underlying policies**, then the following applies:
 - (1) **We** will cancel all **local underlying policies** concurrently with the cancellation of this policy or pertinent Coverage Part(s), where permitted by the law of the applicable country or jurisdiction.
 - (2) If **we** are prevented by law, or otherwise, from cancelling a **local underlying policy(ies)** concurrently with the cancellation of this policy or pertinent Coverage Part(s), then **we** will cancel such **local underlying policy(ies)** effective the earliest date permitted by the law of the applicable country or jurisdiction.
- c. **We** may cancel this policy by mailing or delivering to the first Named Insured shown in the Declarations written notice of cancellation at least:
 - (1) Ten (10) days before the effective date of cancellation if **we** cancel for non-payment of Premium; or
 - (2) Ninety (90) days before the effective date of cancellation if **we** cancel for any other reason.
- d. **We** will mail or deliver **our** notice of cancellation to such first Named Insured's "principal place of business address" set forth in the Declarations, and shall endeavor to mail or deliver a copy (for convenience purposes only) to the "mailing address" set forth in the Declarations. For the avoidance of doubt, if either such address has been updated by endorsement, then such respective updated address shall govern. The parties agree that the principal place of business' law shall govern the requirements of any such notice of cancellation.
- e. Notice of cancellation will state the effective date of cancellation. The policy term will end on that date.
- f. If this policy is canceled, **we** will send the first Named Insured shown in the Declarations any Premium refund due. If **we** cancel, the refund will be pro rata. If the first Named Insured shown in the Declarations cancels, the refund will also be pro rata, subject to any minimum earned premium, which is the minimum amount of Premium that **we** will keep and be entitled to in any event. The cancellation will be effective even if **we** have not made or offered a refund.
- g. If notice of cancellation is mailed, proof of mailing will be sufficient proof of notice.

5. Cancellation and Notice to Third Parties

In the event that **we** cancel this policy for any reason other than non-payment of premium, and

- a. The cancellation effective date is prior to this policy's expiration date; and
- b. **You** are under an existing, written contractual obligation to notify a person or organization when this policy is canceled (hereinafter, the "Certificate Holder(s)") and have provided to **us** the email address of the Certificate Holder's contact; and
- c. **We** are provided the email address of the Certificate Holder's contact after **you** received notice of cancellation of this policy but prior to this policy's cancellation effective date; then

We will provide advice of cancellation (the "Advice") via email to each such Certificate Holder(s) within thirty (30) days after **you** provide such information to **us**.

Proof of **our** mailing the Advice, using the information **you** have provided, will serve as proof that **we** have fully satisfied **our** obligations.

This Condition does not affect, in any way, coverage provided under this policy or the cancellation of this policy or the effective date thereof, nor shall it invest any rights in any entity not insured under this policy.

6. Changes

This policy contains all of the agreements between **you** and **us** concerning the coverage provided by this policy. Notices to **us** or any of **our** representatives, or knowledge possessed by any such representative or by any person, shall not effect a waiver or a change in any part of this policy or stop **us** from asserting any right under the terms of this policy, nor shall the terms of this policy be amended or waived, unless agreed to by written endorsement issued by **us** and made a part of this policy.

7. Collectibility

Bankruptcy or insolvency of an insurer that issued a **local underlying policy** will not relieve **us** of **our** obligations under this policy.

8. Concealment, Misrepresentation or Fraud

This policy is void in any case of fraud by **you** or any other insured at any time as it relates to this policy. It is also void if **you** or any other insured, at any time, intentionally conceal or misrepresent a material fact concerning this policy.

9. Concurrency

In event of discrepancy between the policy term shown on the Declarations of this policy and any **local underlying policy** and the absence of other applicable insurance:

- a. The policy term of this policy will be extended up to one (1) minute prior to the effective date and time; and
- b. The policy term will be extended up to twenty three (23) hours and fifty nine (59) minutes after the expiration date and time;

to conform to the effective date and time of any **local underlying policy**. However, if there is other valid and collectible insurance not issued by **us** that is issued to **you** during the time period shown in items a. and b. above, then this provision does not apply.

10. Currency and Foreign Exchange Rates

- a. Unless otherwise specified, all amounts of money specified in this policy, including limits of liability, sublimits of liability, deductibles and premiums, are in the currency of the United States of America. Settlement under this policy shall be in United States currency. Alternatively, if requested and allowable by applicable law, settlement will be in the currency of the country or jurisdiction where the loss occurred.
- b. In the event of a loss adjustment under the Foreign Commercial Property Coverage Part or the Foreign Business Travel Property Coverage Part involving currency conversion, the exchange rate will be determined as follows:
 - (1) With respect to the calculation of deductibles, sublimits of liability or limits of liability, the exchange selling rate published in the *Wall Street Journal* on the date of loss.
 - (2) With respect to loss or damage to **covered property**:
 - (i) The cost to repair or replace **covered property** will be converted at the date(s) the cost of repair or replacement is paid based on the exchange selling rate published in the *Wall Street Journal*.
 - (ii) If such **covered property** is not replaced or repaired, the conversion will be based on the exchange selling rate published in the *Wall Street Journal* as of the date of loss.
 - (3) With respect to all time element losses, the conversion will be based on the average of the exchange selling rates published in the *Wall Street Journal* during each thirty (30) consecutive day period that the actual loss is sustained.

If the *Wall Street Journal* was not published on the stipulated date, the exchange selling rate will be as published on the next day on which the *Wall Street Journal* is published.

11. Electronic Delivery

Where permissible by law, or when agreed to by **you** or **your** representative, any mailing or other delivery may be made by **us** via electronic delivery, instead of by any other method.

12. Examination of **Your** Books and Records

We may examine and audit **your** books and records as they relate to this policy at any time during the policy term and up to three (3) years afterward.

13. Inspections and Surveys

- a. **We** have the right to:
 - (1) Make inspections and surveys at any time;
 - (2) Give **you** reports on the conditions **we** find; and
 - (3) Recommend changes.

- b. **We** are not obligated to make any inspections, surveys, reports or recommendations, and any that **we** do make relate only to insurability and the Premiums to be charged. **We** do not make safety inspections. **We** do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public.

We do not warrant that conditions:

- (1) Are safe or healthful; or
- (2) Comply with laws, regulations, codes or standards.

14. Legal Action Against **Us**

- a. No person or organization has a right under this policy:
 - (1) To join **us** as a party or otherwise bring **us** into a **suit** asking for damages from an insured; or
 - (2) To sue **us** on this policy unless all of its terms have been fully complied with.

- b. A person or organization may sue **us** to recover on an agreed settlement or on a final judgment against an insured; but **we** will not be liable for damages that are not payable under the terms of this policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by **us**, the insured and the claimant or the claimant's legal representative.

- c. The following applies to the insurance provided under the Foreign Commercial Property Coverage Part and Foreign Business Travel Property Coverage Part, if this policy includes either or both such coverage parts:

No **suit**, action or proceeding for the recovery of any claim under this Policy shall be sustainable in any court of law or equity unless **you** shall have fully complied with all the requirements of the Coverage Part and the same be commenced within twenty four (24) months immediately after the date of the loss, provided however, that if under the laws of the applicable jurisdiction such time limitation is unenforceable, then the period within which such action or proceeding must be commenced shall be the shortest period of time permitted by the laws of such jurisdiction.

- d. The following applies to the insurance provided under the Kidnap and Ransom Coverage Part, if this policy includes such coverage part:

No **suit**, action or proceeding for recovery of any **loss** (as defined under this coverage part) will be sustainable in any court of law, equity or other tribunal unless the same be commenced within twelve (12) months after a Statement of Loss has been filed with **us** by **you**.

15. Liberalization

If **we** revise or replace a Coverage Part that is part of this policy during the policy term to provide more coverage without an additional premium charge, that Coverage Part will automatically provide the additional coverage as of the day that **we** adopt the revision.

16. Maintenance of Underlying Insurance

For as long as this policy is in effect all **non-program policies** must:

- a. Continuously provide no less coverage than in effect at inception of this policy; and
- b. Afford no lower Limits of Insurance than in effect at inception of this policy, except for reduction or exhaustion of primary limits solely due to payment of losses.

This policy shall apply as though such policies had been maintained in force at the terms and conditions at inception of this policy, even if such policies were never obtained, were cancelled or terminated, or have expired.

17. Multi-Year Policy

If the policy term shown on the Declarations is longer than one year, all limits of insurance of all coverage parts, including any annual aggregate limits, will apply as though a new policy were issued on each annual anniversary that this policy is in force and apply separately to each consecutive twelve (12) month term. For policies written with or extended to have policy terms greater than twelve (12) months but less than twenty four (24) months the limits will apply once to the full policy term with the period beyond the first twelve (12) month term to be deemed part of the last preceding twelve (12) month term for purposes of determining the limits.

18. Natural Disaster – Continuity of Coverage[®]

- a. If the first Named Insured or **your** broker shown in the Declarations is unable to give **us** written instruction to renew this policy because a natural disaster identified below occurs within fifteen (15) days prior to expiration and materially prevents or impedes communications:

- (1) Internally within **your** organization; or
- (2) Between the first Named Insured and **us**; or
- (3) Internally within the organization of **your** broker; or
- (4) Between **your** broker, the first Named Insured and/or **us**; then

we will extend this policy for a period of seventy two (72) hours from the policy term expiration date.

Should **we** extend this policy in accordance with the preceding:

- (5) A pro-rata additional premium shall be paid to **us** in consideration of such extension; and
- (6) Such extension of the policy term will not increase or reinstate any aggregate limits of liability shown on any of this policy's individual Coverage Parts' Schedule of Limits.

By mutual agreement, both **we** and the first Named Insured may retroactively void such seventy two (72) hours extension of the policy term.

- b. The natural disasters to which this Condition applies are restricted to the following perils:

- (1) Earth Movement

Any natural:

- (i) Earthquake, including any earth sinking, rising or shifting related to such event;
- (ii) Landslide, including any earth sinking, rising or shifting related to such event;
- (iii) Mine subsidence, meaning subsidence of a man-made mine, whether or not mining activity has ceased;
- (iv) Earth sinking, rising or shifting, including soil conditions which cause settling, cracking or other disarrangement of foundations or other parts of real or personal property. Soil conditions include, but are not limited to, contraction, expansion, freezing, thawing, erosion, improperly compacted soil and the action of water under the ground surface;
- (v) Shocks, tremors, mudslide, mud flow, rock falls, volcanic eruption, sinkhole collapse, or subsidence; or
- (vi) Tsunami arising out of any of the above.

(2) Flood

Natural flood waters, surface water, waves, tide or tidal water, overflow or rupture of a dam, levy, dike or other surface containment structure, storm surge, the rising, overflowing or breaking of boundaries of natural or man-made bodies of water, or the spray from any of the foregoing, all whether driven by wind or not. A tsunami shall not be considered a flood.

(3) Named Storm

A storm that, at any time, has been declared by the United States National Weather Service or another meteorological authority within the applicable jurisdiction to be a Hurricane, Typhoon, Tropical Cyclone, Tropical Storm, or Tropical Depression, including any status or designation change with respect to such storm.

- c. This Condition does not apply if, prior to the onset of the natural disaster, the first Named Insured has mailed or delivered a written notice of cancellation or if **we** have mailed or delivered a written notice of cancellation or non-renewal.
- d. This Condition is subject to any applicable rule, law, statute or regulation.

19. Premium Audit

- a. If this policy is subject to audit as designated on the Declarations, then the premium shown on the Declarations is a Deposit Premium due at inception. **We** will compute the final premium due when **we** determine **your** actual exposures.
- b. **We** will compute, at the close of each audit period, the earned Premium for that period. Audit premiums are due and payable within thirty (30) days of notification. If the sum of the advance and audit premiums paid for the policy term is greater than the earned Premium, **we** will return the excess to the first Named Insured shown in the Declarations.
- c. The first Named Insured shown in the Declarations must keep records of the information **we** need for Premium computation, and shall send **us** copies at such times as **we** may request.

20. Premium Obligations

- a. **We** will compute all Premiums for this policy in accordance with **our** rules and rates.
- b. The first Named Insured shown in the Declarations:
 - (1) Is responsible for the payment of all Premiums, which shall be due within thirty (30) days of the effective date of this policy or fifteen (15) days from the date of the premium invoice, whichever is later; and
 - (2) Will be the payee for any return Premiums.

21. Representations

By accepting this policy, **you** agree:

- a. The statements in the Declarations, Schedules and any applications are accurate and complete;
- b. Those statements are based upon representations **you** made to **us**; and
- c. **We** have issued this policy in reliance upon the truth and accuracy of such statements and such representations.

22. Titles and Headings

The titles and headings contained in this policy, including those contained in each individual Coverage Part or in any endorsement or Schedule now or hereafter attached to this policy, are inserted solely for convenience of reference and shall not be deemed to limit or affect the interpretation of this policy or any such Coverage Part, endorsement or Schedule.

23. Trade Sanctions

Notwithstanding any definition of **coverage territory** or anything else to the contrary no matter where located within this policy, **we** shall not be deemed to provide cover and **we** shall not be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose **us**, **our** parent company or **our** ultimate controlling entity to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, Canada, or the United States of America.

24. Transfer of **Your** Rights and Duties Under This Policy

Your rights and duties under this policy may not be transferred without **our** written consent except in the case of death of an individual Named Insured.

If **you** die, **your** rights and duties will be transferred to **your** legal representative, but only while acting within the scope of duties as **your** legal representative. Until **your** legal representative is appointed, anyone having proper temporary custody of **your** property will have **your** rights and duties, but only with respect to that property.

25. Transfer to **Us** of Rights of Recovery Against Others

If any insured has rights to recover all or part of any payment **we** have made under this policy, those rights are transferred to **us**. At **our** request, such insured will bring **suit** or transfer those rights to **us** and help **us** enforce them. The insured must do nothing after loss to impair any recovery rights.

26. Unintentional Errors and Omissions

The unintentional failure by **you** or any insured to provide accurate and complete representations as of the inception date of this policy will not prejudice the coverages afforded by this policy, provided you inform **us** of such failure promptly after **your** discovery thereof and pay, within the time limits set forth in **our** additional premium invoice, any additional premium **we** determine is applicable (if any).

27. Waiver of Subrogation

- a. **You** may waive **your** rights against another party if required in written contract executed prior to any **accident**, loss, claim, **suit**, **wrongful act**, **injury**, offense or **occurrence**.
- b. In the event of any payment under this policy, **we** shall be subrogated to the extent of such payment to all **your** rights of recovery therefor. **You** shall execute all papers required and do anything else that may be necessary, advisable or desired, at **our** expense, to secure such right. **We** will act in concert with any other interests concerned, i.e., **you** and any other insurer participating in the payment of any loss as primary or excess insurers, in the exercise of such rights of recovery.
- c. If this policy includes a Kidnap and Ransom Coverage Part, then in the event of any payment under such Coverage Part:
 - (1) **We** will be subrogated to an **insured person's** rights of recovery. In such case the **insured person(s)** will execute all documents required and will do everything necessary to secure and preserve such right including the execution of such documents necessary to enable **us** to bring **suit** in **your** name; and
 - (2) All recoveries, less the actual cost to **us** of recovery, will be distributed firstly to **us** for all amounts paid by **us** under the Kidnap and Ransom Coverage Part and any remainder will be paid to **you**.
- d. If any amount is recovered as a result of a subrogation proceeding, the net amount recovered after deducting the costs of recovery shall be divided between the interests concerned in the proportion of their respective interests. If there is no recovery, the expense of any subrogation proceeding shall be borne proportionately by the interests involved in the proceeding.

28. When **We** Do Not Renew – Ninety (90) Days Advance Notice

If **we** decide not to renew this policy or any Coverage Part of this policy, **we** will mail or deliver to the first Named Insured shown in the Declarations written notice of non-renewal. Such notice will be mailed or delivered at least ninety (90) days before the end of the policy term set forth in Declarations.

If such notice is mailed, proof of mailing will be sufficient proof of notice.

We will mail or deliver **our** notice of non-renewal to the first Named Insured's "principal place of business address" set forth in the Declarations, and shall endeavor to mail or deliver a copy (for convenience purposes only) to the "mailing address" set forth in the Declarations. For the avoidance of doubt, if either such address has been updated by endorsement, then such respective updated address shall govern.

If **we** non-renew either this policy, or any Coverage Part in conjunction with which **we** have issued **local underlying policies**, then **we** will also non-renew all **local underlying policies** concurrently with the non-renewal of this policy or pertinent Coverage Part where permitted by, and in accordance with, the law of the applicable country or jurisdiction.

SECTION III – COMMON DEFINITIONS

The following definitions apply throughout this policy. Additional definitions may apply separately to each respective Coverage Part, Schedule and/or endorsement. Please carefully read each Coverage Part, Schedule and endorsement, now or hereafter attached to this policy, for such definitions.

1. **Coverage Territory** means anywhere in the world, including international waters or airspace, but excluding the United States of America (including its territories and possessions), Puerto Rico and Canada.
2. **Leased worker** means a person leased to **you** by a labor-leasing firm under an agreement between **you** and the labor-leasing firm, to perform duties related to the conduct of **your** business. **Leased worker** does not include a **temporary worker**.
3. **Local underlying policy** means a primary policy effective before, on, or after the inception of this policy which has been issued at **our** direction or coordinated by **us** specifically in conjunction with this policy by an insurer licensed to provide such insurance in that same country or jurisdiction.
4. **Non-program policy** means a primary policy effective before, on, or after inception of this policy issued in a country or jurisdiction within the **coverage territory** by an insurer licensed within that same country or jurisdiction, but which has not been issued at **our** direction or coordinated by **us** specifically in conjunction with this policy. A **non-program policy** includes a primary policy issued by a member company of American International Group that has not been issued at **our** direction or coordinated by **us** specifically in conjunction with this policy.
5. **Suit** means a civil proceeding in which damages to which this insurance applies are alleged. **Suit** includes:
 - a. An arbitration proceeding in which such damages are claimed and to which the insured must submit, or does submit with **our** consent; and
 - b. Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with **our** consent.
6. **Temporary worker** means a person who is furnished to **you** to substitute for a permanent **employee** on leave or to meet seasonal or short-term workload conditions.
7. **Terrorism** means the use or threatened use of force or violence against persons or property, or commission of an act dangerous to human life or property, or commission of an act that interferes with or disrupts an electronic or communication system, undertaken by any person or group, whether or not acting on behalf of or in connection with any organization, government, power, authority or military force, when the effect is to intimidate or coerce a government, the civilian population or any segment thereof, or to disrupt any segment of the economy.

Terrorism shall also include an act which is verified or recognized by the United States Government as an act of **terrorism**.
8. **War** means war, whether declared or not, or any act or condition incident to war. **War** includes civil war, insurrection, act of foreign enemy, civil commotion, factional civil commotion, military or usurped power, rebellion or revolution.

FOREIGN COMMERCIAL GENERAL LIABILITY COVERAGE PART

Various provisions in this Foreign Commercial General Liability Coverage Part restrict coverage. Please read it, the Common Conditions and Definitions, the Foreign Commercial General Liability Coverage Part Schedule of Limits, endorsements and other attachments carefully to determine rights, duties and what is and is not covered.

Words and phrases that appear in boldface type have special meaning. Refer to: (1) "SECTION III – COMMON DEFINITIONS" of the Common Conditions and Definitions, and (2) Section VI – Definitions of this Foreign Commercial General Liability Coverage Part. The word "insured" means any person or organization qualifying as such under Section II – Who Is An Insured.

SECTION I – COVERAGES

COVERAGE A - BODILY INJURY AND PROPERTY DAMAGE LIABILITY

1. Insuring Agreement

a. Payment

- (1) **We** will pay those sums that the insured becomes legally obligated to pay as damages because of **bodily injury** or **property damage** to which this insurance applies.
- (2) The amount **we** will pay for damages is limited as described in Section III – Limits Of Insurance.

b. Defense, Investigation or Settlement

- (1) **We** will have the right and duty to defend the insured against any **suit** seeking damages for **bodily injury** or **property damage**. **We** have the right to settle any such **suit**. However, **we** will have no duty to defend the insured against any **suit** seeking damages for **bodily injury** or **property damage** to which this insurance does not apply.
- (2) **We** may, at **our** discretion, investigate any **occurrence** and settle any claim or **suit** that may result. However:
- (3) **Our** right and duty to defend end when **we** have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A or B, or medical, dismemberment and fatality expenses under Coverage C.

c. Reimbursement

(1) Defense Costs

If a **suit** is brought in a jurisdiction or country where **we** are prevented by law, or otherwise, from defending the insured, the insured will initiate a defense of the **suit**. **We** will reimburse the insured, under Supplementary Payments, for any reasonable and necessary expenses incurred for the defense of a **suit** seeking damages to which this insurance applies, that **we** would have paid had **we** been able to exercise **our** right and duty to defend.

(2) Payment of Damages

If the insured becomes legally obligated to pay sums because of damages to which this insurance applies in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such sums on the insured's behalf, **we** will reimburse the insured for such sums.

(3) Reimbursement of the First Named Insured

If **we** are prevented by law, or otherwise, from reimbursing the insured for defense costs or paying damages on the insured's behalf, then **we** will reimburse the first Named Insured shown in the Declarations.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments - Coverages A, B and D.

d. How This Insurance Applies

This insurance applies to **bodily injury** and **property damage** only if:

- (1) The **bodily injury** or **property damage** is caused by an **occurrence** that takes place in the **coverage territory**;
- (2) The **bodily injury** or **property damage** occurs during the policy term;
- (3) Prior to the policy term, no insured listed under Paragraph I. of Section II – Who Is An Insured and no **employee** authorized by **you** to give or receive notice of an **occurrence** or claim, knew that the **bodily injury** or **property damage** had occurred, in whole or in part. If such a listed insured or authorized **employee** knew, prior to the policy term, that the **bodily injury** or **property damage** occurred, then any continuation, change or resumption of such **bodily injury** or **property damage** during or after the policy term will be deemed to have been known prior to the policy term; and
- (4) Any claim or **suit** is made or brought in the **coverage territory** or the United States of America, its territories and possessions, Puerto Rico or Canada.
- (5) **Bodily injury** or **property damage** which occurs during the policy term and was not, prior to the policy term, known to have occurred by any insured listed under Paragraph I. of Section II – Who Is An Insured or any **employee** authorized by **you** to give or receive notice of an **occurrence** or claim, includes any continuation, change or resumption of that **bodily injury** or **property damage** after the end of the policy term.
- (6) **Bodily injury** or **property damage** will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph I. of Section II – Who Is An Insured or any **employee** authorized by **you** to give or receive notice of an **occurrence** or claim:
 - (a) Reports all, or any part, of the **bodily injury** or **property damage** to **us** or any other insurer;
 - (b) Receives a written or verbal demand or claim for damages because of the **bodily injury** or **property damage**; or
 - (c) Becomes aware by any other means that **bodily injury** or **property damage** has occurred or has begun to occur.
- (7) Damages because of **bodily injury** include damages claimed by any person or organization for care, loss of services or death resulting at any time from the **bodily injury**.

2. Exclusions

This insurance does not apply to:

a. Expected or Intended Injury

Bodily injury or **property damage** expected or intended from the standpoint of the insured. This exclusion does not apply to **bodily injury** or **property damage** resulting from the use of reasonable force to protect persons or property.

b. Contractual Liability

Bodily injury or **property damage** for which the insured is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

- (1) That the insured would have in the absence of the contract or agreement; or
- (2) Assumed in a contract or agreement that is an **insured contract**, provided the **bodily injury** or **property damage** occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an **insured contract**, reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of **bodily injury** or **property damage**, provided:

- (a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same **insured contract**; and
 - (b) Such attorney fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.
- c. Liquor Liability with Exception for Permissive Imbibition

Bodily injury or property damage for which any insured may be held liable by reason of:

 - (1) Causing or contributing to the intoxication of any person;
 - (2) The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or
 - (3) Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

This exclusion applies only if **you** are in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages. For the purposes of this exclusion, permitting a person to bring alcoholic beverages on **your** premises, for consumption on **your** premises, whether or not a fee is charged or a license is required for such activity, is not by itself considered the business of selling, serving or furnishing alcoholic beverages.
- d. Workers' Compensation and Similar Laws

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law or any similar law.
- e. Employer's Liability

Bodily injury to:

 - (1) An **employee** of the insured arising out of and in the course of:
 - (a) Employment by the insured; or
 - (b) Performing duties related to the conduct of the insured's business; or
 - (2) The spouse, child, parent, brother or sister of that **employee** as a consequence of Paragraph (1) above.

This exclusion applies:

 - (1) Whether the insured may be liable as an employer or in any other capacity; and
 - (2) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an **insured contract**.
- f. Pollution (with 7 Day Discovery/30 Day Reporting Time Element Exception)
 - (1) **Bodily injury or property damage** arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of **pollutants**:
 - (a) At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. However, this sub-paragraph does not apply to:
 - (i) **Bodily injury** if sustained within a building and caused by smoke, fumes, vapor or soot produced by or originating from equipment that is used to heat, cool or dehumidify the building or equipment that is used to heat water for personal use, by the building's occupants or their guests;

- (ii) **Bodily injury or property damage** for which **you** may be held liable, if **you** are a contractor and the owner or lessee of such premises, site or location has been added to **your** policy as an additional insured with respect to **your** ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or
- (iii) **Bodily injury or property damage** arising out of heat, smoke or fumes from a **hostile fire**; or
- (iv) **Bodily injury or property damage** arising out of the actual discharge, dispersal, seepage, migration, release or escape of **pollutants**, provided that:
 - a. Such pollution commences during the term of this policy;
 - b. An insured discovers the commencement of such pollution no later than seven (7) calendar days after it commences; and
 - c. The insured reports the commencement of such pollution to **us** in writing no later than thirty (30) days following its discovery by any **insured**.
- (b) At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;
- (c) Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:
 - (i) Any insured; or
 - (ii) Any person or organization for whom **you** may be legally responsible; or
- (d) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the **pollutants** are brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this sub-paragraph does not apply to:
 - (i) **Bodily injury or property damage** arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of **mobile equipment** or its parts, if such fuels, lubricants or other operating fluids escape from a vehicle part designed to hold, store or receive them. This exception does not apply if the **bodily injury or property damage** arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;
 - (ii) **Bodily injury or property damage** sustained within a building and caused by the release of gases, fumes or vapors from materials brought into that building in connection with operations being performed by **you** or on **your** behalf by a contractor or subcontractor; or
 - (iii) **Bodily injury or property damage** arising out of heat, smoke or fumes from a **hostile fire**; or
 - (iv) The **bodily injury or property damage** arises out of the actual discharge, dispersal, seepage, migration, release or escape of pollutants provided that:
 - a. Such pollution commences during the term of this policy;
 - b. An insured discovers the commencement of such pollution no later than seven (7) calendar days after it commences; and

c. The insured reports the commencement of such pollution to **us** in writing no later than thirty (30) days following its discovery by any insured.

(e) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, **pollutants**.

(2) Any loss, cost or expense arising out of any:

(a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, **pollutants**; or

(b) Claim or **suit** by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, **pollutants**.

However, this paragraph does not apply to liability for damages because of **property damage** that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or **suit** by or on behalf of a governmental authority.

In the event the definition of **coverage territory** is amended to include Puerto Rico, any territories or possessions of the United States of America, or Canada, then insurance provided under this paragraph f. shall not apply to **occurrences** that take place in Puerto Rico, any territories or possessions of the United States of America, or Canada.

g. Aircraft, **Auto** or Watercraft (with Helicopter, Chartered Aircraft, Rowing Shell, and **Unmanned Aircraft** Exceptions)

Bodily injury or **property damage** arising out of the ownership, maintenance, use or entrustment to others of any aircraft, including **unmanned aircraft**, **auto** or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and **loading or unloading**.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the **occurrence** which caused the **bodily injury** or **property damage** involved the ownership, maintenance, use or entrustment to others of any aircraft, including **unmanned aircraft**, **auto** or watercraft that is owned or operated by or rented or loaned to any insured.

Exceptions

This exclusion does not apply to:

(1) Shore Based Watercraft

A watercraft while ashore on premises **you** own or rent;

(2) Non-Owned Watercraft Less Than 100 Feet in Length

A watercraft **you** do not own that is:

(a) Less than 100 feet long; and

(b) Not being used to carry persons or property for a charge;

(3) Rowing Shells

A watercraft that is a rowing shell or scull regardless of length;

(4) Valet Service

Parking an **auto** on, or on the ways next to, premises **you** own or rent, provided the **auto** is not owned by or rented or loaned to **you** or the insured;

(5) Contractual Liability

Liability assumed under any **insured contract** for the ownership, maintenance or use of aircraft or watercraft; or

(6) Machinery Attached to **Mobile Equipment**

Bodily injury or property damage arising out of:

- (a) The operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of **mobile equipment** if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the jurisdiction where it is licensed or principally garaged; or
- (b) The operation of any of the machinery or equipment listed in Paragraph f.(2) or f.(3) of the definition of **mobile equipment**.

(7) Manned Helicopters[®]

Bodily injury or property damage included within **the products-completed operations hazard** arising out of the use of manned helicopters to install electrical power lines.

(8) Chartered Aircraft

An aircraft **you** do not own that is chartered by **you** and:

- (a) Is operated by a professional crew; and
- (b) The pilot in command holds a currently effective certificate issued by the duly constituted authority of the United States of America, Canada, or the applicable jurisdiction within the **coverage territory** designating that person as a commercial or airline transport pilot.

However, this exception does not apply if the insured has any other valid and collectible insurance available, whether primary, excess, contingent or on any other basis, except for insurance purchased specifically by **you** to be excess of this policy.

(9) **Unmanned Aircraft** (Sometimes Referred to as "Drones")

Bodily injury or property damage arising out of the operation of **unmanned aircraft** on premises **you** own, lease, rent or control.

h. **Mobile Equipment**

Bodily injury or property damage arising out of:

- (1) The transportation of **mobile equipment** by an **auto** owned or operated by or rented or loaned to any insured; or
- (2) The use of **mobile equipment** in, or while in practice for, or while being prepared for, any prearranged racing, speed, demolition, or stunting activity.

i. **War**

Bodily injury or property damage, however caused, arising, directly or indirectly, out of:

- (1) **War**, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

j. Damage To Property (with Elevator and Sidetrack Agreement Exceptions)

Property damage to:

- (1) Property **you** own, rent, or occupy, including any costs or expenses incurred by **you**, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;
- (2) Premises **you** sell, give away or abandon, if the **property damage** arises out of any part of those premises;
- (3) Property loaned to **you**;
- (4) Personal property in the care, custody or control of the insured;
- (5) That particular part of real property on which **you** or any contractors or subcontractors working directly or indirectly on **your** behalf are performing operations, if the **property damage** arises out of those operations; or
- (6) That particular part of any property that must be restored, repaired or replaced because **your work** was incorrectly performed on it.

Paragraphs (1), (3) and (4) of this exclusion do not apply to **property damage** (other than damage by fire) to premises, including the contents of such premises, rented to **you** for a period of seven or fewer consecutive days. A separate limit of insurance applies to Damage to Premises Rented to **You** as described in Section III – Limits Of Insurance.

Paragraph (2) of this exclusion does not apply if the premises are **your work** and were never occupied, rented or held for rental by **you**.

Paragraphs (3), (4), and (6) of this exclusion do not apply to liability that results from the use of elevators.

Paragraphs (3), (4), (5) and (6) of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph (6) of this exclusion does not apply to **property damage** included in the **products-completed operations hazard**.

k. Damage To **Your Product** (with Elevator Exception)

Property damage to your product arising out of it or any part of it.

This exclusion does not apply to **property damage** that results from the use of elevators.

l. Damage To **Your Work**

Property damage to your work arising out of it or any part of it and included in the **products-completed operations hazard**.

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on **your** behalf by a subcontractor.

m. Damage to **Impaired Property** Or Property Not Physically Injured

Property damage to impaired property or property that has not been physically injured, arising out of:

- (1) A defect, deficiency, inadequacy or dangerous condition in **your product** or **your work**;
or
- (2) A delay or failure by **you** or anyone acting on **your** behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to **your product** or **your work** after it has been put to its intended use.

n. Recall Of Products, Work Or **Impaired Property**

Damages claimed for any loss, cost or expense incurred by **you** or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

- (1) **Your product;**
- (2) **Your work;** or
- (3) **impaired property;**

if such product, work or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

o. Employment-Related Practices

(1) **Bodily Injury** to:

(a) A person arising out of any:

- (i) Refusal to employ that person;
- (ii) Termination of that person's employment; or
- (iii) Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation or discrimination directed at that person; or

(b) The spouse, child, parent, brother or sister of that person as a consequence of **bodily injury** to that person at whom any of the employment-related practices described in sub-paragraphs (i), (ii) or (iii) above is directed.

(2) This exclusion applies:

- (a) Whether the injury-causing event described in sub-paragraphs (i), (ii) or (iii) above occurs before employment, during employment or after employment of that person;
- (b) Whether the insured may be liable as an employer or in any other capacity; and
- (c) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

p. **Personal and Advertising Injury**

Bodily injury arising out of **personal and advertising injury**.

q. Access or Disclosure of Confidential Or Personal Information (with Exceptions for **Bodily Injury** and Physical Injury to Tangible Property)

- (1) Any access to or disclosure of any person's or organization's confidential or personal information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of non-public information; or
- (2) The loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**.

This exclusion does not apply to (a) **bodily injury**; or (b) physical injury to tangible property, including all resulting loss of use of that property, arising out of that which is described in sub-paragraphs (1) and (2) above. For avoidance of doubt, **electronic data** is not tangible property.

This insurance does not apply to notification costs, credit monitoring expenses, forensic expenses, public relations expenses, **crisis management loss** expenses or any other similar loss, cost or expense incurred by **you** or others arising out of that which is described in sub-paragraphs (1) and (2) above.

r. Recording and Distribution Of Material In Violation Of Law

Bodily injury or property damage arising directly or indirectly out of any action or omission that violates or is alleged to violate:

- (1) The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law; or
- (2) The CAN-SPAM Act of 2003, including any amendment of or addition to such law; or
- (3) The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Transaction Act (FACTA); or
- (4) Any statute, ordinance or regulation, other than the TCPA or CAN-SPAM Act of 2003 or FCRA, that prohibits or limits the sending, transmitting, communicating or distribution of material or information;

or any similar law in the applicable country or jurisdiction.

s. Asbestos

Property damage or bodily injury, arising out of the manufacture of, mining of, use of, sale of, installation of, removal of, distribution of, or exposure to asbestos products, asbestos fibers or asbestos dust, or to any obligation of the insured to indemnify any party because of **property damage or bodily injury** arising out of the manufacture of, mining of, use of, sale of, installation of, removal of, distribution of, or exposure to asbestos products, asbestos fibers or asbestos dust.

t. Silica

Bodily injury or property damage or any other loss, cost or expense arising out of the presence, ingestion, inhalation or absorption of or exposure to silica products, silica fibers, silica dust or silica in any form, or to any obligation of the insured to indemnify any party because of **bodily injury or property damage** arising out of the presence, ingestion, inhalation or absorption of or exposure to silica products, silica fibers, silica dust or silica in any form.

u. Nuclear

(1) **Bodily injury or property damage:**

- (a) With respect to which an insured under the policy is also insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any similar nuclear energy liability insurance underwriting association or organization within the applicable country or jurisdiction, or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or
- (b) Resulting from the **hazardous properties of nuclear material** and with respect to which (a) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or similar law in the applicable country or jurisdiction or any law amendatory thereof, or (b) the insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any other country or jurisdiction, or any agency thereof, under any agreement entered into by the United States of America, or any other country or jurisdiction, or any agency thereof, with any person or organization.

(2) **Bodily injury or property damage** resulting from **hazardous properties of nuclear material**, if:

- (a) The **nuclear material** (a) is at any **nuclear facility** owned by, or operated by or on behalf of, an insured or (b) has been discharged or dispersed therefrom;
- (b) The **nuclear material** is contained in **spent fuel or waste** at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an insured; or

- (c) The **bodily injury** or **property damage** arises out of the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any **nuclear facility**.

v. Lead

Bodily injury or **property damage** arising out of the presence, ingestion, inhalation, or absorption of or exposure to lead in any form or products containing lead.

Extended Exception for Damage to Premises Rented to **You** – Multi-Perils

Exclusions c. through n., with the exception of exclusion i., **War.**, do not apply to **property damage** to premises while rented to **you** or temporarily occupied by **you** with permission of the owner. A separate limit of insurance applies to this coverage as described in Section III – Limits Of Insurance.

COVERAGE B - PERSONAL AND ADVERTISING INJURY LIABILITY

1. Insuring Agreement

a. Payment

- (1) **We** will pay those sums that the insured becomes legally obligated to pay as damages because of **personal and advertising injury** to which this insurance applies.
- (2) The amount **we** will pay for damages is limited as described in Section III – Limits Of Insurance.

b. Defense, Investigation or Settlement

- (1) **We** will have the right and duty to defend the insured against any **suit** seeking damages for **personal and advertising injury**. However, **we** will have no duty to defend the insured against any **suit** seeking damages for **personal and advertising injury** to which this insurance does not apply.
- (2) **We** may, at **our** discretion, investigate any offense and settle any claim or **suit** that may result.
- (3) **Our** right and duty to defend end when **we** have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A or B or medical, dismemberment and fatality expenses under Coverage C.

c. Reimbursement

(1) Defense Costs

If a **suit** is brought in a jurisdiction or country where **we** are prevented by law, or otherwise, from defending the insured, the insured will initiate a defense of the **suit**. **We** will reimburse the insured, under Supplementary Payments, for any reasonable and necessary expenses incurred for the defense of a **suit** seeking damages to which this insurance applies, that **we** would have paid had **we** been able to exercise our right and duty to defend.

(2) Payment of Damages

If the insured becomes legally obligated to pay sums because of damages to which this insurance applies in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such sums on the insured's behalf, **we** will reimburse the insured for such sums.

(3) Reimbursement of the First Named Insured

If **we** are prevented by law, or otherwise, from reimbursing the insured for defense costs or paying damages on the insured's behalf, then **we** will reimburse the first Named Insured shown in the Declarations.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments - Coverages A, B and D.

d. How This Insurance Applies

This insurance applies to **personal and advertising injury** only if:

- (1) The **personal and advertising injury** is caused by an offense arising out of **your** business; and
- (2) The offense was committed in the **coverage territory** during the policy term.
- (3) Any claim or **suit** must be made or brought in the **coverage territory** or the United States of America, its territories and possessions, Puerto Rico or Canada.

2. Exclusions

This insurance does not apply to:

a. Knowing Violation Of Rights Of Another

Personal and advertising injury caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict **personal and advertising injury**.

b. Material Published With Knowledge Of Falsity

Personal and advertising injury arising out of oral or written publication of material, if done by or at the direction of the insured with knowledge of its falsity.

c. Material Published Prior To Policy Term

Personal and advertising injury arising out of oral or written publication of material whose first publication took place before the beginning of the policy term.

d. Criminal Acts

Personal and advertising injury arising out of a criminal act committed by or at the direction of the insured.

e. Contractual Liability

Personal and advertising injury for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

f. Breach Of Contract

Personal and advertising injury arising out of a breach of contract, except an implied contract to use another's advertising idea in **your advertisement**.

g. Quality Or Performance Of Goods – Failure To Conform To Statements

Personal and advertising injury arising out of the failure of goods, products or services to conform with any statement of quality or performance made in **your advertisement**.

h. Wrong Description Of Prices

Personal and advertising injury arising out of the wrong description of the price of goods, products or services stated in **your advertisement**.

i. Infringement Of Copyright, Patent, Trademark or Trade Secret

Personal and advertising injury arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. Under this exclusion, such other intellectual property rights do not include the use of another's advertising idea in **your advertisement**.

However, this exclusion does not apply to infringement, in **your advertisement**, of copyright, trade dress or slogan.

- j. Insureds In Media And Internet Type Businesses (with Exceptions for False Arrest, Wrongful Detention, and Malicious Prosecution)

Personal and advertising injury committed by an insured whose business is:

- (1) Advertising, broadcasting, publishing or telecasting;
- (2) Designing or determining content of websites for others; or
- (3) An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs 41.a., b. and c. of **personal and advertising injury** under the Definitions Section.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for **you** or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

- k. Electronic Chatrooms Or Bulletin Boards

Personal and advertising injury arising out of an electronic chatroom or bulletin board the insured hosts, owns, or over which the insured exercises control.

- l. Unauthorized Use Of Another's Name Or Product

Personal and advertising injury arising out of the unauthorized use of another's name or product in **your** e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

- m. Pollution

Personal and advertising injury arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of **pollutants** at any time.

- n. Pollution-Related

Any loss, cost or expense arising out of any:

- (1) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of **pollutants**; or
- (2) Claim or **suit** by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, **pollutants**.

- o. Asbestos

Personal and advertising injury arising out of the manufacture of, mining of, use of, sale of, installation of, removal of, distribution of, or exposure to asbestos products, asbestos fibers or asbestos dust, or to any obligation of the insured to indemnify any party because of **personal and advertising injury** arising out of the manufacture of, mining of, use of, sale of, installation of, removal of, distribution of, or exposure to asbestos products, asbestos fibers or asbestos dust.

- p. **War**

Personal and advertising injury, however caused, arising, directly or indirectly, out of:

- (1) **War**, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

q. Employment-Related Practices

(1) **Personal and advertising injury** to:

(a) A person arising out of any:

- (i) Refusal to employ that person;
- (ii) Termination of that person's employment; or
- (iii) Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation or discrimination directed at that person; or

(b) The spouse, child, parent, brother or sister of that person as a consequence of **bodily injury** to that person at whom any of the employment-related practices described in sub-paragraphs (i), (ii) or (iii) above is directed.

(2) This exclusion applies:

- (a) Whether the injury-causing event described in sub-paragraphs (i), (ii) or (iii) above occurs before employment, during employment or after employment of that person;
- (b) Whether the insured may be liable as an employer or in any other capacity; and
- (c) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

r. Silica

Personal and advertising injury or any other loss, cost or expense arising out of the presence, ingestion, inhalation or absorption of or exposure to silica products, silica fibers, silica dust or silica in any form, or to any obligation of the insured to indemnify any party because of **personal and advertising injury** arising out of the presence, ingestion, inhalation or absorption of or exposure to silica products, silica fibers, silica dust or silica in any form.

s. Access or Disclosure of Confidential Or Personal Information

Personal and advertising injury arising out of any access to or disclosure of any person's or organization's confidential or personal information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of non-public information.

This exclusion does not apply to **bodily injury**.

This insurance does not apply to notification costs, credit monitoring expenses, forensic expenses, public relations expenses, **crisis management loss** expenses or any other similar loss, cost or expense incurred by **you** or others arising out of that which is described above.

t. Recording and Distribution Of Material In Violation Of Law

Personal and advertising injury arising directly or indirectly out of any action or omission that violates or is alleged to violate:

- (1) The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law; or
- (2) The CAN-SPAM Act of 2003, including any amendment of or addition to such law; or
- (3) The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Transaction Act (FACTA); or
- (4) Any statute, ordinance or regulation, other than the TCPA or CAN-SPAM Act of 2003 or FCRA, that prohibits or limits the sending, transmitting, communicating or distribution of material or information;

or any similar law in the applicable country or jurisdiction.

u. Lead

Personal and advertising injury arising out of the presence, ingestion, inhalation, or absorption of or exposure to lead in any form or products containing lead.

COVERAGE C - MEDICAL, DISMEMBERMENT AND FATALITY PAYMENTS®

1. Insuring Agreement

a. Medical Expenses

(1) Payment

- (a) **We** will pay medical expenses for **bodily injury** caused by an accident to which this insurance applies:
 - (i) On premises **you** own, lease, rent or control;
 - (ii) On ways next to premises **you** own, lease, rent or control; or
 - (iii) Because of **your** operations on premises **you** do not own, lease, rent or control.
- (b) The amount **we** will pay is limited as described in Section III – Limits Of Insurance. **Our** obligations end when **we** have used up the applicable limit of insurance.
- (c) **We** will make these payments regardless of fault. **We** will pay reasonable expenses for:
 - (i) First aid administered at the time of an accident;
 - (ii) Necessary medical, surgical, x-ray and dental services, including prosthetic devices; and
 - (iii) Necessary ambulance, hospital, professional nursing and funeral services.

(2) Reimbursement

If medical expenses for **bodily injury** caused by an accident to which this insurance applies are incurred in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such medical expenses on the insured's behalf, **we** will reimburse the insured for such medical expenses. If **we** are prevented by law, or otherwise, from reimbursing the insured, then **we** will reimburse the first Named Insured shown in the Declarations.

(3) How This Insurance Applies

This insurance applies to medical expenses for **bodily injury** caused by an accident only if:

- (a) The accident takes place in the **coverage territory** and during the policy term;
- (b) The expenses are incurred and reported to **us** within one year of the date of the accident; and
- (c) The injured person submits to examination, at **our** expense, by physicians of **our** choice as often as **we** reasonably require.

b. Dismemberment and Fatality Expenses

(1) Payment

- (a) **We** will pay the specified percentage of the dismemberment and fatality expense limit shown on the Foreign Commercial General Liability Schedule of Limits arising from **bodily injury** caused by an accident to which this insurance applies that results in one of the losses shown in the Table of Losses below. **We** will pay such expenses provided that the **bodily injury** is caused by an accident that takes place:
 - (i) On premises **you** own, lease, rent or control;
 - (ii) On ways next to premises **you** own, lease, rent or control; or
 - (iii) Because of **your** operations on premises **you** do not own, lease, rent or control.

- (b) The amount **we** will pay is limited as described in Section III – Limits Of Insurance. **Our** obligations end when **we** have used up the applicable limit of insurance.
- (c) **We** will make these payments regardless of fault.

(2) Reimbursement

If dismemberment and fatality expenses arising from **bodily injury** caused by an accident to which this insurance applies are incurred in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such dismemberment and fatality expenses on the insured's behalf, **we** will reimburse the insured for such dismemberment and fatality expenses. If **we** are prevented by law, or otherwise, from reimbursing the insured, then **we** will reimburse the first Named Insured shown in the Declarations.

(3) How This Insurance Applies

This insurance applies to dismemberment and fatality arising from **bodily injury** caused by an accident only if:

- (a) The accident takes place in the **coverage territory** and during the policy term;
- (b) The dismemberment or fatality of the injured or deceased person is reported to **us** within one year of the date of the accident; and
- (c) The injured person submits to examination, at **our** expense, by physicians of **our** choice as often as **we** reasonably require. In event of death of the injured person, the decedent's lawful heirs or estate shall allow, at **our** expense and where permitted by law, physicians of **our** choice to examine the decedent's mortal remains.
- (d) If an injured person sustains more than one loss shown in the Table of Losses below as a result of the same accident, only the largest amount will be paid.

(4) Table of Losses

<u>Loss of:</u>	<u>% of Dismemberment and Fatality Expense</u>
Life	100%
Both Hands or Both Feet	100%
Either Hand or Foot and Sight of One Eye	100%
One Hand and One Foot	100%
Sight of Both Eyes	100%
Speech and Hearing in Both Ears	100%
Either Hand or Foot	50%
Hearing in Both Ears	50%
Sight of One Eye	50%
Speech	50%
Thumb & Index Finger of Same Hand	25%
Hearing in One Ear	25%

Loss with regard to:

- (a) Hand or Foot means actual severance through or above the wrist or ankle joints;
- (b) Eye means entire and irrecoverable loss of sight;
- (c) Speech or Hearing means entire and irrecoverable loss of speech or hearing of both ears; and
- (d) Thumb and Index Finger means actual severance through or above the joint that meets the hand at the palm.

c. Bereavement or Trauma Counseling Expenses and Repatriation of Mortal Remains

(1) Payment

- (a) **We** will pay reasonable expenses up to the limits shown on the Foreign Commercial General Liability Schedule of Limits for:
 - (i) Bereavement counseling sessions for **immediate family member(s)** of a deceased person;
 - (ii) Trauma counseling sessions for a person who has sustained dismemberment, and/or such person's **immediate family members**; and
 - (iii) Repatriation of a deceased person's mortal remains,
arising from **bodily injury** caused by an accident to which this insurance applies that results in one of the dismemberment and fatality losses shown in the Table of Losses above.
- (b) **We** will pay such expenses provided that the **bodily injury** is caused by an accident that takes place:
 - (i) On premises **you** own, lease, rent or control;
 - (ii) On ways next to premises **you** own, lease, rent or control; or
 - (iii) Because of **your** operations on premises **you** do not own, lease, rent or control.
- (c) The amount **we** will pay is limited as described in Section III – Limits Of Insurance. **Our** obligations end when **we** have used up the applicable limit of insurance.
- (d) **We** will make these payments regardless of fault.
- (e) With respect to bereavement and trauma counseling, **we** will make payments for all reasonable expenses on condition that:
 - (i) Such counseling sessions are provided under the care, supervision or order of a physician or therapist licensed in the country or jurisdiction where such counseling is sought;
 - (ii) Such expenses do not exceed the usual level of charges for similar counseling sessions in the locality where the expense is incurred;
 - (iii) Such expenses do not include charges that would not have been made if no insurance existed.
- (f) With respect to repatriation of mortal remains, **we** will pay reasonable expenses for:
 - (i) Embalming;
 - (ii) Cremation;
 - (iii) Coffins; and
 - (iv) Transportation of a deceased person's mortal remains to the decedent's country of domicile or citizenship.

(2) Reimbursement

If the expenses for bereavement or trauma counseling sessions and/or repatriation of a deceased person's mortal remains arising from **bodily injury** caused by an accident to which this insurance applies are incurred in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such expenses on the insured's behalf, **we** will reimburse the insured for such expenses. If **we** are prevented by law, or otherwise, from reimbursing the insured, then **we** will reimburse the first Named Insured shown in the Declarations.

(3) How This Insurance Applies

This insurance applies to expenses for bereavement or trauma counseling sessions and/or repatriation of a deceased person's mortal remains arising from **bodily injury** caused by an accident only if:

- (a) The accident takes place in the **coverage territory** and during the policy term; and
- (b) The expenses are reported to **us** within one year of the date of the accident.

2. Exclusions

We will not pay medical expenses, dismemberment and fatality expenses, or expenses for bereavement or trauma counseling or repatriation of mortal remains arising from **bodily injury**:

a. Any Insured

To any insured, except **volunteer workers**.

b. Hired Person

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

c. Injury On Normally Occupied Premises

To a person injured on that part of premises **you** own or rent that the person normally occupies.

d. Workers Compensation And Similar Laws

To a person, whether or not an **employee** of any insured, if benefits for the **bodily injury** are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

e. Athletics Activities

To a person injured while practicing, instructing or participating in any physical exercises or games, sports, or athletic contests.

f. Products-Completed Operations Hazard

Included within the **products-completed operations hazard**.

g. Coverage A Exclusions

Excluded under Coverage A.

We will not pay dismemberment expenses, fatality expenses, bereavement or trauma counseling expenses, or repatriation of mortal remains expenses arising from **bodily injury** resulting from, or as a natural or probable consequence of:

h. Suicide

Suicide or any attempt at suicide, or intentionally self-inflicted injury or any attempt at self-inflicted injury.

i. Sickness and Disease

Sickness or disease, or mental incapacity or bodily infirmity whether the dismemberment or fatality results directly or indirectly from any of these.

We will not pay dismemberment expenses, fatality expenses, bereavement or trauma counseling expenses, or repatriation of mortal remains expenses arising from **bodily injury** caused by an accident that takes place:

j. Hotels and Motels

On the premises of hotels or motels that **you** own or operate.

COVERAGE D - EMPLOYEE BENEFITS LIABILITY

1. Insuring Agreement

a. Payment

- (1) **We** will pay those sums that the insured becomes legally obligated to pay as damages because of any **wrongful act** of the insured, or any other person for whose acts the insured is legally liable, in the **administration** of the insured's **employee benefit program**.
- (2) The amount **we** will pay for damages is limited as described in Section III – Limits Of Insurance.

b. Defense, Investigation or Settlement

- (1) **We** will have the right and duty to defend the insured against any **suit** seeking damages on account of such negligent act, error or omission, even if any of the allegations of the **suit** are groundless, false or fraudulent. However, **we** will have no duty to defend the insured against any **suit** seeking damages to which this insurance does not apply.
- (2) **We** may, at **our** discretion, investigate any report of a **wrongful act** and settle any claim or **suit** that may result.
- (3) **Our** right and duty to defend end when **we** have used up the applicable limit of insurance in the payment of judgments or settlements.

c. Reimbursement

(1) Defense Costs

If a **suit** is brought in a jurisdiction or country where **we** are prevented by law, or otherwise, from defending the insured, the insured will initiate a defense of the **suit**. **We** will reimburse the insured, under Supplementary Payments, for any reasonable and necessary expenses incurred for the defense of a **suit** seeking damages to which this insurance applies, that **we** would have paid had **we** been able to exercise our right and duty to defend.

(2) Payment of Damages

If the insured becomes legally obligated to pay sums because of damages to which this insurance applies in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such sums on the insured's behalf, **we** will reimburse the insured for such sums.

(3) Reimbursement of the First Named Insured

If **we** are prevented by law, or otherwise, from reimbursing the insured for defense costs or claims settlement, then **we** will reimburse the first Named Insured shown in the Declarations.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments - Coverages A, B and D.

d. How This Insurance Applies – Claims Made Coverage

(1) This insurance applies only if:

- (a) A claim for damages to which this insurance applies is first made against the insured during the policy term; and
- (b) The **wrongful act** is committed within the **coverage territory**.
- (c) Any claim or **suit** must be made or brought in the **coverage territory** or the United States of America, its territories and possessions, Puerto Rico or Canada.

(2) A claim seeking damages will be deemed to have been made at the earlier of the following times:

- (a) When notice of such claim is received and recorded by any insured or by **us**, whichever comes first; or
- (b) When **we** make settlement in accordance with paragraph 1.a. above.
- (c) All claims for damages made by an **employee** because of any **wrongful act**, or a series of related **wrongful acts**, including damages claimed by such **employee's** dependents and beneficiaries, will be deemed to have been made at the time the first of those claims is made against any insured.

2. Exclusions

This insurance does not apply to:

a. Dishonest, Fraudulent, Criminal Or Malicious Act

Damages arising out of any intentional, dishonest, fraudulent, criminal or malicious act, libel, slander, discrimination or humiliation;

b. **Bodily Injury, Property Damage, or Personal And Advertising Injury.**

c. Failure to Perform a Contract

Damages arising out of failure of performance of contract by any insurer.

d. Insufficiency of Funds

Damages arising out of an insufficiency of funds to meet any obligations under any plan included in the **employee benefit program**.

e. Inadequacy Of Performance Of Investment/Advice Given With Respect To Participation

Any claim based upon:

- (1) Failure of any investment to perform;
- (2) Errors in providing information on past performance of investment vehicles; or
- (3) Advice given to any person with respect to that person's decision to participate or not to participate in any plan included in the **employee benefit program**.

f. Workers' Compensation And Similar Laws

Any claim arising out of **your** failure to comply with the mandatory provisions of any workers' compensation, unemployment compensation insurance, social security or disability benefits law or any similar law.

g. ERISA

Damages for which any insured is liable because of liability imposed on a fiduciary by the Employee Retirement Income Security Act of 1974, as now or hereafter amended, or by any similar local laws in the applicable country or jurisdiction.

h. Available Benefits

Any claim for benefits to the extent that such benefits are available, with reasonable effort and cooperation of the insured, from the applicable funds accrued or other collectible insurance.

i. Taxes, Fines or Penalties

Taxes, fines or penalties, including those imposed under the Internal Revenue Code or any similar local law in the applicable country or jurisdiction.

j. Employment-Related Practices

Damages arising out of wrongful termination of employment, discrimination, or other employment-related practices.

k. Failure to Maintain Insurance or Bond

Any claim made against the insured based on or attributable to any failure or omission on the part of the insured to effect and maintain insurance or bonding for plan property or assets.

COVERAGE E – CRISISRESPONSE®

1. Insuring Agreement

a. Payment

(1) **We**, at **our** sole discretion, will either reimburse **you** or pay on **your** behalf, reasonable and necessary **crisis response costs** and/or **crisis management loss** arising out of:

(a) **Bodily injury** or **property damage** covered under Coverage A of this Foreign Commercial General Liability Coverage Part, or

(b) **Imminent injury**, but only with respect to a **crisis event** to which this insurance applies.

(2) The amount **we** will pay is limited as described in Section III – Limits Of Insurance. **Our** obligations end when **we** have used up the applicable limit of insurance.

b. Reimbursement

If the **crisis response costs** and/or **crisis management loss** arising out of **bodily injury**, **property damage**, or **imminent injury** to which insurance under Coverage A applies are incurred in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such **crisis response costs** and/or **crisis management loss** on the insured's behalf, **we** will reimburse the insured for such **crisis response costs** and/or **crisis management loss**. If **we** are prevented by law, or otherwise, from reimbursing the insured, then **we** will reimburse the first Named Insured shown in the Declarations.

c. How This Insurance Applies

We will reimburse **you**, or pay on **your** behalf, for **crisis response costs** and/or **crisis management loss** arising out of a **crisis event** only if:

(1) The **bodily injury** or **property damage** or **imminent injury** commences during the policy term; and

(2) The **bodily injury** or **property damage** or **imminent injury** takes place in the **coverage territory**; and

(3) Such **crisis response costs** and/or **crisis management loss** did not arise out of any fact, circumstance, pre-existing condition, situation, **bodily injury**, **property damage**, or **imminent injury** that **you**, prior to the policy term, knew, or reasonably should have known, could lead to, cause or result in such **crisis response costs** and/or **crisis management loss**; and

(4) Such **crisis response costs** and/or **crisis management loss** are incurred within sixty (60) days after the commencement date of the **crisis event**. The end of the policy term will not cut short this sixty (60) day period.

d. Anti-Stacking

If **crisis response costs** and/or **crisis management loss** provided under this Foreign Commercial General Liability Coverage Part are also provided by any other insurance issued to **you** by **us** or any of **our** affiliated companies (whether or not such costs or loss are referred to using these same terms), the maximum limit of insurance under all insurance available shall not exceed the highest applicable limit of insurance available under any one policy. This provision does not apply to any other insurance issued by **us** or any of **our** affiliated companies specifically intended to apply as excess insurance over this policy.

2. Exclusions

We will not pay **crisis response costs** and/or **crisis management loss** resulting from:

a. Coverage A Exclusions

Bodily injury or **property damage** excluded under Coverage A.

b. Loss or Disclosure of Confidential Or Personal Information

The actual or alleged loss or disclosure of any personal information of any individual, including, but not limited to, personal health information or financial information.

c. Infectious Diseases

Infectious diseases or illnesses caused by any bacterium, virus, or fungus. However, this exclusion does not include food-borne illnesses or defective vaccines.

d. Past Liabilities

Bodily injury or **property damage** or **imminent injury** that occurred prior to the date **you** acquired or merged with any other entity.

COVERAGE F – EMPLOYEE CRIMINAL DEFENSE®

1. Insuring Agreement

a. Payment

(1) **We** will reimburse **you** for all reasonable and necessary legal expenses and defense costs **you** incur when **your employee** or **volunteer worker** has been arrested on criminal charges arising from actual or alleged **bodily injury, property damage** or **personal and advertising injury** to which the insurance under Coverages A and B applies, but only for acts within the scope of their employment by **you** or while performing duties related to the conduct of **your** business.

(2) **We** will only make such payments after the court of law has acquitted the **employee** or **volunteer worker** or dismissed with prejudice all charges against the **employee** or **volunteer worker**.

(3) The amount **we** will pay is limited as described in Section III – Limits Of Insurance. **Our** obligations end when **we** have used up the applicable limit of insurance.

b. Reimbursement of the First Named Insured

If the **employee's** or **volunteer worker's** legal expenses and defense costs arising from actual **bodily injury, property damage** or **personal and advertising injury** to which insurance under Coverages A and B applies are incurred in a jurisdiction or country where **we** are prevented by law, or otherwise, from reimbursing an insured, then **we** will reimburse the first Named Insured shown in the Declarations.

c. How This Insurance Applies

This insurance applies to legal expenses and defense costs **you** incur to defend the **employee** or **volunteer worker** from prosecution only if the arrest of the **employee** or **volunteer worker**:

- (1) Takes place in the **coverage territory** and during the policy term; and
- (2) Results from actual or alleged **bodily injury** or **property damage** that is caused by an **occurrence** that takes place in the **coverage territory** and during the policy term; and/or
- (3) Results from actual or alleged **personal and advertising injury** that is caused by an offense arising out of **your** business that takes place in the **coverage territory** and during the policy term; and
- (4) All charges against the **employee** or **volunteer worker** are dismissed with prejudice, or the **employee** or **volunteer worker** is acquitted, within one year of the date of arrest; and
- (5) The legal expenses and defense costs incurred are reported to **us** within thirty (30) days of the date of the dismissal of charges against, or the acquittal of, the **employee** or **volunteer worker**; and
- (6) The arrest of the **employee** or **volunteer worker** did not arise out of any fact, circumstance, pre-existing condition, situation, **bodily injury**, **property damage**, **personal and advertising injury** that **you**, or any authorized **employee** or **volunteer worker**, prior to the policy term, knew, or reasonably should have known, could lead to, cause or result in such criminal prosecution against the **employee** or **volunteer worker**.

We will reimburse these expenses even if no **suit** seeking damages for the **bodily injury**, **property damage**, or **personal and advertising injury** which resulted in the arrest of the **employee** or **volunteer worker** is brought against the insured.

2. Exclusions

We will make no reimbursement for legal expense and defense costs arising from:

a. Any Insured

Bodily Injury to any insured, except co-employees and **volunteer workers**.

b. Arresting Officer

Bodily injury sustained by a law enforcement officer during the apprehension and arrest of the **employee** or **volunteer worker**.

c. Coverage A Exclusions

Bodily injury or **Property damage** excluded under Coverage A.

d. Fellow Inmate

Bodily injury the **employee** or **volunteer worker** causes to other inmates or co-detainees in the prison or temporary detention facilities during the **employee's** or **volunteer worker's** incarceration.

e. Intentional Acts

The **employee's** or **volunteer worker's** willful negligence or misconduct, or any act which is beyond the scope of the **employee's** or **volunteer worker's** authority or duties related to **your** business, and/or knowingly violates any law in the applicable country or jurisdiction.

f. Healthcare Services

The **employee's** or **volunteer worker's** providing or failing to provide professional health care services, except for **bodily injury** arising out of **incidental medical malpractice injury** by any physician, dentist, nurse or other medical practitioner employed by **you** in cases of **Good Samaritan Acts**.

g. Security Guard Services

Actual or alleged **bodily injury** or **property damage** committed by an **employee** rendering security guard services, including watchman, patrol and checkpoint services and related consulting services.

COVERAGE G – ARCHAEOLOGICAL LIABILITY®

1. Insuring Agreement

a. Payment

(1) **We** will pay those sums that the insured becomes legally obligated to pay as damages to any person or organization because of **archaeological expenses** to which this insurance applies resulting from the unexpected **discovery** of **archaeological resources** in connection with operations being performed by **you** or on **your** behalf by a contractor or subcontractor:

(a) On premises **you** own, lease, rent or control;

(b) On ways next to premises **you** own, lease, rent or control; or

(c) On premises **you** do not own, lease, rent or control.

(2) The amount **we** will pay for damages is limited as described in Section III – Limits Of Insurance.

b. Defense, Investigation or Settlement

(1) **We** will have the right and duty to defend the insured against any **suit** seeking damages for **archaeological expenses**. **We** have the right to settle any such **suit**. However, **we** will have no duty to defend the insured against any **suit** seeking damages for **archaeological expenses** to which this insurance does not apply.

(2) **We** may, at **our** discretion, investigate any **discovery** and settle any claim or **suit** that may result. However:

(3) **Our** right and duty to defend end when **we** have used up the applicable limit of insurance in the payment of judgments or settlements.

(4) Defense costs shall reduce the applicable limits of liability.

c. Reimbursement

(1) Defense Costs

If a **suit** is brought in a jurisdiction or country where **we** are prevented by law, or otherwise, from defending the insured, the insured will initiate a defense of the **suit**. **We** will reimburse the insured for any reasonable and necessary expenses incurred for the defense of a **suit** seeking damages to which this insurance applies, that **we** would have paid had **we** been able to exercise **our** right and duty to defend.

(2) Payment of Damages

If the insured becomes legally obligated to pay sums because of damages to which this insurance applies in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such sums on the insured's behalf, **we** will reimburse the insured for such sums.

(3) Reimbursement of the First Named Insured

If **we** are prevented by law, or otherwise, from reimbursing the insured directly, then **we** will reimburse the first Named Insured shown in the Declarations.

d. How This Insurance Applies

This insurance applies to **archaeological expenses** only if:

- (1) The **archaeological expenses** are caused by a **discovery** that takes place in the **coverage territory**;
- (2) The **archaeological expenses** are incurred during the policy term;
- (3) Prior to the policy term, no insured listed under Paragraph I. of Section II – Who Is An Insured and no **employee** authorized by **you** to give or receive notice of **discovery** or claim, knew that the **archaeological resources** had been discovered, in whole or in part. If such a listed insured or authorized **employee** knew, prior to the policy term, that the **discovery of archaeological resources** had occurred, then any continuation, change or resumption of such **archaeological expenses** during or after the policy term will be deemed to have been known prior to the policy term; and
- (4) Any claim or **suit** is made or brought in the **coverage territory** or the United States of America, its territories and possessions, Puerto Rico or Canada.
- (5) **Discovery of archaeological resources** which occurs during the policy term and was not, prior to the policy term, known to have occurred by any insured listed under Paragraph I. of Section II – Who Is An Insured or any **employee** authorized by **you** to give or receive notice of an **occurrence** or claim, includes any continuation, change or resumption of that **archaeological expenses** after the end of the policy term.
- (6) **Discovery of archaeological resources** will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph I. of Section II – Who Is An Insured or any **employee** authorized by **you** to give or receive notice of an **occurrence** or claim:
 - (a) Reports all, or any part, of the **discovery of archaeological resources** to **us** or any other insurer;
 - (b) Receives a written or verbal demand or claim for damages because of the **archaeological expenses**; or
 - (c) Becomes aware by any other means that **archaeological expenses** have been incurred or have begun to be incurred.

2. Exclusions

This insurance does not apply to:

a. Asbestos

Discovery of archaeological resources arising out of the mining of, use of, installation of, or removal of asbestos products, asbestos fibers or asbestos dust, or to any obligation of the insured to indemnify any party because of **archaeological expenses** arising out of the mining of, use of, installation of, removal of asbestos products, asbestos fibers or asbestos dust.

b. Contractual Liability

Archaeological expenses for which the insured is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

c. Expected or Intended **Discovery**

Discovery of archaeological resources expected or intended from the standpoint of the insured.

d. Hallowed Ground

Discovery of archaeological resources arising out of operations performed on the premises of:

- (1) Churches, synagogues, mosques, or other houses of worship, whether currently in-use as such, or known to have served in such capacity in the past; or
- (2) Battlefields of World War I or the Napoleonic Wars.

e. Illegal Operations

Discovery of archaeological resources arising out of illegal operations.

f. Knowing Violation of Statute

Archaeological expenses caused by or at the direction of the insured with the knowledge that the act would violate:

- (1) The National Historic Preservation Act of 1966, or any similar law in the applicable country or jurisdiction; or
- (2) Jurisdictional requirements, including requirements under any law, ordinance, governmental directive or standard in the applicable country or jurisdiction, to conduct **archaeological resource surveys**.

g. Principals

Archaeological expenses incurred by the person or organization for whom **you** performed operations that resulted in the unexpected **discovery of archaeological resources**.

h. Treasure Hunting

Acts that result in **discovery of archaeological resources** committed by an insured whose business is:

- (1) Conducting **archaeological resource surveys**;
- (2) Salvage of sunken ships;
- (3) Search and un-earthing of buried treasure;
- (4) Performing or rendering archaeological services that require licensing or certification in the applicable country or jurisdiction.

i. Tribal Lands

Any claim or **suit** for damages arising out of the **discovery of archaeological resources** on government reserved tribal lands of aboriginal inhabitants or indigenous peoples.

j. Unexploded Ordnance

Any cost or expense arising out of any obligation to detonate, remove, or clean up unexploded ordnance, whether discovered with or without other **archaeological resources**.

k. **War**

Discovery of archaeological resources, however caused, arising, directly or indirectly, out of:

- (1) **War**, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

COVERAGE H – WILDFIRE LIABILITY©

1. Insuring Agreement

a. Payment

- (1) **We** will pay **wildfire suppression costs** arising out of an **occurrence** to which this insurance applies and for which **you** become legally obligated to pay pursuant to a government permit. However:
- (2) The amount **we** will pay for **wildfire suppression costs** is limited as described in Section III – Limits Of Insurance.

b. Reimbursement

If **wildfire suppression costs** caused by an accident to which this insurance applies are incurred outside the United States of America (including its territories and possessions), Puerto Rico or Canada, and in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such costs or expenses on the insured's behalf, **we** will reimburse the insured for such **wildfire suppression costs**. If **we** are prevented by law, or otherwise, from reimbursing the insured directly, then **we** will reimburse the first Named Insured shown in the Declarations.

c. How This Insurance Applies

This insurance applies to **wildfire suppression costs** only if:

- (1) The **wildfire suppression costs** result from an **occurrence** that takes place in the **coverage territory**; and
- (2) The **occurrence** takes place during the policy term.

2. Exclusions

We will not pay **wildfire suppression costs**:

a. Contractors or Subcontractors

Of contractors or sub-contractors engaged by **you** at the time loss first occurs.

b. Contractual Liability

For which the insured is obligated by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for that the insured would have in the absence of the contract or agreement

c. Coverage A and B Exclusions

That are otherwise covered under Coverage A or Coverage B.

d. Specific Industries

For any insured engaged in the business of:

- (1) Generation, transmission, and/or distribution of electrical energy, or building, servicing or maintaining electricity transmission and distribution networks;
- (2) Logging;
- (3) Construction of power lines and pipelines;
- (4) Power pole contracting services;
- (5) Vegetation management contracting services;
- (6) Clean up, removal, or abatement of **pollutants**.

e. Violation of Law or Statute

For which **you** are liable by reason of failure to comply with the National Forest Management Act of 1976, the Forest and Prairie Protection Acts of the provinces of Canada, the Environment Protection and Biodiversity Conservation Act 1999 of Australia, or any similar law in the applicable country or jurisdiction.

COVERAGE I – REPUTATIONAL DEFENSE®

1. Insuring Agreement

a. Payment

(1) **We**, at **our** sole discretion, will either reimburse **you** or pay on **your** behalf, the **reputational defense costs** that an insured incurs in seeking to avoid or minimize the potential impact of a specific **reputation attack** arising out of **bodily injury, property damage, or personal and advertising injury** covered under this Foreign Commercial General Liability Coverage Part.

(2) The amount **we** will pay is limited as described in Section III – Limits Of Insurance.

b. Reimbursement

If the **reputational defense costs** arising out of **bodily injury, property damage, or personal and advertising injury** to which insurance under this Foreign Commercial General Liability Coverage Part applies are incurred outside the United States of America (including its territories and possessions), Puerto Rico or Canada, and in a jurisdiction or country where **we** are prevented by law, or otherwise, from paying such **reputational defense costs** on the insured's behalf, **we** will reimburse the insured for such **reputational defense costs**. If **we** are prevented by law, or otherwise, from reimbursing the insured directly, then **we** will reimburse the first Named Insured shown in the Declarations.

c. How This Insurance Applies

We will reimburse **you**, or pay on **your** behalf, for **reputational defense costs** arising out of a **reputation attack** only if:

- (1) The **bodily injury, property damage, or personal and advertising injury** commences during the policy term; and
- (2) The **reputation attack** takes place in the **coverage territory**; and
- (3) Such **reputational defense costs** did not arise out of any fact, circumstance, pre-existing condition, situation, or **bodily injury, property damage, or personal and advertising injury** that **you**, prior to the policy term, knew, or reasonably should have known, could lead to, cause or result in such **reputational defense costs**; and
- (4) Such **reputational defense costs** are incurred within sixty (60) days after the commencement date of the **reputation attack**. The end of the policy term will not cut short this sixty (60) day period.
- (5) All coverage is provided solely with respect to **reputation attacks** in response to which the insured:
 - (a) Has first agreed to retain a **crisis management firm** assigned or approved by **us** during the policy term; and
 - (b) Has reported the **reputation attack** to **us** in compliance with all terms, conditions, exclusions and other limitations within the Common Conditions and Definitions and this Foreign Commercial General Liability Coverage Part.

d. Anti-Stacking

If **reputational defense costs** provided under this Foreign Commercial General Liability Coverage Part are also provided by any other insurance issued to **you** by **us** or any of **our** affiliated companies (whether or not such costs or loss are referred to using these same terms), the maximum limit of insurance under all insurance available shall not exceed the highest applicable limit of insurance available under any one policy. This provision does not apply to any other insurance issued by **us** or any of **our** affiliated companies specifically intended to apply as excess insurance over this policy.

2. Exclusions

We will not pay **reputational defense costs** resulting from:

a. Coverage A and B Exclusions

Bodily injury or **property damage** excluded under Coverage A or **Personal and advertising injury** excluded under Coverage B.

b. Past Liabilities

Bodily injury, property damage, or personal and advertising injury by another entity that occurred prior to the date **you** acquired or merged with the other entity.

In addition, **we** will not pay **reputational defense costs** in connection with any **reputation attack** arising out of, based upon or attributable to any:

- c. Change in population, economic conditions, customer tastes or competitive or business environment;
- d. Bankruptcy or insolvency of any insured;
- e. Criticism of an insured's financial performance, or any change in the financial rating of an insured or of any security issued by an insured;
- f. Direct and foreseeable consequence of an insured's decision to change or discontinue the use of any business strategy, manufacturing process, vendor, supplier or distributor;
- g. Acquisition or merger strategy, any actual or threatened acquisition of or by an insured, or any merger of an insured by or with any other entity; or
- h. Strike or similar labor action, or **war**.

TAX LIABILITY PAYMENT[©]

1. Tax Liability Calculation

In countries or jurisdictions in which **we** issue a **local underlying policy**, in the event a payment under this Foreign Commercial General Liability Coverage Part cannot be made in the country or jurisdiction where the **occurrence**, offense, **wrongful act** or **discovery** took place and the insured is consequently required either to pay tax or realize a reduction of a tax benefit that it would otherwise have recognized in the country or jurisdiction where the **occurrence**, offense, **wrongful act** or **discovery** took place, **we** shall make a Tax Liability Payment in accordance with the following formula:

TLP = Tax Liability Payment

$$TLP = [((1 - A)/(1 - B)) - 1] \times C$$

Where:

A Is the actual effective **corporate tax rate** in the country or jurisdiction where the **occurrence**, offense, **wrongful act** or **discovery** took place.

- B** Is the actual effective **corporate tax rate** in the country or jurisdiction where loss payment is received.
- C** Is the actual amount payable under this Foreign Commercial General Liability Coverage Part.

The Tax Liability Payment is subject to Section III – Limits Of Insurance.

2. How the Tax Liability Payment Applies

We will only pay the Tax Liability Payment after receipt of documentation supporting the calculation of "A" and "B" above and a certification of the insured's Chief Executive Officer or Chief Financial Officer or the person to whom **you** have assigned responsibility for financial matters, that, to the best of his or her knowledge, based on a review of all applicable financial and tax data:

- a. The insured is required to pay tax on the claim proceeds or will realize a reduction of a tax benefit that it would otherwise have recognized in the country or jurisdiction where the **occurrence**, offense, **wrongful act** or **discovery** took place; and
- b. The tax to be paid and pre-tax Financial Accounting Income data provided is accurate and complete and fairly presents in all material respects the insured's financial results in the applicable country or jurisdiction.
- c. If the **corporate tax rate** in the country or jurisdiction where the **occurrence**, offense, **wrongful act** or **discovery** took place is equal to or greater than the **corporate tax rate** in the country or jurisdiction where the loss payments are to be received, then **we** will make no Tax Liability Payment.
- d. **You** must cooperate with **us** in making every reasonable effort to have payment made in the country or jurisdiction where the **occurrence**, offense, **wrongful act** or **discovery** took place, where permitted by law. In addition, **you** must use due diligence and dispatch to mitigate any loss for which **we** may be responsible under this Tax Liability Payment provision.

SUPPLEMENTARY PAYMENTS – COVERAGES A, B AND D (IN ADDITION TO THE LIMITS OF INSURANCE)

- 1. **We** will pay, with respect to any claim **we** investigate or settle or any **suit** against an insured **we** defend:
 - a. All expenses **we** incur.
 - b. Up to \$5,000 for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which the **Bodily Injury** Liability Coverage applies. **We** do not have to furnish these bonds. This provision does not apply to Coverage D – Employee Benefits Liability.
 - c. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. **We** do not have to furnish these bonds.
 - d. All reasonable expenses incurred by the insured at **our** request to assist **us** in the investigation or defense of the claim or **suit**, including actual loss of earnings up to \$1,000 a day because of time off from work.
 - e. All court costs taxed against the insured in the **suit**. However, these payments do not include attorneys' fees or attorneys' expenses taxed against the insured.
 - f. Prejudgment interest awarded against the insured on that part of the judgment **we** pay. If **we** make an offer to pay the applicable limit of insurance, **we** will not pay any prejudgment interest based on that period of time after the offer.
 - g. All interest on the full amount of any judgment that accrues after entry of the judgment and before **we** have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the limits of insurance.

2. If **we** defend an insured against a **suit** and an indemnitee of the insured is also named as a party to the **suit**, **we** will defend that indemnitee if all of the following conditions are met:
 - a. The **suit** against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an **insured contract**;
 - b. This insurance applies to such liability assumed by the insured;
 - c. The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same **insured contract**;
 - d. The allegations in the **suit** and the information **we** know about the **occurrence** are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;
 - e. The indemnitee and the insured ask **us** to conduct and control the defense of that indemnitee against such **suit** and agree that **we** can assign the same counsel to defend the insured and the indemnitee; and
 - f. The indemnitee:
 - (1) Agrees in writing to:
 - (a) Cooperate with **us** in the investigation, settlement or defense of the **suit**;
 - (b) Immediately send **us** copies of any demands, notices, summonses or legal papers received in connection with the **suit**;
 - (c) Notify any other insurer whose coverage is available to the indemnitee; and
 - (d) Cooperate with **us** with respect to coordinating other applicable insurance available to the indemnitee; and
 - (2) Provides **us** with written authorization to:
 - (a) Obtain records and other information related to the **suit**; and
 - (b) Conduct and control the defense of the indemnitee in such **suit**.

So long as the above conditions are met, attorneys' fees incurred by **us** in the defense of that indemnitee, necessary litigation expenses incurred by **us** and necessary litigation expenses incurred by the indemnitee at **our** request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph 2.b. (2) of Section I – Coverage A – Bodily Injury And Property Damage Liability, such payments will not be deemed to be damages for **bodily injury and property damage** and will not reduce the limits of insurance.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when **we** have used up the applicable limit of insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in Paragraph f. above, are no longer met.

This paragraph 2. does not apply to insurance provided under Coverage D – Employee Benefits Liability.

SECTION II – WHO IS AN INSURED

1. If **you** are:
 - a. Individuals and Sole Proprietorships

An individual, **you** and **your** spouse are insureds, but only with respect to the conduct of a business of which **you** are the sole owner.
 - b. Partnerships or Joint Ventures

A partnership or joint venture, **you** are an insured. **Your** members, **your** partners, and their spouses are also insureds, but only with respect to the conduct of **your** business.

c. Limited Liability Companies

A limited liability company, **you** are an insured. **Your** members are also insureds, but only with respect to the conduct of **your** business. **Your** managers are insureds, but only with respect to their duties as **your** managers.

d. Organizations Other than Partnerships, Joint Ventures, and Limited Liability Companies

An organization other than a partnership, joint venture or limited liability company, **you** are an insured. **Your executive officers** and directors are insureds, but only with respect to their duties as **your** officers or directors. **Your** stockholders are also insureds, but only with respect to their liability as stockholders.

e. Trusts

A trust, **you** are an insured. **Your** trustees are also insureds, but only with respect to their duties as trustees.

2. Each of the following is also an insured:

a. **Volunteer Workers and Employees** (Without Exclusion for Injury to Co-Employees)

Your volunteer workers only while performing duties related to the conduct of **your** business, or **your employees**, other than either **your executive officers** (if **you** are an organization other than a partnership, joint venture or limited liability company) or **your** managers (if **you** are a limited liability company), but only for acts within the scope of their employment by **you** or while performing duties related to the conduct of **your** business. However, none of these **employees or volunteer workers** are insureds for:

(1) **Bodily injury or personal and advertising injury:**

- (a) To **you**, to **your** partners or members (if **you** are a partnership or joint venture), to **your** members (if **you** are a limited liability company).
- (b) To the spouse, child, parent, brother or sister of that co-**employee** or **volunteer worker** as a consequence of Paragraph (1)(a) above;
- (c) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in sub-paragraphs (1)(a) or (b) above; or
- (d) Arising out of his or her providing or failing to provide professional health care services, except for **bodily injury** arising out of **incidental medical malpractice injury** by any physician, dentist, nurse or other medical practitioner employed or retained by **you** or by any other health care provider employed or retained by **you** in cases of **Good Samaritan Acts**. Coverage provided to any other health care provider employed or retained by **you** in cases of **Good Samaritan Acts** is excess over any other valid and collectible insurance. However, the insurance provided hereunder to such persons will not apply for **you** if **you** are engaged in the business or occupation of providing any of the services described in **incidental medical malpractice injury**. Any series of continuous, repeated or related acts will be treated as the **occurrence** of a single negligent professional healthcare service.

(2) **Property damage** to property:

- (a) Owned, occupied or used by,
 - (b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by,
- you**, any of **your employees, volunteer workers**, any partner or member (if **you** are a partnership or joint venture), or any member (if **you** are a limited liability company).

b. Real Estate Managers

Any person (other than **your employee, volunteer worker**), or any organization while acting as **your** real estate manager.

c. Administrators – **Employee Benefit Program**

Each of **your employees** who is or was authorized to administer **your employee benefit program**.

d. Temporary Administrators - **Employee Benefit Program**

Any persons, organization or **employees** having proper temporary authorization to administer **your employee benefit program** if **you** die, but only until **your** legal representative is appointed.

e. Temporary Custodians - Property

Any person or organization having proper temporary custody of **your** property if **you** die, but only:

- (1) With respect to liability arising out of the maintenance or use of that property; and
- (2) Until **your** legal representative has been appointed.

f. Legal Representatives

Your legal representative if **you** die, but only with respect to duties as such. That representative will have all **your** rights and duties under this Foreign Commercial General Liability Coverage Part.

3. Each of the following is an additional insured:

a. Architects, Engineers or Surveyors

Any architect, engineer, or surveyor, but only with respect to liability for **bodily injury, property damage or personal and advertising injury** caused, in whole or in part, by **your** acts or omissions or the acts or omissions of those acting on **your** behalf:

- (1) In connection with **your** premises; or
- (2) In the performance of **your** ongoing operations.

However:

With respect to the insurance afforded these additional insureds, the following additional exclusion applies:

This insurance does not apply to **bodily injury, property damage or personal and advertising injury** arising out of the rendering of or the failure to render any professional services by or for **you**, including:

- (3) The preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
- (4) Supervisory, inspection, architectural or engineering activities.

b. Authorized Users of Registered **Mobile Equipment**

Any person driving **mobile equipment** registered in **your** name under a motor vehicle registration law and with **your** permission:

- (1) On public roads with **your** permission are insureds; and
- (2) Persons or organizations responsible for the conduct of such persons described in sub-paragraph (1) above are insureds; however, they are insureds only with respect to the operation of such **mobile equipment** on behalf of **your** business or operations.

However, no person or organization is an insured with respect to:

- (3) **Property damage** to any property **you** own or rent, or property **you** do not own or rent that is in **your** care, custody or control, or in the care, custody or control of the employer of any person who is an insured under this provision.

c. Clubs

Any association, club or other organization, and **your employees** who are members thereof, provided such entity is formed for or by **your employees** for social or recreational purposes with **your** knowledge and consent.

d. Controlling Interest

Any person or organization with a controlling interest in **you**, but only with respect to such person or organization's liability for **bodily injury, property damage, personal and advertising injury** arising out of:

- (1) Such person or organization's financial control of **you**; or
- (2) Premises such person or organization owns, maintains or controls while **you** lease or occupy such premises.

This insurance does not apply to structural alterations, new construction and/or demolition operations performed by or for such person(s) or organization(s).

e. Co-owner of Premises

Any person or organization that is a co-owner of a premise co-owned by **you**, but only with respect to their liability for **bodily injury, property damage or personal and advertising injury** as co-owner of the premises.

f. Governmental Agencies - Permits for Operations

Any state or governmental agency or subdivision or political subdivision, but only with respect to the operations performed by **you** or on **your** behalf for which the state or governmental agency or subdivision or political subdivision has issued a permit or authorization.

This insurance does not apply to:

- (1) **Bodily injury, property damage, or personal and advertising injury** arising out of operations performed for the federal government, state or municipality; or
- (2) **Bodily injury or property damage** included within the **products-completed operations hazard**.

g. Governmental Agencies - Permits for Premises

Any state or governmental agency or subdivision or political subdivision, but only with respect to the following hazards for which the state or governmental agency or subdivision or political subdivision has issued a permit or authorization in connection with premises **you** own, rent, or control and to which this insurance applies:

- (1) The existence, maintenance, repair, construction, erection, or removal of advertising signs, awnings, canopies, cellar entrances, coal holes, driveways, manholes, marquees, hoist away openings, sidewalk vaults, street banners, or decorations and similar exposures; or
- (2) The construction, erection, or removal of elevators; or
- (3) The ownership, maintenance or use of any elevators covered by this insurance.

h. Grantors of Franchise

Any person or organization that has granted a franchise to **you**, but only with respect to such person or organization's liability as grantor of a franchise to **you**.

i. Lessors of Land

Any person or organization from whom **you** lease land, but only with respect to liability arising out of the ownership, maintenance or use of that part of the land leased to **you**.

However:

- (1) The insurance afforded to such additional insured only applies to the extent permitted by law of the applicable country or jurisdiction; and
- (2) If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which **you** are required by the contract or agreement to provide such additional insured.

However, the insurance afforded to these additional insureds does not apply to:

- (3) Any **occurrence** or offense which takes place after **you** cease to lease that land;
- (4) Structural alterations, new construction or demolition operations performed by, on behalf of, or for such additional insureds.

j. Lessors of Equipment

Any person or organization from whom **you** lease equipment when **you** and such person or organization have agreed in writing in a contract or agreement that such person or organization be added as an additional insured on **your** policy. Such person or organization is an insured only with respect to liability for **bodily injury, property damage or personal and advertising injury** caused, in whole or in part, by **your** maintenance, operation or use of equipment leased to **you** by such person or organization. A person's or organization's status as an insured terminates automatically when the contract or agreement with **you** for such leased equipment terminates; provided however, that this insurance does not apply to **bodily injury, property damage or personal and advertising injury** arising out of any **occurrence** which takes place after the equipment lease expires.

k. Managers or Lessors of Premises

Any person or organization from whom **you** lease premises where **you** are required to add a manager or lessor as an additional insured as a condition of a contract or lease agreement, but only with respect to liability arising out of the ownership, maintenance or use of that part of the premises leased to **you**; provided however, that this insurance does not apply to **bodily injury, property damage or personal and advertising injury** arising out of (a) any **occurrence** which takes place after **you** cease to be a tenant in that premises, or (b) structural alterations, new construction or demolition operations performed by or on behalf of such person or organization.

l. Mortgagee, Assignee or Receiver

Any person or organization, but only with respect to their liability as mortgagee, assignee, or receiver and arising out of **your** ownership, maintenance, or use of a premise.

This insurance does not apply to structural alterations, new construction or demolition operations performed by, on behalf of, or for such additional insured.

m. Sabbatical Programs®

Any **employee** participating in a sabbatical or fellowship program that **you** sponsor, but only with respect to liability for **bodily injury, property damage or personal and advertising injury** caused, in whole or in part, while performing duties related to the conduct of **your** business or the sabbatical or fellowship program.

n. Vendors

Any vendor, but only with respect to **bodily injury or property damage** arising out of any of **your products**, except as otherwise excluded or limited, which are distributed or sold in the regular course of the vendor's business, subject to the following additional exclusions:

- (1) The insurance afforded the vendor does not apply to:
 - (a) **Bodily injury or property damage** for which the vendor is obligated to pay damages by reason of the assumption of liability in a contract or agreement, provided that this exclusion does not apply to liability for damages that the vendor would have in the absence of such contract or agreement;

- (b) Any express warranty unauthorized by **you**;
- (c) Any physical or chemical change in the product made intentionally by the vendor;
- (d) Repackaging, except when unpacked solely for the purpose of inspection, demonstration, testing, or the substitution of parts under instructions from the manufacturer, and then repackaged in the original container;
- (e) Any failure to make such inspections, adjustments, tests or servicing as the vendor has agreed to make or normally undertakes to make in the usual course of business, in connection with the distribution or sale of the products;
- (f) Demonstration, installation, servicing or repair operations, except such operations performed at the vendor's premises in connection with the sale of the product;
- (g) Products which, after distribution or sale by **you**, have been labeled or relabeled or used as a container, part or ingredient of any other thing or substance by or for the vendor; or
- (h) **Bodily injury or property damage** arising out of the sole negligence of the vendor for its own acts or omissions or those of its **employees** or anyone else acting on its behalf, provided that this exclusion does not apply to:
 - (i) The exceptions contained in sub-paragraphs d or f; or
 - (ii) Such inspections, adjustments, tests or servicing as the vendor has agreed to make or normally undertakes to make in the usual course of business, in connection with the distribution or sale of the products.
- (2) This insurance does not apply to any insured person or organization, from whom **you** have acquired such products, or any ingredient, part or container, entering into, accompanying or containing such products.
- (3) This insurance does not apply if the Foreign Commercial General Liability Coverage Part Schedule of Limits shows "Not Covered" or "Excluded" for the Products-Completed Operations Aggregate Limit.
- o. Additional Insured Where Required Under Contract Or Agreement

Any other person or organization not included in paragraphs a. through n. above to whom **you** become obligated to include as an additional insured under this Foreign Commercial General Liability Coverage Part, as a result of any written contract or agreement which requires **you** to furnish insurance to that person or organization of the type provided by this Foreign Commercial General Liability Coverage Part, but only with respect to liability arising out of **your product, your work, or your** operations or premises owned by or rented to **you**. However, the insurance provided will not exceed the lesser of:

- (1) The coverage and/or limits of this policy; or
- (2) The coverage and/or limits required by said contract or agreement.

4. Newly Acquired or Formed Organizations – 180 Days

Any organization **you** newly acquire or form, other than a partnership or joint venture or limited liability company, of which **you** maintain ownership or majority interest as a Named Insured if there is no other similar insurance available to that organization. However:

- a. Coverage under this provision is afforded only until the 180th day after **you** acquire or form the organization or the end of the policy term, whichever is earlier;
- b. Coverage A does not apply to **bodily injury or property damage** that occurred before **you** acquired or formed the organization; and
- c. Coverage B does not apply to **personal and advertising injury** arising out of an offense committed before **you** acquired or formed the organization.

5. Limited Coverage for Joint Ventures, Partnerships, and Limited Liability Companies

No person or organization, other than **you**, is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

6. In Rem Actions

In Rem actions against any watercraft owned or operated by or rented or loaned to any insured will in all respects be treated in the same manner as though the action were *in Personam* against that insured.

SECTION III – LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Foreign Commercial General Liability Coverage Part Schedule of Limits and the rules below fix the most **we** will pay regardless of the number of:

- a. Insureds;
- b. Claims made or **suits** brought;
- c. Persons or organizations making claims or bringing **suits**;
- d. **Wrongful acts** or series of related **wrongful acts**;
- e. Benefits included in **your employee benefit program**;
- f. **Crisis events** or **affected persons**; or
- g. **Employees** or **volunteer workers**.

2. As described in Section V – Master Controlled Program, the Master Control Program Aggregate is the most **we** will pay for the sum of damages paid under Coverage A, Coverage B and the medical expenses under Coverage C of this Foreign Commercial General Liability Coverage Part and all **local underlying policies**.

3. Subject to 2. above, the General Aggregate Limit is the most **we** will pay for the sum of:

- a. Medical expenses under Coverage C;
- b. Damages under Coverage A, except damages because of **bodily injury** or **property damage** included in the **products-completed operations hazard**; and
- c. Damages under Coverage B.

However, dismemberment expenses, fatality expenses, bereavement or trauma counseling expenses, or repatriation of mortal remains expenses under Coverage C will not erode the General Aggregate Limit.

4. Subject to 2. above, the Products-Completed Operations Aggregate Limit is the most **we** will pay under Coverage A for damages because of **bodily injury** and **property damage** included in the **products-completed operations hazard**.

5. Subject to 2. and 3. above, the Personal and Advertising Injury Limit is the most **we** will pay under Coverage B for the sum of all damages because of all **personal and advertising injury** sustained by any one person or organization.

6. Subject to 3. or 4. above, whichever applies, and subject to 2. above, the Each **Occurrence** Limit is the most **we** will pay for the sum of:

- a. Damages under Coverage A; and
- b. Medical expenses under Coverage C

because of all **bodily injury** and **property damage** arising out of any one **occurrence**. However, dismemberment expenses, fatality expenses, bereavement or trauma counseling expenses, or repatriation of mortal remains expenses under Coverage C will not erode the Each Occurrence Limit.

7. Subject to 2. and 6. above, the Damage To Premises Rented To **You** Limit is the most **we** will pay under Coverage A for damages because of **property damage** to premises, while rented to **you** or temporarily occupied by **you** with permission of the owner, arising out of any one **occurrence**.
8. Subject to 2. and 6. above, the Medical Expense Limit is the most **we** will pay under Coverage C for all medical expenses because of **bodily injury** sustained by any one person.
9. Subject to 2. above, the Dismemberment and Fatality Expense Limit is the most **we** will pay under Coverage C for all dismemberment and fatality expenses because of **bodily injury** sustained by any one person.
10. Subject to 2. above, the Dismemberment and Fatality Expense Aggregate Limit is the most **we** will pay for dismemberment and fatality expenses under Coverage C.
11. Subject to 2. above, the Bereavement Counseling Expense Limit is the most **we** will pay under Coverage C for one **immediate family member** of a person or persons who sustain **bodily injury** that results in death.
12. Subject to 2. above, the Trauma Counseling Expense Limit is the most **we** will pay under Coverage C for either an injured person who sustains one of the losses shown in the Table of Losses above or an **immediate family member** of an injured person who sustains one of the losses shown in the Table of Losses above.
13. Subject to 2. above, the Repatriation of Mortal Remains Limit is the most **we** will pay under Coverage C for any one decedent.
14. Subject to 2. above, the Bereavement and Trauma Counseling Expenses and Repatriation of Mortal Remains Aggregate Limit is the most **we** will pay for all such expenses under Coverage C.
15. The Each **Wrongful Act** or Series of Related **Wrongful Acts** Limit is the most **we** will pay under Coverage D for all claims made on account of any **wrongful acts** or series of related acts.
16. The Employee Benefits Annual Aggregate is the most **we** will pay under Coverage D for all claims covered during the policy term.
17. Subject to 19. below, the **Crisis Response Costs** Limit is the most **we** will reimburse or pay on **your** behalf for all **crisis response costs** arising out of any one **crisis event**.
18. Subject to 19. below, the **Crisis Management Loss** Limit is the most **we** will reimburse or pay on **your** behalf for all **crisis management loss** arising out of any one **crisis event**.
19. The Crisis Response Aggregate Limit is the most **we** will reimburse or pay on **your** behalf for the sum of all **crisis response costs** and **crisis management loss** under Coverage E.
20. The Employee Criminal Defense Limit is the most **we** will reimburse under Coverage F for all legal expenses and defense costs incurred to defend any one **employee** or **voluntary worker**.
21. The Employee Criminal Defense Annual Aggregate is the most **we** will reimburse under Coverage F for the sum of all legal expenses and defense costs incurred for all **employees** or **voluntary workers** arrested during the policy term.
22. The Archaeological Liability Limit is the most **we** will pay will pay under Coverage G for the sum of all damages because of all **archaeological expenses** arising from one **discovery**.
23. The Archaeological Liability Aggregate Limit is the most **we** will pay will pay under Coverage G for the sum of all damages because of all **archaeological expenses**.
24. The **Wildfire Suppression Costs** Limit is the most **we** will pay under Coverage H for **wildfire suppression costs** arising out of any one **occurrence**.
25. The **Wildfire Suppression Costs** Aggregate Limit is the most **we** will pay under Coverage H for the sum of all **wildfire suppression costs**.
26. The Tax Liability Payment Limit is the most **we** will pay as a Tax Liability Payment arising from any one **occurrence**, offense, **wrongful act**, or **discovery**.

27. The Tax Liability Aggregate Limit is the most **we** will pay will pay for the sum of all Tax Liability Payments. Tax Liability Payments will not erode the Master Control Program Aggregate or the General Aggregate Limit.
28. The Reputational Defense Limit is the most **we** will reimburse or pay on **your** behalf for all **reputational defense costs** arising out of any one **reputation attack**.
29. The Reputational Defense Aggregate Limit is the most **we** will reimburse or pay on **your** behalf for the sum of all **reputational defense costs** under Coverage I.
30. All payments made under any **local underlying policy** or **non-program policy** will reduce the Limits of Insurance of this Foreign Commercial General Liability Coverage Part.

SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS

1. Duties In The Event Of **Occurrence**, Offense, Claim, **Suit** Or **Wrongful Act**

- a. **You** must see to it that **we** are notified as soon as practicable of an **occurrence**, offense, or **wrongful act** which may result in a claim. To the extent possible, notice should include:
- (1) How, when and where the **occurrence**, offense, or **wrongful act** took place;
 - (2) The names and addresses of any injured persons and witnesses, or the names and addresses of anyone who may suffer damages as a result of a **wrongful act**; and
 - (3) The nature and location of any injury or damage arising out of the **occurrence**, offense or **wrongful act**.
- b. If a claim is made or **suit** is brought against any insured, **you** must:
- (1) Immediately record the specifics of the claim or **suit** and the date received; and
 - (2) Notify **us** as soon as practicable.
- You** must see to it that **we** receive written notice of the claim or **suit** as soon as practicable.
- c. **You** and any other involved insured must:
- (1) Immediately send **us** copies of any demands, notices, summonses or legal papers received in connection with the claim or **suit**;
 - (2) Authorize **us** to obtain records and other information;
 - (3) Cooperate with **us** in the investigation or settlement of the claim or defense against the **suit**; and
 - (4) Assist **us**, upon **our** request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.
- d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without **our** consent.

2. Duties in the Event of a **Crisis Event**

- a. **You** must see to it that **we** are notified by telephone within forty eight (48) hours of a **crisis event** which may result in **crisis response costs** or **crisis management loss**. The call must be made to one of the phone numbers designated below. If necessary, **we** will provide **you** with an approved **crisis management firm** unless **we** agree to accept a **crisis management firm** that **you** have selected.

Crisis Response Notification Telephone Number (toll free): 1-877-743-7669

Crisis Response Notification Telephone Number (collect): 1-713-260-5500

- b. Thereafter, **you** must provide written notice as soon as practicable. To the extent possible, this written notice should include:
 - (1) How, when and where the **crisis event** took place; and
 - (2) The names and addresses of any **affected parties** and witnesses; and
 - (3) The nature and location of any injury or damage arising out of the **crisis event**.
- c. If **you** seek direct reimbursement, **you** must submit a claim for reimbursement of **crisis response costs** and **crisis management loss** within ninety (90) days after incurring such **crisis response costs** or **crisis management loss**. Such claim(s) must include invoices and/or receipts supporting such **crisis response costs** or **crisis management loss** for each and every expense in excess of \$50.
- d. Any payments for **crisis management loss** or advancement of **crisis response costs** that **we** make under this Foreign Commercial General Liability Coverage Part:
 - (1) Will not be deemed to be a determination of **your** liability with respect to any claim or **suit** that results from a **crisis event**; and
 - (2) Will not create any duty to defend any **suit** or to investigate any claim arising from a **crisis event**, nor any coverage obligations under this Foreign Commercial General Liability Coverage Part.

3. Duties in the Event of a **Reputation Attack**

- a. **You** shall provide written notice to **us** of a **reputation attack** which may result in **reputational defense costs** as soon as practicable after the insured first retains a **crisis management firm** assigned or approved by **us** in connection with such **reputation attack**. Such notice must be provided no later than fourteen (14) days after the insured's retention of such **crisis management firm**. If necessary, **we** will provide the insured with an approved **crisis management firm** unless **we** agree to accept a **crisis management firm** that the insured has selected.
- b. To the extent possible, this written notice should include:
 - (1) How, when and where the **bodily injury, property damage, or personal and advertising injury** that causes the **reputation attack** took place; and
 - (2) The names and addresses of any affected insureds.
- c. If **you** seek direct reimbursement, **you** must submit a claim for reimbursement of **reputational defense costs** within sixty (60) days after incurring such **reputational defense costs**. Such claim(s) must include invoices and/or receipts supporting such **reputational defense costs** for each and every expense in excess of \$50.
- d. Any payments for **reputational defense costs** or advancement of **reputational defense costs** that **we** make under this Foreign Commercial General Liability Coverage Part:
 - (1) Will not be deemed to be a determination of **your** liability with respect to any claim or **suit** that results from **bodily injury, property damage, or personal and advertising injury**; and
 - (2) Will not create any duty to defend any **suit** or to investigate any claim arising from **bodily injury, property damage, or personal and advertising injury**, nor any coverage obligations under this Foreign Commercial General Liability Coverage Part.

4. Other Insurance

If other valid and collectible insurance is available to the insured for a loss **we** cover under Coverages A, B, D or H of this Foreign Commercial General Liability Coverage Part, **our** obligations are limited as follows:

- a. Primary Insurance
 - (1) This insurance is primary except when b. or d. below applies.

(2) Additional Insured – Primary and Non-Contributory

However, where required by contract, coverage under this Foreign Commercial General Liability Coverage Part afforded to an additional insured will apply as primary insurance and any other insurance issued to such additional insured shall apply as excess and non-contributory insurance.

b. Excess Insurance

(1) This insurance is excess over:

(a) **Your** self-insurance plan that covers a loss on the same basis; or

(b) Any **non-program policies**.

When this insurance is excess, **we** will have no duty under Coverages A, B, D or H to defend the insured against any **suit** if any other insurer has a duty to defend the insured against that **suit**. If no other insurer defends, **we** will undertake to do so, but **we** will be entitled to the insured's rights against all those other insurers.

(2) When this insurance is excess over other insurance, **we** will pay only **our** share of the amount of the loss, if any, that exceeds the sum of:

(a) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(b) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with the other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Foreign Commercial General Liability Coverage Part Schedule of Limits.

c. Method of Sharing

If all of the other insurance permits contribution by equal shares, **we** will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, **we** will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

d. Difference in Conditions/Difference in Limits

The insurance provided under this Foreign Commercial General Liability Coverage Part applies regardless of whether a **local underlying policy** or **non-program policy** has either (i) been issued in a given jurisdiction but does not respond to a particular claim, or (ii) not been issued in a given jurisdiction; provided however, that the coverage afforded under this policy shall be in accordance with all terms and conditions herein.

(1) Reversal in Primary Status®

When necessary, and where by permitted by law of the applicable country or jurisdiction, this insurance may apply as primary even if any loss, damage, **suit** or expense insured under this Foreign Commercial General Liability Coverage Part is insured under a **local underlying policy**.

(2) Difference in Limits

The limits shown on the Foreign Commercial General Liability Coverage Part Schedule of Limits are applicable regardless of limits maintained by a **local underlying policy** or **non-program policy**, subject to erosion or as otherwise provided in Section III – Limits Of Insurance in this Foreign Commercial General Liability Coverage Part.

5. Separation Of Insureds – Cross Liability

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Foreign Commercial General Liability Coverage Part to the first Named Insured, this insurance applies:

- a. As if each Named Insured were the only Named Insured; and
- b. Separately to each insured against whom claim is made or **suit** is brought.

6. Waiver of Governmental Immunity

We will waive, both in the adjustment of claims and in the defense of **suits** against the insured, any governmental immunity of the insured, unless the insured requests in writing that **we** not do so.

Waiver of immunity as a defense will not subject **us** to liability for any portion of a claim or judgment in excess of the applicable limit of insurance.

SECTION V – MASTER CONTROLLED PROGRAM©

1. The insurance provided under this Foreign Commercial General Liability Coverage Part and each **local underlying policy** operate independently, each subject to its own terms, conditions and exclusions. However, the ultimate amount that could possibly be paid or payable under this Foreign Commercial General Liability Coverage Part's Coverage A, Coverage B, the medical expenses under Coverage C and all **local underlying policies** will not exceed the Master Control Program Aggregate. Accordingly, the following applies:
 - a. If any amounts paid to or on behalf of any of the insureds under this policy or any **local underlying policy** cause the aggregate amount paid on this Foreign Commercial General Liability Coverage Part and all **local underlying policies** combined to exceed the Master Control Program Aggregate for a single policy term, then for all such amounts in excess of the Master Control Program Aggregate ("Reimbursement Amounts") **you** shall irrevocably and unconditionally indemnify **us** from, and shall pay to **us** or as directed by **us**, as a payment obligation directly due from **you** as a primary obligor, within thirty (30) days from **our** written demand.
 - b. All amounts due from **you** under this policy shall be paid in full, without dispute, set-off, defense, cross-claim or counterclaim and free and clear of any tax, duty or other type of deductions or withholdings. If **you** are required by law to make any deduction or withholding, then the amount due from **you** shall be increased accordingly.
 - c. Any unresolved dispute arising out of the interpretation of this Section V – Master Controlled Program must be submitted to arbitration. The arbitration must be governed by the United States Arbitration Act, title 9 U.S.C. Section 1, et seq. Any application concerning the appointment of an arbitrator must be made to a Justice of the Supreme Court of the State of New York, County of New York. The arbitrators may award compensatory money damages and interest thereupon. They will have exclusive jurisdiction over the entire matter in dispute, including any question as to whether it may be arbitrated. However, they will not have the power to award exemplary damages or punitive damages, however denominated, whether or not multiplied, whether imposed by law or otherwise.
2. This Section V – Master Controlled Program will apply whether the unresolved dispute arising out of the interpretation of this Section V – Master Controlled Program arises before or after cancellation or expiration of this policy.

SECTION VI – DEFINITIONS

1. **Administration** means:

- a. Giving counsel to **employees** with respect to the **employee benefit program**;
- b. Interpreting the **employee benefit program**;
- c. Handling of records in connection with the **employee benefit program**;

- d. Effective enrollment, termination or cancellation of **employees** under the **employee benefit program**, provided all are acts which are authorized by a Named Insured.
2. **Advertisement** means a notice that is broadcast or published to the general public or specific market segments about **your** goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:
- a. Notices that are published include material placed on the Internet or on similar electronic means of communication; and
 - b. Regarding web-sites, only that part of a website that is about **your** goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.
3. **Affected persons** means those individuals other than **your employees** who suffer direct:
- a. **Bodily injury**; or
 - b. **Property damage**; or
 - c. Directly experience **imminent injury**,
resulting from a **crisis event**, including such individual's **immediate family members**.
4. **Archaeological expenses**© means the following legally mandated expenses incurred as a result of the insured's **discovery of archaeological resources** to:
- (a) Design and implement protective measures against looting and/or vandalism of **archaeological resources**;
 - (b) Hire an archaeological legal consultant or archaeological technical consultant to serve as an advisor during the consultative process required by Section 106 of the National Historic Preservation Act of 1966, or similar law in the applicable country or jurisdiction;
 - (c) Conduct enhanced **archaeological resources** project monitoring activities in and around the vicinity of the **discovery of archaeological resources** if required by the applicable preservation office;
 - (d) Secure **archaeological resources** excavation and/or removal permits; and
 - (e) Clean, catalogue, preserve and store **archaeological resources**.
5. **Archaeological resources**© means any material remains of past human life or activities which are at least 100 years old and which are of archaeological interest, including pieces of pottery, basketry, bottles, weapons, weapon projectiles, tools, structures or portions of structures, rock paintings, rock carvings, intaglios, graves or human skeletal remains.
6. **Archaeological resource surveys**© means the following activities undertaken to identify historic properties: background research, consultation, oral history interviews, sample field investigation, and field surveys.
7. **Auto** means:
- a. A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or
 - b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the jurisdiction where it is licensed or principally garaged.
- However **auto** does not include **mobile equipment**.
8. **Bodily injury** means physical injury, sickness or disease, including death resulting from any of these; or the following when accompanied by physical injury, sickness or disease: mental anguish, shock or emotional distress. Any such mental anguish, shock or emotional distress shall be deemed to have occurred at the time of the related physical injury, sickness or disease.
9. **By-product material** has the meaning given in the Atomic Energy Act of 1954, or in any law amendatory thereof.

10. **Cafeteria plans** means plans authorized by applicable law to allow **employees** to elect to pay for certain benefits with pre-tax dollars.
11. **Communication cost period** means the sixty (60) days commencing at the time of the first publication of a **reputation attack**.
12. **Consultation costs** mean the:
- a. Fees for crisis communications services provided by a **crisis management firm** to an insured to the extent that such services are provided specifically in response to a **reputation attack**; and
 - b. Expenses of such **crisis management firm** in rendering such crisis communications services.
13. **Corporate tax rate** means the highest corporate tax rate in effect for the tax year when the Tax Liability Payment is paid.
14. **Covered brand** means any brands owned exclusively by an insured.
15. **Crisis event** means a man-made emergency situation, including, but not limited to, arson, intentional contamination of food, drink, or pharmaceuticals, a bombing, the taking of hostages, or a mass shooting that results in covered **bodily injury**, **property damage** or **imminent injury** to multiple persons and significant adverse regional or national news media coverage. All related or interrelated **crisis events** will be deemed to be one **crisis event**.
16. **Crisis management firm** means a public relations firm or crisis management firm that **we** have assigned or approved in writing, and that:
- a. With respect to insurance provided under Coverage E – CrisisResponse®, **you** have hired to perform services of the type covered under **crisis management loss** in connection with a **crisis event**; or
 - b. With respect to insurance provided under Coverage I - Reputational Defense®, the insured has agreed to retain in connection with a **reputation attack**.
17. **Crisis management loss** means reasonable and necessary fees and expenses incurred by a **crisis management firm** or **your employees** in providing public relations and media management services for the purpose of maintaining and restoring public confidence in **you**. These expenses may include printing, advertising, or mailing of materials to manage reputational risk. This does not include the salaries of **your employees**.
18. **Crisis preparedness program** means one or more crisis preparedness activities (including, but not limited to, a vulnerabilities assessment, development of a multi-scenario crisis communications plan or crisis response team infrastructure, internal roll-out and **employee** training on that plan, and simulation exercises) purchased by the insured and performed by a **crisis management firm** as part of the normal course of business management prior to the identification or occurrence of a covered **reputation attack**.
19. **Crisis response costs** means:
- a. Reasonable and necessary **emergency transport expenses**, **emergency psychology expenses**, funeral expenses, travel expenses, and temporary living expenses **you** incur to provide relief and/or support to **affected persons**, and
 - b. Expenses **you** incur to secure the scene of a **crisis event**.
- Crisis response costs** shall not include legal fees and expenses **you** incur for legal advice or services sought in anticipation of, or upon actual receipt of, a claim alleging liability and seeking damages for **bodily injury**, **property damage**, **imminent injury**, or **crisis management loss**.
20. **Discovery**® means an unexpected unearthing or series of un-earthings of **archaeological resources** within the entire site of a construction, renovation, repair or alteration project. Regardless of the number of **discoveries**, the location of the **discoveries**, phases of the construction, renovation, repair or alteration project, or the size of the site, all **discoveries**, whether or not related, within a single site will be considered one **discovery**.

21. **Electronic data** means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software or system, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media that are used with electronically controlled equipment or other electronic backup facilities, and data transmission or storage provided by means of the Internet.
22. **Emergency transport expenses** means reasonable and necessary emergency transport expenses, occurring within 24-hours after a **crisis event**, to transport an **affected person** sustaining **bodily injury in a crisis event** to a medical treatment facility.
23. **Emergency psychology expenses** means reasonable and necessary expenses for psychology or counseling services provided to **affected persons** and incurred within the first fourteen (14) days of a **crisis event**. This does not include the costs or expenses of any medications or hospitalizations. Such psychology or counseling services must be approved by the **crisis management firm**.
24. **Employee** includes a **leased worker**. **Employee** does not include a **temporary worker**.
25. **Employee Benefit program** means: a program providing some or all of the following benefits to **employees**, whether provided through a **cafeteria plan** or otherwise:
- a. Group life insurance; group accident or health insurance; dental, vision and hearing plans; flexible spending accounts; provided that no one other than an **employee** may subscribe to such benefits and such benefits are made generally available to those **employees** who satisfy the plan's eligibility requirements;
 - b. Profit sharing plans, employee savings plans, employee stock ownership plans, pension plans and stock subscription plans, provided that no one other than an **employee** may subscribe to such benefits and such benefits are made generally available to all **employees** who are eligible under the plan for such benefits;
 - c. Workers' compensation, unemployment insurance, social security benefits, disability benefits;
 - d. Vacation plans, including buy and sell programs; leave of absence programs, including military, maternity, family, and civil leave; tuition assistance plans; transportation and health club subsidies; and
 - e. Any other similar benefits designated in the Foreign Commercial General Liability Schedule of Limits or added thereto by endorsement.
26. **Executive officer** means a person holding any of the officer positions created by **your** charter, constitution, by-laws or any other similar governing document.
27. **Good Samaritan Acts** means any healthcare assistance rendered or provided in an emergency situation for which neither remuneration nor reciprocity is demanded, expected or received.
28. **Hazardous properties** includes radioactive, toxic or explosive properties.
29. **Hostile fire** means one which becomes uncontrollable or breaks out from where it was intended to be.
30. **Immediate family member** means anyone who is related to the person who sustains **bodily injury** in any of the following ways: spouse, domestic partner, brother-in-law, sister-in-law, son-in-law, daughter-in-law, mother-in-law, father-in-law, parent (includes stepparent), brother or sister (includes stepbrother or stepsister), or child (includes legally adopted or stepchild).
31. **Imminent injury** means the actual and immediate threat of **bodily injury** or **property damage** for which coverage would be provided under Coverage A – **Bodily Injury** and **Property Damage Liability**.
32. **Impaired property** means tangible property, other than **your product** or **your work**, that cannot be used or is less useful because:
- a. It incorporates **your product** or **your work** that is known or thought to be defective, deficient, inadequate or dangerous; or

b. **You** have failed to fulfill the terms of a contract or agreement;

if such property can be restored to use by the repair, replacement, adjustment or removal of **your product** or **your work** or **your** fulfilling the terms of the contract or agreement.

33. **Incidental medical malpractice injury** means **bodily injury** arising out of the rendering of or failure to render the following services:

- a. Medical, surgical, dental, x-ray or nursing service, or treatment or the furnishing of food or beverages in connection therewith; or
- b. The furnishing or dispensing of drugs or medical, dental or surgical supplies or appliances.

34. **Insured contract** means:

- a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire, lightning, explosion, smoke or **water condition** to premises while rented to **you** or temporarily occupied by **you** with permission of the owner is not an **insured contract**;
- b. A sidetrack agreement;
- c. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
- d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
- e. An elevator maintenance agreement; or
- f. That part of any other contract or agreement pertaining to **your** business (including an indemnification of a municipality in connection with work performed for a municipality) under which **you** assume the tort liability of another party to pay for **bodily injury** or **property damage** to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph f. does not include that part of any contract or agreement:

- (1) That indemnifies a railroad for **bodily injury** or **property damage** arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;
- (2) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - (a) Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - (b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
- (3) Under which the insured, if an architect, engineer or surveyor, assumes liability for injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in (2) above and supervisory, inspection, architectural or engineering activities.

35. **Loading or unloading** means the handling of property:

- a. After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or **auto**;
- b. While it is in or on an aircraft, watercraft or **auto**; or
- c. While it is being moved from an aircraft, watercraft or **auto** to the place where it is finally delivered;

but **loading or unloading** does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or **auto**.

36. **Mobile equipment** means any of the following types of land vehicles, including any attached machinery or equipment:

- a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
- b. Vehicles maintained for use solely on or next to premises **you** own or rent;
- c. Vehicles that travel on crawler treads;
- d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - (1) Power cranes, shovels, loaders, diggers or drills; or
 - (2) Road construction or resurfacing equipment such as graders, scrapers or rollers;
- e. Vehicles not described in a., b., c., or d. above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
 - (1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or
 - (2) Cherry pickers and similar devices used to raise or lower workers; and
- f. Vehicles not described in a., b., c., or d. above maintained primarily for purposes other than the transportation of persons or cargo.

However, self-propelled vehicles with the following types of permanently attached equipment are not **mobile equipment** but will be considered **autos**:

- (1) Equipment designed primarily for:
 - (a) Snow removal;
 - (b) Road maintenance, but not construction or resurfacing; or
 - (c) Street cleaning;
- (2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and
- (3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, **mobile equipment** does not include any land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the jurisdiction where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered **autos**.

37. **Nuclear facility** means:

- a. Any **nuclear reactor**;
- b. Any equipment or device designed or used for (1) separating the isotopes of uranium or plutonium, (2) processing or utilizing **spent fuel**, or (3) handling, processing or packaging **waste**;
- c. Any equipment or device used for the processing, fabricating or alloying of **special nuclear material** if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
- d. Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of **waste**;

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

38. **Nuclear material** means **source material**, **special nuclear material** or **by-product material**.
39. **Nuclear reactor** means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.
40. **Occurrence** means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.
41. **Personal and advertising injury** means injury, including consequential **bodily injury**, humiliation, mental anguish or shock, arising out of one or more of the following offenses:
- a. False arrest, detention or imprisonment;
 - b. Malicious prosecution;
 - c. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;
 - d. Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
 - e. Oral or written publication, in any manner, of material that violates a person's right of privacy;
 - f. The use of another's advertising idea in **your advertisement**; or
 - g. Infringing upon another's copyright, trade dress or slogan in **your advertisement**; or
 - h. Discrimination based upon race, religion, nationality, national origin, color, creed, sex or age, but excluding:
 - (1) Discrimination committed by, at the direction of, or with the consent of the insured against whom claim is made or **suit** is brought;
 - (2) Claims made or **suits** brought by reason of discrimination against present or past **employees** of any insured, or any applicants for employment with any insured; or
 - (3) Claims made or **suits** brought by a person deriving rights by reason of discrimination against present or past **employees** of any insured or applicants for employment with any insured.
42. **Pollutants** mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.
43. **Products-completed operations hazard**:
- a. Includes all **bodily injury** and **property damage** occurring away from premises **you** own or rent and arising out of **your product** or **your work** except:
 - (1) Products that are still in **your** physical possession; or
 - (2) Work that has not yet been completed or abandoned. However, **your work** will be deemed completed at the earliest of the following times:
 - (a) When all of the work called for in **your** contract has been completed.
 - (b) When all of the work to be done at the job site has been completed if **your** contract calls for work at more than one job site.
 - (c) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.
- Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

b. Does not include **bodily injury** or **property damage** arising out of:

- (1) The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by **you**, and that condition was created by the **loading or unloading** of that vehicle by any insured;
- (2) The existence of tools, uninstalled equipment or abandoned or unused materials; or
- (3) Products or operations for which the classification, listed in the Foreign Commercial General Liability Coverage Part Schedule of Limits, states that products-completed operations are subject to the General Aggregate Limit.

44. **Property damage** means:

- a. Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
- b. Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the **occurrence** that caused it.
- c. **Property damage** includes all forms of radioactive contamination of property.

For the purposes of this insurance, **electronic data** is not tangible property.

45. **Publication** means the dissemination via any medium (including but not limited to dissemination via print, video, audio, electronic, or digital or digitized form) of previously non-public information or opinion specifically concerning an insured or a **covered brand**; provided, however, that **publication** does not mean the reporting or disclosure of any financial information, financial projections or estimates, any communication seeking or opposing the consummation of any transaction that requires a security holder, debt holder or other stakeholder or management vote or approval, or any internal communication directed only to an insured's **executive officers** and/or **employees**.

46. **Reputation attack** means any **publication** by any person or entity other than an insured, the directors or officers of any insured, or any of their respective affiliates, agents, successors or assigns, that is likely to (a) be seen by any insured's stakeholders (including, but not limited to, actual or potential customers, investors, creditors, vendors, **employees**, suppliers or regulators) as a material breach of trust, and (b) have an adverse impact on the public perception of an insured or a **covered brand**. All related or interrelated **reputation attacks** will be deemed to be one **reputation attack**.

47. **Reputational defense costs** means, to the extent incurred by an insured specifically in response to a **reputation attack**:

- a. **consultation costs**; and
- b. **targeted communications costs**;

provided, however, **reputational defense costs** shall not include, and this Foreign Commercial General Liability Coverage Part shall not cover, the cost of providing any notice or making any disclosure required by law or contract.

Reputational defense costs does not mean: (i) payments made, directly or indirectly, to any person or entity to avoid **publication** of a **reputation attack** by such person or entity; (ii) attorney's fees, accountant's fees or expenses incurred by or in connection with the retention of any attorney or accountant; (iii) **employee** compensation, benefits or overhead; (iv) cost of any services provided by an insured or any of its affiliates; (v) costs or expenses incurred to withdraw or recall any good, product or service from the marketplace other than **consultation costs** and **targeted communications costs**; (vi) forensic investigation costs; (vii) amounts paid to a person or organization other than the insured alleged to be harmed in connection with a **reputation attack**, including but not limited to amounts deposited in a consumer redress fund or similar accounts; (viii) cost of a **crisis preparedness program**; (ix) amounts incurred in connection with seeking or opposing the consummation of any transaction that requires a security holder, debt holder or other stakeholder or management vote or approval; or (x) other expenses or charges that an insured had committed to prior to, or planned to incur in the absence of, a **reputation attack**.

48. **Source material** has the meaning given in the Atomic Energy Act of 1954, or in any law amendatory thereof.
49. **Special nuclear material** has the meaning given in the Atomic Energy Act of 1954, or in any law amendatory thereof.
50. **Spent fuel** means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a **nuclear reactor**.
51. **Targeted communications costs** means any public relations, communications and marketing expenses (including, but not limited to, the cost of crisis communications-related advertising, printing, mailing, brand monitoring and the operation of a telephone or internet hotline or answer line) incurred within the **communication cost period**, but only to the extent that such public relations, communications and marketing expenses are incurred at the recommendation of a **crisis management firm** as a targeted response, specifically designed to address a **reputation attack**.
52. **Unmanned aircraft** means an aircraft that is not:
- a. Designed;
 - b. Manufactured; or
 - c. Modified after manufacture;
- to be controlled directly by a person from within or on the aircraft.
53. **Volunteer worker** means a person who is not **your employee**, and who donates his or her work and acts at the direction of and within the scope of duties determined by **you**, and is not paid a fee, salary or other compensation by **you** or anyone else for their work performed for **you**.
54. **Waste** means any waste material (a) containing **by-product material** other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its **source material** content, and (b) resulting from the operation by any person or organization of any **nuclear facility** included under the first two paragraphs of the definition of **nuclear facility**.
55. **Water condition** means the discharge, leakage, or overflow of water or steam from plumbing, heating, refrigerating or air-conditioning systems, standpipes for fire hoses, or industrial or domestic appliances, or any substance from an automatic sprinkler system or the collapse or fall of tanks or the component parts or supports thereof which form a part of an automatic sprinkler system.
56. **Wildfire suppression costs**[®] means all costs or expenses incurred by other persons or organizations for which **you** are legally liable to bring a forest fire, bushfire, or wildfire under control, and includes **your** costs to engage a person other than an insured to act on **your** behalf to bring a forest fire, bushfire, or wildfire under control.
57. **Wrongful act** means any actual or alleged negligent act, error or omission in the **administration** of the **employee benefit program**.
58. **Your product**:
- a. Means:
 - (1) Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
 - (a) **You**;
 - (b) Others trading under **your** name; or
 - (c) A person or organization whose business or assets **you** have acquired; and
 - (2) Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

- b. Includes:
 - (1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **your product**, and
 - (2) The providing of or failure to provide warnings or instructions.
- c. Does not include vending machines or other property rented to or located for the use of others but not sold.

59. Your work:

- a. Means:
 - (1) Work or operations performed by **you** or on **your** behalf; and
 - (2) Materials, parts or equipment furnished in connection with such work or operations.
- b. Includes:
 - (1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **your work**, and
 - (2) The providing of or failure to provide warnings or instructions.

**FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE
COVERAGE PART**

PLEASE READ THIS ENTIRE FORM CAREFULLY

Words and phrases that appear in bold type have special meanings – please refer to Section II of the Common Conditions and Definitions and Section VI – Definitions, below.

SECTION I – COVERAGES

Subject to any deductibles, limitations, terms, conditions, sublimits and exclusions contained in the Declarations, together with any Schedules applicable to this Foreign Business Auto Liability and Physical Damage Coverage Part, **we** agree to provide coverage to **you** to the extent herein provided.

COVERAGE A LIABILITY COVERAGE

1. Insuring Agreement

We will pay all sums an insured legally must pay as damages because of **bodily injury** or **property damage** to which this insurance applies, caused by an **accident** and resulting from the ownership, maintenance or use of a **covered auto**.

2. Supplementary Payments

In addition to the Limits of Insurance, **we** will pay for the insured:

- a. All expenses **we** incur.
- b. Up to \$2,000 for the cost of bail bonds (including bonds for related traffic law violations) required because of an **accident we** cover. **We** do not have to furnish these bonds.
- c. The cost of bonds to release attachments in any **suit** against the insured **we** defend, but only for bond amounts within **our** Limits of Insurance.
- d. All reasonable expenses incurred by the insured at **our** request, including actual loss of earnings up to \$250 a day because of time off from work.

- e. All costs taxed against the insured in any **suit** against the insured **we** defend.
- f. All interest on the full amount of any judgment that accrues after entry of the judgment in any **suit** against the insured **we** defend, but **our** duty to pay interest ends when **we** have paid, offered to pay or deposited in court the part of the judgment that is within **our** Limits of Insurance.

3. Certain Trailers, Mobile Equipment And Temporary Substitute Autos.

The following types of vehicles are also **covered autos** for this Coverage A:

- a. **Trailers** with a load capacity of 2,000 pounds or less designed primarily for travel on public roads.
- b. **Mobile equipment** while being carried or towed by a **covered auto**.
- c. Any **auto you** do not own while used with the permission of its owner as a temporary substitute for a **covered auto you** own that is out of service because of its:
 - (1) Breakdown;
 - (2) Repair;
 - (3) Servicing;
 - (4) Direct and accidental loss or damage; or
 - (5) Destruction.

4. Duty To Defend

- a. **We** have the right and duty to defend any insured against a **suit** asking for such damages. However, **we** have no duty to defend any insured against a **suit** seeking damages for **bodily injury** or **property**

damage to which this insurance does not apply. **We** may investigate and settle any claim or **suit** as **we** consider appropriate. **Our** duty to defend or settle ends when the Liability Coverage Limits of Insurance has been exhausted by payment of judgments or settlements.

- b. **Our** duty to defend applies only in those countries in the **coverage territory** where legal circumstances permit **us** to defend. In those countries in the **coverage territory** where legal circumstances do not permit **us** to defend, **we** will reimburse **you** for **your** defense costs, subject to **our** prior authorization.

5. Who Is An Insured

The following are insureds:

- a. **You** for any **covered auto**.
- b. Anyone else while using with **your** permission a **covered auto** **you** own, hire or borrow except:
 - (1) The owner or anyone else from whom **you** hire or borrow a **covered auto**. This exception does not apply if the **covered auto** is a **trailer** connected to a **covered auto** **you** own.
 - (2) **Your employee** if the **covered auto** is owned by that **employee** or a member of his or her household.
 - (3) Someone using a **covered auto** while he or she is working in a business of selling, servicing, repairing, parking or storing **autos** unless that business is **yours**.
 - (4) Anyone other than **your employees**, partners (if **you** are a partnership), members (if **you** are a limited liability company), or a lessee or borrower or any of their **employees**, while moving property to or from a **covered auto**.
 - (5) A partner (if **you** are a partnership), or a member (if **you** are a limited liability company) for a **covered auto** owned by

him or her or a member of his or her household.

- c. Anyone liable for the conduct of an insured described above but only to the extent of that liability.

COVERAGE B MEDICAL EXPENSE COVERAGE

If a limit of liability is indicated on the Declarations for Medical Expense Coverage, then **we** shall, if requested by **you**, pay to or for each person who sustains **bodily injury** caused by an **accident**, all reasonable Medical Expense incurred within one year from the date of **accident** on account of such **bodily injury** provided such **bodily injury** arises out of the ownership, maintenance or use, including loading and unloading, of any **nonowned auto**, **hired auto** or **owned auto**.

COVERAGE C PHYSICAL DAMAGE

1. Insuring Agreement

- a. **We** will pay for **loss** to a **covered auto** or its equipment under:

- (1) Comprehensive Coverage – For **loss** from any Cause of Loss except:
 - (a) The **covered auto**'s collision with another object; or
 - (b) The **covered auto**'s overturn.
- (2) Specified Cause(s) of Loss – for **loss** caused by:
 - (a) Fire, lightning or explosion;
 - (b) Theft;
 - (c) Windstorm, hail or earthquake;
 - (d) Flood;
 - (e) Mischief or vandalism; or
 - (f) The sinking, burning, collision or derailment of any conveyance transporting the **covered auto**.
- (3) Collision Coverage – for **loss** caused

by:

(a) The **covered auto's** collision with another object; or

(b) The **covered auto's** overturn.

b. Towing

We will pay up to the limit shown in the Declarations for towing and labor costs incurred each time a **covered auto** of the private passenger type is disabled. However, the labor must be performed at the place of disablement.

c. Glass Breakage – Hitting a Bird or Animal – Falling Objects or Missiles

We will pay for the following as Comprehensive Coverage:

(a) Glass breakage;

(b) **Loss** caused by hitting a bird or animal; and

(c) **Loss** caused by falling objects or missiles;

provided however,

that **you** have the option of having glass breakage caused by a **covered auto's** collision or overturn considered a **loss** under Collision Coverage.

d. Coverage Extension

We will also pay up to \$15 per day to a maximum of \$450 for transportation expense incurred by **you** because of the total theft of a **covered auto** of the private passenger type. **We** will pay for transportation expenses incurred during the period beginning 48 hours after the theft and ending, regardless of this policy's expiration, when the **covered auto** is returned to use or **we** pay for its **loss**.

2. Limits of Insurance

The most **we** will pay for **loss** in any one **accident** is the lesser of:

a. The actual cash value of the damaged or stolen property as of the time of the **loss**; or

b. The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality.

3. Deductible

For each **covered auto**, **our** obligation to pay for, repair, return or replace damaged or stolen property will be reduced by the applicable deductible shown in the Declarations. Any Comprehensive Coverage deductible shown in the Declarations does not apply to **loss** caused by fire or lightning.

4. Loss Conditions

a. Appraisal

If **you** and **we** disagree on the amount of **loss**, either may demand an appraisal of the **loss**. In this event, each party will select a competent appraiser. The two appraisers will select a competent and impartial umpire. The appraisers will state separately the actual cash value and amount of **loss**. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

(1) Pay its chosen appraiser; and

(2) Bear the other expenses of the appraisal and umpire equally.

If **we** submit to an appraisal, **we** will still retain **our** right to deny the claim.

b. Loss Payment

At **our** option **we** may:

(1) Pay for, repair or replace damaged or stolen property;

(2) Return the stolen property, at our expense. **We** will pay for any damage that results to the **covered auto** from the theft; or

- (3) Take all or any part of the damaged or stolen property at an agreed or appraised value.

SECTION II – EXCLUSIONS

This Foreign Business Auto Liability and Physical Damage Coverage Part does not apply to any of the following:

1. Expected Or Intended Injury

Bodily injury or property damage expected or intended from the standpoint of the insured.

2. Contractual

Liability assumed under any contract or agreement.

But this exclusion does not apply to liability for damages:

- a. Assumed in a contract or agreement that is an **insured contract** provided the **bodily injury or property damage** occurs subsequent to the execution of the contract or agreement; or
- b. That the insured would have in the absence of the contract or agreement.

3. Workers' Compensation

Any obligation for which an insured or an insured's insurer may be held liable under any workers' compensation, disability benefits or unemployment compensation law or any similar law.

4. Employee Indemnification And Employer's Liability

Bodily injury to:

- a. An **employee** of the insured arising out of and in the course of:
 - (1) Employment by the insured; or
 - (2) Performing the duties related to the conduct of the insured's business; or

- b. The spouse, child, parent, brother or sister of that **employee** as a consequence of Paragraph a. above.

This exclusion applies:

- (1) Whether the insured may be liable as an employer or in any other capacity; and
- (2) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

But this exclusion does not apply to **bodily injury** to domestic **employees** not entitled to workers' compensation benefits or to liability assumed by the insured under an **insured contract**. For the purposes of this Foreign Business Auto Liability and Physical Damage Coverage Part, a domestic **employee** is a person engaged in household or domestic work performed principally in connection with a residence premises.

5. Fellow Employee

Bodily injury to any fellow **employee** of the insured arising out of and in the course of the fellow **employee's** employment or while performing duties related to the conduct of **your** business.

6. Care, Custody Or Control

Property damage to property owned or transported by the insured or in the insured's care, custody or control. But this exclusion does not apply to liability assumed under a sidetrack agreement.

7. Handling Of Property

Bodily injury or property damage resulting from the handling of property:

- a. Before it is moved from the place where it is accepted by the insured for movement into or onto the **covered auto**; or
- b. After it is moved from the **covered auto** to the place where it is finally delivered by the

insured.

8. Other Property From Physical Damage

- a. **We** will not pay for **loss** to any of the following:
- (1) Radios, tape players, compact disk players, video cassette recording playback units, digital video disk players or other audio or visual producing equipment, or global positioning satellite equipment unless permanently installed in a **covered auto**;
 - (2) Tapes, disks or other audio or video reproducing devices designed for use with audio or video reproducing equipment;
 - (3) Sound receiving equipment designed for use as a citizens' band radio, two-way mobile radio or telephone or scanning monitor receiver, including its antennas and other accessories, unless permanently installed in the dash or console opening normally used by the **auto** manufacturer for the installation of a radio; or
 - (4) Equipment designed for used for the detection or location of radar or microwave speed detection devices.
- b. **We** will not pay for **loss** caused by or resulting from any of the following unless caused by other **loss** that is covered by this Coverage Part:
- (1) Wear and tear, freezing, mechanical or electrical breakdown; or
 - (2) Blowouts, punctures or other road damage to tires.

9. Movement Of Property By Mechanical Device

Bodily injury or property damage resulting from the movement of property by a mechanical device (other than a hand truck) unless the device is attached to the **covered auto**.

10. Operations

Bodily injury or property damage arising out of the operation of any equipment listed in Paragraphs 6.b. and 6.c. of the definition of **mobile equipment**.

11. Completed Operations

Bodily injury or property damage arising out of **your** work after that work has been completed or abandoned.

In this exclusion, **your** work means:

- a. Work or operations performed by **you** or on **your** behalf; and
- b. Materials, parts or equipment furnished in connection with such work or operations.

Your work includes warranties or representations made at any time with respect to the fitness, quality, durability or performance of any of the items included in Paragraphs a. or b. above.

Your work will be deemed completed at the earliest of the following times:

- (1) When all of the work called for in **your** contract has been completed.
- (2) When all of the work to be done at the site has been completed if **your** contract calls for work at more than one site.
- (3) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

12. Pollution

Bodily injury or property damage arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of **pollutants**:

- a. That are, or that are contained in any property that is:
 - (1) Being transported or towed by, handled, or handled for movement into, onto or from, the **covered auto**;
 - (2) Otherwise in the course of transit by or on behalf of the insured; or
 - (3) Being stored, disposed of, treated or processed in or upon the **covered auto**;
- b. Before the **pollutants** or any property in which the **pollutants** are contained are moved from the place where they are accepted by the **pollutants** for movement into or onto the **covered auto**; or
- c. After the **pollutants** or any property in which the **pollutants** are contained are moved from the **covered auto** to the place where they are finally delivered, disposed of or abandoned by the insured.

Paragraph a. above does not apply to fuels, lubricants, fluids, exhaust gases or other similar **pollutants** that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the **covered auto** or its parts, if:

- (1) The **pollutants** escape, seep, migrate, or are discharged, dispersed or released directly from an **auto** part designed by its manufacturer to hold, store, receive or dispose of such **pollutants**; and
- (2) The **bodily injury or property damage** does not arise out of the operation of any equipment listed in Paragraphs 6.b. and 6.c. of the definition of **mobile equipment**.

Paragraphs b. and c. above of this exclusion do not apply to **accidents** that occur away from premises owned by or rented to an insured with respect to **pollutants** not in or upon a **covered auto** if:

- (1) The **pollutants** or any property in which

the **pollutants** are contained are upset, overturned or damaged as a result of the maintenance or use of a **covered auto**; and

- (2) The discharge, dispersal, seepage, migration, release or escape of the **pollutants** is caused directly by such upset, overturn or damage.

13. War

Bodily injury or property damage arising directly or indirectly as a result of or in connection with war, whether declared or not, or any act or condition incident to war. War includes civil war, insurrection, invasion, act of foreign enemy, civil commotion, factional civil commotion, military or usurped power, rebellion or revolution.

14. Racing

Covered autos while used in any professional or organized racing or demolition contest or stunting activity, or while practicing for such contest or activity. This insurance also does not apply while that **covered auto** is being prepared for such a contest or activity.

15. Airside Premises

Bodily injury or property damage caused by an **accident** and resulting from the ownership, maintenance or use of a **covered auto** by **you** or **your** employees in the course of **your** business if such business takes place within the confines of restricted access areas of an airport and its premises, including without limitation airfields, airfield structures, terminals, terminal structures, runways, and hangars. This exclusion does not apply to **accidents** which take place within the areas of an airport or its premises if such areas are open to automobile use by the general public.

16. Terrorism

Bodily injury or property damage arising directly or indirectly as a result of or in connection with **terrorism** including, but not limited to, any contemporaneous or ensuing **bodily injury or property damage** caused by fire, looting or theft.

17. Nuclear

a. **Bodily injury or property damage:**

- (1) With respect to which an insured under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability;
- (2) Resulting from the **hazardous properties of nuclear material** and with respect to which (a) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or (b) the insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization; or
- (3) Under Medical Expense Coverage or under any provision relating to first aid, to expenses incurred with respect to **bodily injury** resulting from the **hazardous properties of nuclear material** and arising out of the operation of a **nuclear facility** by any person or organization.

b. **Bodily injury or property damage** resulting from **hazardous properties of nuclear material**, if:

- (1) The **nuclear material** (a) is at any **nuclear facility** owned by, or operated by or on behalf of, an insured or (b) has been discharged or dispersed therefrom;
- (2) The **nuclear material** is contained in **spent fuel or waste** at any time possessed, handled, used, processed, stored, transported or disposed of, by

or on behalf of an insured; or

- (3) The **bodily injury or property damage** arises out of the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any **nuclear facility**, but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (3) applies only to **property damage** to such **nuclear facility** and any property thereat.

SECTION III – LIMITS OF INSURANCE

1. Coverage A And Coverage B

- a. Regardless of the number of **covered autos**, insureds, premiums paid, claims made or vehicles involved in the **accident**, the most **we** will pay for the total of all damages resulting from any one **accident** is the Limits of Insurance for Liability Coverage shown in the Foreign Business Auto Liability and Physical Damage Schedule of Limits.
- b. All **bodily injury or property damage** resulting from continuous or repeated exposure to substantially the same conditions will be considered as resulting from one **accident**. No one will be entitled to receive duplicate payments for the same elements of loss under this Foreign Business Auto Liability and Physical Damage Coverage Part.

2. Coverage C

The most we will pay for **loss** to a **covered auto** or its equipment from any Cause of Loss is the Limit of Insurance for Physical Damage shown in the Foreign Business Auto Liability and Physical Damage Schedule of Limits.

SECTION IV – CONDITIONS

1. Loss Conditions

- a. Duties In The Event Of **Accident**, Claim Or **Suit**

We have no duty to provide coverage under this Foreign Business Auto Liability and Physical Damage Coverage Part unless there has been full compliance with the following duties:

In the event of **accident**, claim or **suit**, **you** must give **us** or **our** authorized representative prompt notice of the **accident**. Include:

- (1) How, when and where the **accident** occurred;
 - (2) The insured's name and address; and
 - (3) To the extent possible, the names and addresses of any injured persons and witnesses.
- b. Additionally, **you** and any other involved insured must:
- (1) Assume no obligation, make no payment or incur no expense without **our** consent, except at the insured's own cost.
 - (2) Immediately send **us** copies of any request, demand, order, notice, summons or legal paper received concerning the claim or **suit**.
 - (3) Cooperate with **us** in the investigation or settlement of the claim or defense against the **suit**.
 - (4) Authorize **us** to obtain medical records or other pertinent information.
 - (5) Submit to examination, at **our** expense, by physicians of **our** choice, as often as **we** reasonably require.
- c. If there is loss to a **covered auto** or its equipment **you** must also do the following:
- (1) Promptly notify the police if the **covered auto** or any of its equipment is stolen.
 - (2) Take all reasonable steps to protect the **covered auto** from further damage. Also keep a record of **your** expenses for consideration in the settlement of

the claim.

- (3) Permit **us** to inspect the **covered auto** and records proving the **loss** before its repair or disposition.
- (4) Agree to examinations under oath at **our** request and give **us** a signed statement of **your** answers.

2. Legal Action Against Us

No one may bring a legal action against **us** under this Foreign Business Auto Liability and Physical Damage Coverage Part until:

- a. There has been full compliance with all the terms of this Foreign Business Auto Liability and Physical Damage Coverage Part; and
- b. Under Coverage A, **we** agree in writing that the insured has an obligation to pay or until the amount of that obligation has finally been determined by judgment after trial. No one has the right under this policy to bring **us** into an action to determine the insured's liability.

SECTION V – GENERAL CONDITIONS

The following Conditions apply in addition to the Common Conditions:

1. Bankruptcy

Bankruptcy or insolvency of the insured or the insured's estate will not relieve **us** of any obligations under this Foreign Business Auto Liability and Physical Damage Coverage Part.

2. Concealment, Misrepresentation Or Fraud

This Foreign Business Auto Liability and Physical Damage Coverage Part is void in any case of fraud by **you** at any time as it relates to this Foreign Business Auto Liability and Physical Damage Coverage Part. It is also void if **you** or any other insured, at any time, intentionally conceal or misrepresent a material

fact concerning:

- a. This Foreign Business Auto Liability and Physical Damage Coverage Part;
- b. The **covered auto**;
- c. **Your interest** in the **covered auto**; or
- d. A claim under this Foreign Business Auto Liability and Physical Damage Coverage Part.

3. No Benefit To Bailee – Physical Damage Coverages

We will not recognize any assignment or grant any coverage for the benefit of any person or organization holding, storing or transporting property for a fee regardless of any other provision of this Foreign Business Auto Liability and Physical Damage Coverage Part.

4. Other Insurance

- a. For any **covered auto** the insurance provided by this Foreign Business Auto Liability and Physical Damage Coverage Part is excess over any other collectible insurance. All payments made under any local policy issued to **you** by **us** or any other insurance company will reduce the Limits of Insurance of this policy.
- b. Coverage is also provided under this Foreign Business Auto Liability and Physical Damage Coverage Part for difference in conditions between this insurance and that provided by any other valid and collectible insurance available to the insured.

5. Warranty And Maintenance Of Underlying Insurance

With respect to **owned autos** and owned **private passenger autos** and for as long as **our** policy is in effect:

- a. In any country where a compulsory automobile liability insurance law is in force, the coverage provided by this policy shall be excess of and reduced by the limit of such local compulsory Insurance.

- b. In any country where the compulsory requirement applies only to **bodily injury** liability, the insured shall, in addition, purchase **property damage** liability coverage for a limit of at least the equivalent of US \$10,000 each **accident**, and the coverage provided by this Foreign Business Auto Liability and Physical Damage Coverage Part shall be excess of and reduced by the limit of such coverage.
- c. In any country where there is no compulsory automobile liability insurance law in force, the insured shall procure local insurance for limits of at least the equivalent of US\$10,000 each person/\$20,000 each **accident** from **bodily injury** liability and US \$10,000 each **accident** for **property damage** liability. The coverage provided by this policy shall be excess of and reduced by the limits of such coverage.
- d. If the insured does not procure underlying insurance as stipulated in Paragraphs a., b. and c. above, the coverage provided hereunder shall apply in the same manner and to the same extent as though local underlying insurance as herein required had been available to the insured.

6. Policy Term; Coverage Territory

Under this Foreign Business Auto Liability and Physical Damage Coverage Part, **we** cover **accidents** that occur during the Policy Term shown in the Declarations and within the **coverage territory**.

SECTION VI – DEFINITIONS

- 1. **Accident** includes continuous or repeated exposure to the same conditions resulting in **bodily injury** or **property damage**.
- 2. **Auto** means a land motor vehicle, **trailer** or semitrailer designed for travel on public roads but does not include **mobile equipment**.
- 3. **Bodily injury** means bodily injury, sickness or disease sustained by a person including death resulting from any of these.

4. **Covered autos** means **owned autos, owned private passenger autos, hired autos or nonowned autos** for which there is coverage under this Foreign Business Auto Liability and Physical Damage Coverage Part as indicated in the Declarations.
5. **Employee** includes a **leased worker**. **Employee** does not include a **temporary worker**.
6. **Hazardous properties** includes radioactive, toxic or explosive properties.
7. **Hired autos** means those **autos you** lease, hire, rent or borrow for less than sixty (60) consecutive days. This does not include any **autos you** lease, hire, rent or borrow from any of **your** employees, partners (if **you** are a partnership), members (if **you** are a limited liability company) or members of their households.
8. **Insured contract** means:
 - a. A lease of premises;
 - b. A sidetrack agreement;
 - c. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
 - d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
 - e. That part of any other contract or agreement pertaining to **your** business (including an indemnification of a municipality in connection with work performed for a municipality) under which **you** assume the tort liability of another to pay for **bodily injury or property damage** to a third party or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.
 - f. That part of any contract or agreement entered into, as part of **your** business, pertaining to the rental or lease, by **you** or any of **your employees**, of any **auto**. However, such contract or agreement shall

not be considered an **insured contract** to the extent that it obligates **you** or any of **your employees** to pay for **property damage** to any **auto** rented or leased by **you** or any of **your employees**.

An **insured contract** does not include that part of any contract or agreement:

- (1) That indemnifies a railroad for **bodily injury or property damage** arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing; or
 - (2) That pertains to the loan, lease or rental of an **auto** to **you** or any of **your employees**, if the **auto** is loaned, leased or rented with a driver; or
 - (3) That holds a person or organization engaged in the business of transporting property by **auto** for hire harmless for **your** use of a covered **auto** over a route or territory that person or organization is authorized to serve by public authority.
9. **Leased worker** means a person leased to **you** by a labor leasing firm under an agreement between **you** and the labor leasing firm, to perform duties related to the conduct of **your** business. **Leased worker** does not include a **temporary worker**.
 10. **Loss** means direct and accidental loss or damage.
 11. **Mobile equipment** means any of the following types of land vehicles, including any attached machinery or equipment:
 - a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
 - b. Vehicles maintained for use solely on or next to premises **you** own or rent;
 - c. Vehicles that travel on crawler treads;

- d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - (1) Power cranes, shovels, loaders, diggers or drills; or
 - (2) Road construction or resurfacing equipment such as graders, scrapers or rollers.
- e. Vehicles not described in Paragraphs a., b., c. or d. above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
 - (1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or
 - (2) Cherry pickers and similar devices used to raise or lower workers.
- f. Vehicles not described in Paragraphs a., b., c. or d. above maintained primarily for purposes other than the transportation of persons or cargo. However, self-propelled vehicles with the following types of permanently attached equipment are not **mobile equipment** but will be considered **autos**:
 - (1) Equipment designed primarily for:
 - (a) Snow removal;
 - (b) Road maintenance, but not construction or resurfacing; or
 - (c) Street cleaning;
 - (2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and
 - (3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting or well servicing equipment.

12. **Nonowned Autos** means those **autos you** do not own, lease, hire, rent or borrow that are used in connection with **your** business. This includes **autos** owned by **your employees**, partners (if **you** are a partnership), members (if **you** are a limited liability company), or members of their households but only while used in **your** business or **your** personal affairs.

13. **Nuclear facility** means:

- a. Any **nuclear reactor**;
 - b. Any equipment or device designed or used for:
 - (1) separating the isotopes of uranium or plutonium;
 - (2) processing or utilizing **spent fuel**; or
 - (3) handling, processing or packaging **waste**;
 - c. Any equipment or device used for the processing, fabricating or alloying of **special nuclear material** if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
 - d. Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of **waste**;
- and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

14. **Nuclear material** means **source material**, **special nuclear material** or **by-product material**.

15. **Nuclear reactor** means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

16. **Owned autos** means the **autos you** own or lease for more than sixty (60) consecutive

days. This includes those **autos you** acquire ownership of after the policy begins.

17. **Owned private passenger autos** means the private passenger **autos you** own or lease for more than sixty (60) consecutive days. This includes those private passenger **autos you** acquire ownership of after the policy begins.
18. **Pollutants** means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.
19. **Property damage** means damage to or loss of use of tangible property, and as used in the Nuclear Energy exclusion of this Foreign Business Auto Liability and Physical Damage Coverage Part includes all forms of radioactive contamination of property.
20. **Source material, special nuclear material, and by-product material** have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.
21. **Spent fuel** means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a **nuclear reactor**.
22. **Temporary worker** means a person who is furnished to **you** to substitute for a permanent **employee** on leave or to meet seasonal or

short-term workload conditions.

23. **Terrorism** means the use or threatened use of force or violence against persons or property, or commission of an act dangerous to human life or property, or commission of an act that interferes with or disrupts an electronic or communication system, undertaken by any person or group, whether or not acting on behalf of or in connection with any organization, government, power, authority or military force, when the effect is to intimidate or coerce a government, the civilian population or any segment thereof, or to disrupt any segment of the economy.

Terrorism shall also include an act which is verified or recognized by the United States Government as an act of **terrorism**.

24. **Trailer** includes semitrailer.

25. **Waste** means any waste material:

- a. containing **by-product material** other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its **source material** content; and
- b. resulting from the operation by any person or organization of any **nuclear facility** included under the first two paragraphs of the definition of **nuclear facility**.

FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART

PLEASE READ THIS ENTIRE FORM CAREFULLY

Various provisions in this coverage part restrict coverage. Please read it, the COMMON CONDITIONS AND DEFINITIONS, the Declarations page, endorsements, and other attachments carefully and fully to determine rights, duties and what is and is not covered.

Words and phrases appearing in bold type also have special meaning, as set forth in "SECTION II - COMMON DEFINITIONS" of the COMMON CONDITIONS AND DEFINITIONS and in "PART - SIX DEFINITIONS" below.

In return for the payment of the premium and subject to all terms of this coverage part, **we** agree with **you** as follows:

GENERAL SECTION

A. The Coverage Part

This coverage part includes at its effective date the Declarations page and all endorsements and schedules applicable thereto and listed on the SCHEDULE OF DOCUMENTS or attached thereto. It is a contract of insurance between **you** and **us**. The only agreements relating to this insurance are stated in this Coverage Part. The terms of this coverage part may not be changed or waived except by endorsement issued by **us** to be part of this coverage part.

This coverage part is purchased at **your** discretion. This coverage part is not a substitute for legally mandated workers compensation insurance for statutory benefits pursuant to any applicable workers compensation law, social security plan, scheme, or fund whether private or state sponsored.

B. Who is Insured

You are insured if **you** are an employer listed as Named Insured(s) in the Declarations page. If that employer is a partnership, and if **you** are one of its partners, **you** are insured, but only in **your** capacity as an employer of the partnership's **employees**.

C. Employment Injury Benefit(s)

The **Employment Injury Benefit** is calculated in accordance with the benefits prescribed by the workers or workmen's compensation law and occupational disease law of the state, territory, province or country named in the column entitled "Part One - Employee Injury Benefits Insurance" in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS, as if those benefits applied. The calculation will include any amendments to that law which come into effect during the policy term. It does not include any calculation of benefits prescribed by a **United States** federal workers compensation law, any **United States** federal occupational disease law or the provisions of any law that provides non-occupational disability benefits.

D. Locations

This coverage part covers all of **your** workplaces designated in the Business Operation(s) section of the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS unless excluded or otherwise indicated.

PART ONE - EMPLOYEE INJURY BENEFIT INSURANCE (INCLUDING SUPPLEMENTAL REPATRIATION EXPENSE)

A. How This Insurance Applies

This insurance applies to employment-related **injury** to a person who is a member of a **Classification of Employees** which is designated as covered by indicating an **Employment Injury Benefit** under "Part One - Employee Injury Benefits Insurance" in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS for whom coverage applies as follows:

1. **Injury** by accident must occur during the policy term.
2. **Injury** by disease must be caused or aggravated by the conditions of employment by **you**. The **employee's** last day of last exposure to the conditions causing or aggravating such **injury** by disease must occur in the **Coverage Territory** and during the policy term.
3. **Injury** by endemic disease must reasonably be thought to have contracted by **your employee** by being in a place as a result of employment by **you**. The **employee** must have been in a place where the disease contracted is known to occur. The time the **employee** was in the place where the disease was contracted must have been within the policy term. The employee's last day of last exposure to the conditions causing or aggravating such **injury** by endemic disease must occur during the Term.
4. **Injury** must occur in the **Coverage Territory** except as respects 7 below.
5. **Injury** to a **Local Hire or National** must occur in the **Coverage Territory** and while such **employee** is on a **Business Trip**.
6. **Injury** to a **U.S. Employee Traveler** and a **Canadian Employee Traveler** must occur in the **Coverage Territory** and while such **employee** is outside the **United States** or Canada on a **Business Trip**.
7. **Injury** to a **Third Country National**, a **Local Hire or National**, a **U.S. Employee**, or a **Canadian Employee** may also occur inside the **United States** or Canada while such **employee** is on a **Business Trip** (sometimes referred to as "Reverse Trip Travel Coverage"). However, coverage does not apply to a **U.S. Employee Traveler** or a **Canadian Employee Traveler** while such **employee** is on a **Business Trip** within the **United States** or Canada.

B. We Will Pay

1. We will pay on **your** behalf or indemnify **you** where paying on **your** behalf is not possible the compensation, medical and other benefits of the **Employment Injury Benefit** designated in the column entitled "Part One - Employee Injury Benefits Insurance" in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS. The applicable **Employment Injury Benefit** will be determined as follows:
 - a. **U.S. Employee and/or U.S. Employee Traveler:**
 - i. If the words "State of Hire" appear in the row for **U.S. Employee** and/or **U.S. Employee Traveler**, then the **Employment Injury Benefit** payable under this coverage part will be calculated based on the benefits of the state:
 - a) indicated in the **employee's** employment contract, or
 - b) of the **employee's** last usual workplace in the **United States**.
 - ii. If a specified state appears in such row, then the **Employment Injury Benefit** payable under this coverage part will be calculated based on the state so indicated.
 - b. **Canadian Employee and/or Canadian Traveler:**
 - i. If the words "Province of Hire" appear in the row for **Canadian Employee** and/or **Canadian Employee Traveler** then the **Employment Injury Benefit** payable under this coverage part will be calculated based on the benefits of the Canadian province or territory:
 - a) indicated in the **employee's** employment contract, or
 - b) of the **employee's** last usual workplace in Canada.
 - ii. If a specified Canadian province or territory appears in such row, then the **Employment Injury Benefit** payable under this coverage part will be calculated based on the benefits of the Canadian province or territory so indicated.
 - c. **Third Country National:**
 - i. If the words "Country of Hire" appear in the row for **Third Country National**, then the **Employment Injury Benefit** payable under this coverage part will be calculated based on the benefits of the country, state, province or territory:
 - a) indicated in the **employee's** employment contract, or
 - b) of the **employee's** citizenship.
 - ii. If a specified country, state, province or territory appears in such row, then the

Employment Injury Benefit payable under this coverage part will be calculated based on the benefits of the country, state, province or territory so indicated.

d. **Local Hire or National:**

- i. If the words "Country of Hire" appear in the row for **Local Hire or National**, then the **Employment Injury Benefit** payable under this coverage part will be calculated based on the benefits of the country, state, province or territory of the **employee's** usual workplace.

If no entry is shown in the column entitled "PART ONE - Employee Injury Benefits Insurance" or if "NOT COVERED" is designated for any **Classification of Employee** then no coverage shall apply.

2. First Response and 24 Hour Coverage for **Business Trips**:

When **injury** occurs while an **employee** who is a member of a covered **Classification of Employee** is on a **Business Trip**, **we** will pay on **your** behalf, or indemnify **you** where paying on **your** behalf is not possible, the **Employment Injury Benefit** designated in the column entitled "PART ONE - Employee Injury Benefits Insurance". **We** will pay the applicable **Employment Injury Benefit** on a primary basis until **you** or the injured **employee** or his or her dependent(s):

- a. Are fully reimbursed or compensated pursuant to the benefits payable under this "PART ONE" or
- b. Make a claim for statutory benefits pursuant to any applicable workers compensation law, social security plan, scheme, or fund whether private or state sponsored, the insurance for which is legally mandated, in which case **we** will proceed per paragraph "B. Other Insurance" of "PART FIVE - Conditions".

C. **We Will Also Pay**

We will also pay these costs or reimburse **you** for these costs in addition to benefits otherwise payable under this "PART ONE":

1. Supplemental Repatriation Expense, as follows:

- a. Any additional expenses incurred by **you** due to the repatriation of an injured **employee** provided that:
 - i. The injured **employee** is a member of a **Classification of Employee** designated as "Covered" under the column titled "PART ONE - Supplemental Repatriation Expense" in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS,
 - ii. Repatriation is to the injured **employee's** country of citizenship, hire or permanent residence, and
 - iii. Such additional expenses are reasonable and incurred as a direct result of an **injury** covered by this coverage part either:
 - (a) resulting from an accident in the **Coverage Territory**, or
 - (b) resulting from an accident in the **United States** and Canada but not if the injured **employee** is a **U.S. Employee Traveler** or a **Canadian Employee Traveler**.
- b. **Our** obligation for such Supplemental Repatriation Expense shall be limited to the amount by which such expenses exceed the normal cost of returning the injured **employee** if such **employee** was in good health, or, in the event of death, to the amount by which such expenses exceed the normal cost of returning such **employee** if alive and in good health.
- c. In no event shall **our** obligation exceed the "Limit of Liability for Part One - Supplemental Repatriation Expense" indicated in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS.

2. In addition to amounts payable for benefits under this "PART ONE" **we** will also pay these costs as part of any claim, proceeding or **suit** for benefits payable under this coverage part which **we** defend:

- a. Reasonable expenses incurred at **our** request, but not loss of earnings;
- b. Premiums for bonds to release attachments and for appeal bonds in bond amounts up to the amount payable under this insurance;

- c. Litigation costs taxed against **you**;
- d. Interest on a judgment as required by law until **we** offer the amount due under this insurance; and
- e. Expenses **we** incur.

D. We Will Defend

We have the right and duty to defend at **our** expense any claim, proceeding or **suit** against **you** for benefits payable by this insurance. **We** have the right to investigate and settle these claims, proceedings or **suits**.

We have no duty to defend a claim, proceeding or **suit** that is not covered by this insurance.

E. Payments You Must Make

You are responsible for the following payments in excess of the benefits regularly provided by the **Employment Injury Benefit(s)** required because:

1. Of **your** serious and willful misconduct;
2. **You** knowingly employ an **employee** in violation of law;
3. **You** fail to comply with a health or safety law or regulation; or
4. **You** discharge, coerce or otherwise discriminate against any **employee** in violation of any applicable law.

If **we** make any payments in excess of the benefits regularly provided by this "PART ONE" on **your** behalf, **you** will reimburse **us** promptly.

F. Recovery From Others

Notwithstanding anything to the contrary in 1. Transfer To **Us** Of Rights Of Recovery Against Others of "SECTION I - COMMON CONDITIONS", of the COMMON CONDITIONS AND DEFINITIONS **we** have **your** rights, and the rights of persons entitled to the benefits of this insurance, to recover **our** payments from anyone liable for the **injury**. **You** will do everything necessary to protect those rights for **us** and to help **us** enforce them.

G. Conditions and Limitations

1. **We** may request that **you** pay any sums due under this "PART ONE" directly to the persons entitled thereto. Upon **our** satisfactory receipt from **you** of proof of such payments, **we** will reimburse **you** for such payments.
2. Payment to any person under this "PART ONE" shall constitute an assignment to **us** of any right of action and the proceeds thereof which he or she may have against any person or organization, other than **you**, who or which is liable for such **injury**. If, by virtue of such assignment, **we** collect an amount in excess of the payments made or agreed to be made under this "PART ONE", **we** shall be entitled to, and shall retain from such amount, **our** expenses incidental to such recovery together with the amount of the payments made or agreed to be made under this "PART ONE" and **we** shall then pay any remaining balance of the amount recovered to the injured **employee**, as applicable. **We** shall have full power and discretion to proceed against the person or organization at fault, and to settle with such party upon terms acceptable to **us** and them.
3. If an **employee** entitled to payment under this "PART ONE" refuses to accept or refuses to continue receiving payments offered hereunder, or if **you** request that **we** refuse to offer or that **we** discontinue making such payments, **we**, in **our** discretion, may refuse to make such offer or may withdraw, without notice, any offer or undertaking **we** have previously made, in which event **our** obligation and liability shall be subject instead to the provisions of "PART TWO". Any claim, **suit** or demand made or prosecuted against **you** or **us** for damages for such **injury** shall be interpreted as and shall constitute a refusal to accept such payments.
4. In the event **you** or **we**, under this coverage part or any other policy issued to **you** by **us**, are held legally liable in an employers liability **suit** covered under "PART TWO" for any **injury** for which payments have been made or are payable under this "PART ONE", such payments shall be applied to and credited towards the limits of liability for which **we** are liable under "PART TWO."

H. Exclusions

The insurance under this "PART ONE" does not cover:

1. Payments to be made in any jurisdiction in which this coverage part may be prohibited by statute, regulation, or local law.
2. Statutory benefits pursuant to any applicable workers compensation law, social security plan, scheme, or fund whether private or state sponsored, the insurance for which is legally mandated.

PART TWO - EMPLOYERS LIABILITY INSURANCE

A. How This Insurance Applies

This employers liability insurance applies to **suits** against **you** for **injury** to an **employee** who is a member of a **Classification of Employee** designated as "Covered" under the column "PART TWO - Employers Liability" in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS, as follows:

1. The **injury** must arise out of and in the course of the injured **employee's** employment by **you**.
2. The employment must be necessary or incidental to **your** work in the **Coverage Territory**.
3. **Injury** by accident must occur during the policy term.
4. **Injury** by disease must be caused or aggravated by the conditions of employment by **you**. The **employee's** last day of last exposure to the conditions causing or aggravating such **injury** by disease must occur in the **Coverage Territory** and during the policy term.
5. **Injury** by endemic disease must reasonably be thought to have been contracted by **your employee** by being in a place as a result of employment by **you**. The **employee** must have been in such place where the disease contracted is known to occur. The time the **employee** was in the place where the disease was contracted must have been within the policy term.
6. **Injury** must occur in the **Coverage Territory** except as respects 8 below.
7. **Injury** to a **U.S. Employee Traveler** and a **Canadian Employee Traveler** must occur only in the **Coverage Territory** and while such **employee** is outside the **United States** or Canada on a **Business Trip**.
8. **Injury** to a **Third Country National**, a **Local Hire or National**, a **U.S. Employee** or a **Canadian Employee** may also occur inside the **United States** or Canada while such **Employee** is on a **Business Trip** (sometimes referred to as "Reverse Trip Travel Coverage"). However coverage does not apply to a **U.S. Employee Traveler** or a **Canadian Employee Traveler** while such **employee** is on a **Business Trip** within the **United States** or Canada.
9. The original **suit** and any related legal actions may be brought anywhere in the world except Australia, Argentina or Ireland.

B. We Will Pay

1. **We** will pay on **your** behalf, or indemnify **you** where paying on **your** behalf is not possible, all sums **you** legally must pay as damages because of **injury** to **your employees**, provided the **injury** is covered by this "PART TWO".
2. The damages **we** will pay on **your** behalf, or indemnify **you** where paying voluntarily on **your** behalf is not possible, include damages:
 - a. For which **you** are liable to a third party by reason of a claim or **suit** against **you** by that third party to recover the damages claimed against such third party as a result of **injury** to **your employee**;
 - b. For care and loss of services; and
 - c. For consequential **injury** to a spouse, child, parent, brother or sister of the injured **employee**;provided that these damages are the direct consequence of **injury** that arises out of and in the course of the injured **employee's** employment by **you**; and
 - d. Because of **injury** to **your employee** that arises out of and in the course of employment, claimed against **you** in a capacity other than as employer.

C. We Will Also Pay

We will also pay these costs, in addition to other amounts payable under this "PART TWO", as part of any claim, proceeding, or **suit we** defend:

1. Reasonable expenses incurred at **our** request, but not loss of earnings;
2. Premiums for bonds to release attachments and for appeal bonds in bond amounts up to the limits of **our** liability under this insurance;
3. Litigation costs taxed against **you**;
4. Interest on a judgment as required by law until **we** offer the amount due under this insurance; and
5. Expenses **we** incur.

D. Exclusions

The insurance under this "PART TWO" does not cover:

1. Payments to be made in any jurisdiction in which this policy may be prohibited by statute, regulation, or local law.
2. **Injury** by disease, unless prior to 36 months after the end of the policy term written claim is made or **suit** is brought against **you** for damages arising from such **injury**.
3. **Injury**, damages, claim or **suit** for any consequence, whether direct or indirect, proximately or remotely, occasioned by or contributed to by **War**.
4. **Injury**, damages, claim or **suit** for any consequence, whether direct or indirect, proximately or remotely, occasioned by or contributed to by **Terrorism**.
5. Liability assumed under a contract. This exclusion does not apply to a warranty that **your** work will be done in a workmanlike manner.
6. Punitive or exemplary damages because of **injury** to any **employee** employed in violation of law.
7. **Injury** to an **employee** while employed in violation of law with **your** actual knowledge or the actual knowledge of any of **your** executive officers.
8. **Injury** intentionally caused or aggravated by **you**.
9. Damages arising out of coercion, criticism, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination against or termination of any **employee**, or any personnel practices, policies, acts or omissions.
10. **Suits** for statutory benefits and or liability pursuant to any applicable workers compensation law, employer's liability law, social security plan, scheme, or fund whether private or state sponsored, the insurance for which is legally mandated.
11. **Injury** to any person in work subject to the Longshore and Harbor Workers Compensation Act (33 USC Sections 901-950), the Non-appropriated Fund Instrumentalities Act (5 USC Sections 8171-8173), the Outer Continental Shelf Lands Act (43 USC Sections 1331-1356), the Defense Base Act (42 USC Sections 1651-1654), the Federal Coal Mine Health and Safety Act of 1969 (30 USC Sections 901-942), any other federal workers or workmen's compensation law or other federal occupational disease law, or any amendments to these laws.
12. **Injury** to any person in work subject to the Federal Employers' Liability Act (45 USC Sections 51-60), any other federal laws obligating an employer to pay damages to an **employee** due to **injury** arising out of or in the course of employment, or any amendments to those laws.
13. Damages payable under the Migrant and Seasonal Agricultural Worker Protection Act (29 USC Sections 1801-1872) and under any other federal law awarding damages for violation of those laws or regulations issued hereunder, and any amendments to those laws.
14. **Injury** to a master or member of the crew of any vessel.
15. Fines or penalties imposed for violation of any law.

E. We Will Defend

We have the right and duty to defend, at **our** expense, any claim, proceeding or **suit** against **you** for damages payable under this insurance. **We** have the right to investigate and settle these claims, proceedings and **suits**.

We have no duty to defend a claim, proceeding or **suit** that is not covered under this "PART TWO". **We** have no duty to defend or continue defending after **we** have paid **our** applicable limits of liability under this "PART TWO".

F. Limits of Liability

Our liability to pay for damages under this "PART TWO" is limited. **Our** limits of liability are shown in "Limits of Liability for Part Two - Employers Liability" of the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS. They apply as explained below:

1. **Injury by Accident**
The limit shown for "**Injury** by Accident-Each Accident" is the most **we** will pay for all damages covered by this insurance because of **injury** to one or more **employees** in any one accident. A disease is not **injury** by accident unless it results directly from **injury** by accident.
2. **Injury by Disease.**
The limit shown for "**Injury** by Disease-Coverage Part Limit" is the most **we** will pay for all damages covered by this insurance and arising out of **injury** by disease, regardless of the number of **employees** who sustain **injury** by disease. The limit shown for "**Injury** by disease-Each **employee**" is the most **we** will pay for all damages because of **injury** by disease to any one **employee**.
Injury by disease does not include disease that results directly from **injury** by accident.
3. **We** will not pay any claims for damages after **we** have paid the applicable limit of **our** liability under this insurance.

G. Recovery From Others

We have **your** rights, and the rights of persons entitled to the benefits of this insurance, to recover **our** payments from anyone liable for the **injury**. **You** will do everything necessary to protect those rights for **us** and to help **us** enforce them.

H. Conditions and Limitations

1. In the event **you** or **we**, under this coverage part or any other policy issued to **you** by **us**, are held legally liable in an employers liability **suit** covered under this "PART TWO" in respect of any **injury** for which payments have been made or are payable under "PART ONE" of this coverage part, such payments shall be applied to and credited towards the limits of liability for which **we** are liable under this "PART TWO".
2. There will be no right of action against **us** under this insurance unless:
 - a. **You** have complied with all the terms of this coverage part; and
 - b. The amount **you** owe has been determined with **our** consent or by actual trial and final judgment.
3. This insurance does not give anyone the right to add **us** as a defendant in an action against **you** to determine **your** liability. The bankruptcy or insolvency of **you** or **your** estate will not relieve **us** of **our** obligations under this "PART TWO".

PART THREE - YOUR DUTIES IF INJURY OCCURS

Tell **us** as soon as practicable if **injury** occurs that may be covered by this coverage part. **Your** other duties are listed here:

1. Provide for prompt medical and other services.
2. Give **us** the names and addresses of any persons who suffer **injury** and of any witnesses, and other information **we** may need.
3. Promptly give **us** all notices, demands and legal papers related to the **injury**, claim, proceeding or **suit**.
4. Cooperate with **us** and assist **us**, as **we** may request, in the investigation, settlement or defense of any claim, proceeding or **suit**.
5. Do nothing after an **injury** occurs that would interfere with **our** right to recover from others.

6. Do not voluntarily make payments, assume obligations or incur expenses, except at **your** own cost.
7. Notwithstanding the foregoing, **you** are solely responsible for the proper reporting, administration and/or notice of any employment related **injury** or claim pursuant to **your** obligations, as required by law. Notification to **us** does not relieve **you** of **your** obligations.

PART FOUR - PREMIUM

A. Classifications

The covered **Classification of Employees** are shown in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS. The premium basis for each classification was assigned based on an estimate of the exposures **you** would have during the policy term. Coverage part schedules and relating endorsements show the premium for these classifications. Except when "NOT COVERED" is indicated for one or more **Classification of Employee**, If **your** actual exposures are not accurately assigned by **Classification of Employee**, **we** reserve the right to assign the premium basis to the proper **Classification of Employee**, and apply appropriate rates and premium by endorsement to this coverage part.

B. Premium Basis

The premium shown for the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART in the Declarations page is determined by multiplying a rate times the exposure for each premium basis shown for a **Classification of Employee**.

1. **Remuneration** is the most common premium basis.
2. **Person-Weeks** and or **Person-Trips** may also be a premium basis for determining premium for all or some of the **employees** in a certain **Classification of Employee**.

C. Premium Payments

We will compute all premiums for this coverage part in accordance with rates and any other charges stated in the schedules and endorsements attached to this policy. The first Named Insured shown in the Declarations page is responsible for the payment of all premiums when due and will be the payee for any return premium.

D. Final Premium

The premium shown on the Declarations page, schedules, and endorsements is an estimate. The final premium will be determined after this policy term ends by using the actual, not the estimated, premium basis the proper classifications and rates that apply to the business operations and locations covered by this coverage part. If the final premium is more than the premium **you** paid to **us**, the first named insured in the Declarations page must pay **us** the balance when due. If it is less, **we** will refund the balance to **you**. The final premium will not be less than the Minimum Earned Premium.

If this coverage part or policy is canceled, final premium for this coverage part will be determined in the following way:

1. If **we** cancel, final premium for the coverage part will be calculated pro rata based on the time this policy was in force. Final premium will not be less than the pro rata share of the Minimum Earned Premium.
2. If **you** cancel, final premium for the coverage part will be more than pro rata. It will be based on the time this policy was in force, and increased by the short-rate cancellation table and procedure. Final premium will not be less than the Minimum Earned Premium.

E. Records

You will keep records of information needed to compute premium. **You** will provide **us** with copies of those records when **we** ask for them.

F. Audit

You will let **us** examine and audit all **your** records that relate to this coverage part. These records include ledgers, journals, registers, vouchers, contracts, tax reports, payroll and disbursement records, and programs for storing and retrieving data. **We** may conduct the audits during regular business hours during the policy term and within three years after the policy term ends. Information developed by audit may be used to determine final premium.

PART FIVE - CONDITIONS

A. When Coverage Commences And Ceases

1. Coverage Commences for **U.S. Employee Traveler** or **Canadian Employee Traveler** under this coverage part from the moment the **employee** leaves on a **Business Trip** outside the **United States** or Canada, and shall cease at the earlier of: (a) the moment such **employee** returns to his or her point of departure within the **United States** or Canada, (b) the moment such person returns to his or her usual workplace, (c) the moment such person returns to his or her regular place of residence, or (d) such person undertaking a work assignment anywhere in the **United States** or Canada.
2. Coverage under "PART ONE" of this coverage part for **Local Hire or National** commences from the moment the **employee** leaves his or her country of usual work assignment on a **Business Trip** and shall cease at the earlier of: (a) the moment the **employee** returns to his or her country of usual work assignment or (b) the moment the **employee** returns to his or her regular place of residence. Additionally Coverage under "PART TWO" commences once a **Local Hire or National** begins his or her employment for **you** within the **employee's** country of employment.
3. Coverage for all **employees**, other than those in paragraphs 1 and 2 above, commences from the moment the **employee** is hired for or assigned to the applicable work assignment within the **Coverage Territory**. Coverage under this coverage part ceases the moment such **employee's** employment or assignment for such work assignment ceases.

B. Other Insurance

1. This insurance is primary except when:
 - a. **You** have other valid and collectible insurance for any benefits or damages **we** cover under this coverage part.
 - b. **Your** injured **employee** collects statutory benefits pursuant to any applicable workers compensation law, social security plan, scheme or fund whether private or state sponsored for any benefits or damages **we** cover under this coverage part on a voluntary basis.
2. When 1.a or 1.b above applies, **our** obligations are limited as follows:
 - a. The amount **we** pay under "PART ONE" of this coverage part shall be the difference, if any, between the benefits received or claimed and covered under any other applicable workers compensation insurance, social security plan, scheme or fund whether private or state sponsored inclusive of any deductible or self insured retention applicable thereto and the **Employment Injury Benefit** payable under this coverage part.
 - b. The amount **we** pay under "PART TWO" of this coverage part shall be the difference, if any, between the limits of any other insurance, inclusive of any deductible or self insured retention applicable thereto and the "LIMITS OF LIABILITY FOR PART TWO - EMPLOYERS LIABILITY" payable under this coverage part.
 - c. **We** will have no duty under this coverage part to defend **you** against any **suit** if any other insurer has a duty to defend **you** against that **suit**. If no other insurer defends, **we** may undertake to do so.
3. When local workers compensation benefits are discontinued or forfeited, coverage under this coverage part will apply as follows:

Notwithstanding 2.a above, when **injury** to a **Third Country National, U.S. Employee, or Canadian Employee** occurs during the policy term and such **employee** suffers a discontinuation or forfeiture of benefits payable by others in accordance with the workers compensation law or social security plan or scheme, or any government fund whether private or state sponsored the insurance for which or participation in is required by law in such **employee's** country of work assignment, **we** will pay the **Employment Injury Benefit** designated in the column entitled "PART ONE - Employee Injury Benefits Insurance" in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS on a primary basis, provided all of the following apply:

 - a. The discontinuation or forfeiture of such other local benefits results from the repatriation of the injured **employee**, or in the case of death, repatriation of the **employee's** spouse and dependants;
 - b. The repatriation of the **employee** and or his spouse and dependants must occur no later than 365 days after the date the **employee's** injury occurred; and

- c. The repatriation of the **employee** is to his or her country of citizenship, hire or permanent residence.

C. Long Term Policy

If the policy term is longer than one year all limits of this coverage part will apply as though a new policy were issued on each annual anniversary that this policy is in force and apply separately to each consecutive 12 month term. For policies written with or extended to have policy terms greater than 12 months but less than 24 months the limits will apply once to the full policy term with the period beyond the first 12 month term to be deemed part of the last preceding 12 month term for purposes of determining the limits.

PART SIX - DEFINITIONS

1. **Business Trip** means a trip by a member of a covered **Classification of Employee** which is outside of the **employee's** country of work assignment and undertaken on **your** behalf.
2. **Canadian Employee** means an **employee** who is a citizen of Canada wherever hired and an **employee** who is a Canadian hire who is not a Canadian citizen and whose contract of hire was entered into in the Canada.
3. **Canadian Employee Traveler** means a **Canadian Employee** who is hired for, and assigned by **you** to, work primarily within Canada who is in the **Coverage Territory** while on a **Business Trip** for **you**.
4. **Classification of Employee(s)** means each of the following: **Canadian Employee, Canadian Employee Traveler, Local Hire or National, Third Country National, U.S. Employee, U.S. Employee Traveler**.
5. **Employee** means any person who meets all of the following requirements: (a) they are employed directly by **you**, (b) they are receiving **Remuneration** directly from **you**, (c) they are subject to **your** control. For the purposes of this coverage part the following shall not be considered **employees**: (i) volunteers, (ii) borrowed servants, or (iii) employees of **your** subcontractors.
6. **Employment Injury Benefit(s)** means the benefits payable under this coverage part calculated in accordance with paragraph C. "Employment Injury Benefit(s)" of the General Section.
7. **Injury** means any bodily **injury** by accident or disease (including any endemic disease regardless of whether or not such endemic disease would be included in the applicable **Employment Injury Benefit**), including death resulting therefrom.
8. **Local Hire or National** means an **employee** who is hired by **you** to work within his or her country of hire or permanent residence and whose usual workplace is located in the **Coverage Territory**.
9. **Person-Trips** means the total number of trips determined by multiplying the total number of covered **employees** traveling on the same trip times the number of trips per one or more trip durations during the Policy Term.
10. **Person-Weeks** mean the total number of weeks or part thereof that each covered **employee** is traveling or on assignment, during the policy term, relating to business operations covered by this coverage part.
11. **Remuneration** means all monies paid to all **employees** in a covered **Classification of Employee**, including without limitation salary, overtime, bonuses, and cash allowances for cost-of-living, board and lodging.
12. **Suit** means a civil proceeding in which damages because of **injury** to which this insurance applies are alleged, including (a) an arbitration proceeding in which such damages are claimed and to which an insured must submit or does submit with **our** consent and (b) any other alternative dispute resolution proceeding in which such damages are claimed and to which an insured submits with **our** consent.
13. **Terrorism** means the use or threatened use of force or violence against persons or property, or commission of an act dangerous to human life or property, or commission of an act that interferes with or disrupts an electronic or communication system, undertaken by any person or group, whether or not acting on behalf of or in connection with any organization, government, power, authority or military force, when the effect is to intimidate or coerce a government, the civilian population or any segment thereof, or to disrupt any segment of the economy.
14. **Third Country National** means an **employee**, who is neither a **U.S. Employee, Canadian Employee**, nor **Local Hire or National**, who is hired or assigned by **you** to work in any portion of the **Coverage Territory** which is outside of his or her country of hire or permanent residence if other than the **United States** or Canada.
15. **United States** means the United States of America (including its territories and possessions) and Puerto Rico.
16. **U.S. Employee** means an **employee** who is a citizen or legal resident of the **United States** wherever hired or an **employee** who is a U.S. hire who is not a U.S. citizen whose contract of hire was entered into in the **United States**.

17. **U.S. Employee Traveler** means a **U.S. Employee** who is hired for, and assigned by **you** to work primarily within the **United States** who is temporarily in the **Coverage Territory** while on a **Business Trip** for **you**.
18. **War** means war, whether declared or not, or any act or condition incident to war. **War** includes civil war, insurrection, act of foreign enemy, civil commotion, factional civil commotion, military or usurped power, rebellion or revolution.

FOREIGN BUSINESS TRAVEL PROPERTY COVERAGE PART

PLEASE READ THIS ENTIRE FORM CAREFULLY

Various provisions in this Coverage Part restrict coverage. Please read it, the Common Conditions and Definitions, the Foreign Business Travel Property Coverage Part Schedule of Limits, endorsements and other attachments carefully to determine rights, duties and what is and is not covered.

Words and phrases that appear in boldface type have special meaning. Refer to: (1) "SECTION III – COMMON DEFINITIONS" of the Common Conditions and Definitions, (2) the Definitions Section of this Coverage Part, and (3) elsewhere in this Coverage Part. If such ordinarily boldfaced words and phrases are not bolded then such words and phrases shall include, but not be limited to, the specific meaning set forth in this Coverage Part.

SECTION I – COVERAGES

Insuring Agreement

This Coverage Part insures against all risk of direct physical loss of or damage to **your covered property** as described in the "COVERAGE" sections below (subject to any deductibles, limitations, terms, conditions, sublimits and exclusions contained in the Foreign Business Travel Coverage Part Schedule of Limits), provided such loss or damage occurs in the **coverage territory**.

COVERAGE A - PERSONAL PROPERTY

1. **Your** Personal Property at any one location.
2. **Your** interest in the Personal Property of others in **your** care, custody or control, and **your** liability imposed by law or assumed by contract, whether written or oral, for such property.
3. At **your** option, Personal Property of **your** officials and employees when, and only when, located on **your** premises.

COVERAGE B - INLAND TRANSIT

1. **Your** Personal Property, including **your** interest in and/or liability for Personal Property of others while in **your** custody, while such Personal Property is in due course of transit by any means of conveyance (except ocean marine vessels and aircraft) within the **coverage territory**; provided however, that in no event shall **we** be liable for loss or damage:
 - a. To any conveyance used as the mode of transportation, including any part of the equipment thereof;
 - b. To property insured under any inland transit policy or any marine import or export policy;
 - c. To property shipped by mail or parcel post, from the time it passes into the custody of the Postal Service; or
 - d. Caused by improper packing.

Debris Removal Exclusion Clause. The Debris Removal provision of this Coverage Part shall extend to cover expense of removal of debris or **pollutants or contaminants** resulting from loss or damage to Personal Property in transit.

SECTION II – EXCLUSIONS

1. Perils Excluded

This Coverage Part does not insure against:

- a. (1) Explosion, rupture, or bursting of steam boilers, steam pipes, steam turbines, or steam engines, turbines or fly wheels, owned or operated by **you** unless loss or damage from a peril insured herein ensues and then this Coverage Part shall cover for such ensuing loss or damage.

This exclusion does not apply to the explosion of gas or unconsumed fuel within the furnace or any boiler or fired vessel or within the passages from that furnace to the atmosphere, whether or not the explosion is:

- (a) Contributed to or aggravated by an **accident** to any part of an **object** that contains steam or water; or
 - (b) Caused in whole or in part directly or indirectly by an **accident** to an **object** or part of an object.
 - (2) Electrical injury or disturbance to electrical appliances, devices, or wiring caused by electrical currents artificially generated unless loss or damage from a peril insured herein ensues and then this Coverage Part shall only cover for such ensuing loss or damage.
 - (3) Mechanical breakdown unless loss or damage from a peril insured herein ensues and then this Coverage Part shall only cover for such ensuing loss or damage.
- b. Unexplained or mysterious disappearance of any **covered property**, or shortage disclosed by audit or upon taking inventory.
 - c. Delay or loss of market.
 - d. Ordinary wear and tear, inherent vice, latent defect or gradual deterioration, shrinkage, insects or vermin of any kind, evaporation, wet or dry rot, rust, **fungus, mold or spore**, corrosion unless loss or damage from a peril insured herein ensues and then this Coverage Part shall only cover for such ensuing loss or damage.
 - e. Changes in flavor or color or texture or finish, extremeness of or changes in temperature unless other loss or damage from a peril insured herein ensues, and then this Coverage Part shall cover for such ensuing loss or damage.
 - f. Dampness or dryness of atmosphere and changes in temperature or humidity unless loss or damage from a peril insured herein ensues and then this Coverage Part shall only cover for such ensuing loss or damage.
 - g. Normal settling or shrinkage or expansion of walls, floors, foundations, roofs, or ceilings unless loss or damage from a peril insured herein ensues and then this Coverage Part shall only cover for such ensuing loss or damage.
 - h. Perils as defined and insured under either a **local underlying policy** or a **non-program policy** to the extent of recovery thereunder.
 - i. Any fraudulent or dishonest act or acts committed by **you** or any of **your** employees with manifest intent to:
 - (1) cause such loss; or

- (2) obtain financial benefit for **yourself**, **your** employee(s), or for any other person or organization intended by **you** or the employee to receive such benefit.
- j. The cost of making good defective design or specifications, faulty material, or faulty workmanship; however, this exclusion shall not apply to loss or damage resulting from such defective design or specifications, faulty material, or faulty workmanship. However, if resulting loss or damage from a peril insured herein ensues, then this Coverage Part shall only cover for such ensuing loss or damage.
- k. Errors in processing, damage sustained to that portion of the **covered property** insured which is actually being worked upon and directly resulting therefrom, or caused by any repairing, adjusting, servicing or maintenance operation. However, if loss or damage from a peril insured herein to other **covered property** covered hereunder ensues, then this Coverage Part shall only cover for such ensuing loss or damage.
- l. Loss or damage caused by, resulting from, contributed to, or made worse by actual or threatened release, discharge, escape or dispersal of **pollutants or contaminants**, all whether direct or indirect, proximate or remote or in whole or in part caused by, contributed to, or aggravated by any physical damage insured by this Coverage Part.
- m. Nuclear reaction, nuclear radiation or radioactive contamination, all whether controlled or uncontrolled, and whether such loss be direct or indirect, proximate, or remote; or be in whole or in part caused by, contributed to, or aggravated by the peril(s) insured against in this Coverage Part, except:
- (1) if fire ensues, liability is specifically assumed for direct loss by such ensuing fire but not including any loss due to nuclear reaction, nuclear radiation, or radioactive contamination; and
- (2) **we** shall be liable for loss or damage caused by sudden and accidental radioactive contamination including resultant radiation damage for each occurrence from material used or stored or from processes conducted on insured premises provided at the time of loss there is neither a nuclear reactor capable of sustaining nuclear fission in a self-supporting chain reaction nor any new or used nuclear fuel on the insured premises.
- n. Confiscation, seizure, appropriation, expropriation, nationalization, requisition for use or title, or willful destruction by any government, sovereign power, civil authority or military authority (de jure or de facto).
- o. Loss or damage to **covered property** caused by, resulting from, contributed to or aggravated by any of the following perils, whether such loss or damage is accidental or intentional, intended or unintended, direct or indirect, proximate or remote or in whole or in part caused by, contributed to or aggravated by any perils insured by the Coverage Part:
- (1) **war**, hostile or warlike action in time of peace or **war**, whether or not declared, including action in hindering, combating or defending against an actual, impending or expected attack:
- (a) by any government or sovereign power (*de jure* or *de facto*) or by any authority maintaining or using military, naval or air forces; or
- (b) by military, naval or air forces; or
- (c) by an agent of any such government, power, authority or force;
- (2) any weapon employing atomic fission, fusion or radioactive force, or any weapon that disperses radioactive material or a directed-energy or electromagnetic weapon, whether in time or peace or **war**, whether or not its discharge was accidental; or

- (3) insurrection, rebellion, revolution, civil **war**, usurped power, seizure or action taken by governmental authority in hindering, resisting, combating or defending against such event;
- (4) hijacking or any unlawful seizure or wrongful exercise or control of any mode of transportation, including but not limited to aircraft, watercraft, truck(s), train(s) or automobile(s), including any attempted seizure of control, made by any person or persons.

Such loss or damage is excluded regardless of any other cause, event or intervention that contributes concurrently or in any sequence to the loss or damage.

p. **Terrorism.**

q. Strikers Exclusion:

Interference of **covered property** by strikers or other persons, with rebuilding or replacing the **covered property** or with the resumption or continuation of business.

r. Acts, Errors Or Omissions Exclusion:

This exclusion shall apply only if a peril otherwise excluded by this Coverage Part contributes to the direct physical loss or damage or is a cause of the direct physical loss or damage.

Notwithstanding any of the terms of this policy (including without limitation this Coverage Part and any endorsement, schedule or other document attached to this policy) that might be construed otherwise, this Coverage Part does not insure against direct physical loss or damage caused by any act, error or omission (whether by **you** or others) in the following:

- (1) planning, zoning, surveying, siting or developing property;
- (2) establishing or enforcing building codes or standards for construction or materials; or
- (3) designing, establishing the specifications, furnishing work, materials, parts or equipment, or constructing or maintaining the following property or facilities:
 - (a) buildings or structures;
 - (b) improvements or changes in or additions to land or other property; or
 - (c) roads, water mains, sewers, drainage ditches, levees, dams or other facilities all whether or not such property or facilities are covered by this Coverage Part, or away from the premises covered by this Coverage Part.

s. The weight of a load exceeding the manufacturer's rated lifting or supporting capacity of any machine under the operating conditions at the time of loss.

t. (1) Consortio Exclusion:

Losses in Spain or Spanish territories subject to the regulation of the Consortio De Compensation De Seguros ("Consortio") perils insured against by the Consortio when the occurrence of loss by such covered peril shall be declared by the Consortio to be within the conditions of coverage. (Conditions of payment and/or delays in payment, shall not abrogate this exclusion.) However, when payment of such declared covered loss is made in reduced proportion due to depletion of Consortio reserves resulting from payment of said loss, this Coverage Part shall apply in excess of the actual payment of loss made by the Consortio.

(2) Catastrophes Naturelles Exclusion:

Losses in France or French territories subject to the regulation of the Natural Catastrophe Scheme created by the law of July 13, 1982 when the occurrence of loss by such covered peril shall be declared by the authorities to be within the conditions of coverage. (Conditions of payment and/or delays in payment shall not abrogate this exclusion.) However, when payment of such declared loss is made in reduced proportion to the depletion of government reserves resulting from payment of said loss, this Coverage Part shall apply in excess of the actual payment of loss made by the government.

This Coverage Part does not insure against loss or damage caused directly or indirectly by or through or in consequence of any occurrence for which a fund has been established in terms of the War Damage Insurance and Compensation Act, 1976 (No. 85 of 1976).

(3) German Sturmflut Exclusion:

This Coverage Part does not cover sturmflut (storm **flood** or storm tide) within Germany involving Bundeslaender and Hansetaedte (states) of Schleswig-Holstein, Niedersachsen, Mecklenburg-Vorpommern, Bremen and Hamburg.

Sturmflut (storm **flood** or storm tide) shall mean a **flooding** of dry land by storm-driven waves on coastal areas into bays or inland waters connected to the ocean or sea.

(4) Norway Exclusion:

Loss or damage covered under Norsk Naturskadepol in Norway, as set forth in the Insurance Contract Act of June 16, 1989 but only to the extent of recovery thereunder.

- u. (1) **Flood** and all resulting loss or damage as respects **covered property** in transit.
- (2) Netherlands **Flood** and all resulting loss or damage.
- v. (1) Earthquake and volcanic action and all ensuing loss or damage as respects **covered property** in transit.
- (2) Japan earthquake and volcanic action and all resulting loss or damage.

2. Property Excluded

This Coverage Part does not cover loss or damage to:

- a. Money and securities, bullion, fine art, precious metals.
- b. Accounts, bills, currency, deeds, evidences of debt or title, and notes (except as otherwise provided for by the **Valuable Papers and Records** and **Accounts Receivable** coverages).
- c. Land and land values; however, this exclusion shall not apply to the cost of reclaiming, restoring or repairing **land improvements**.
- d. Water, except water on **your** premises which is normally contained within any type of tank, cistern, pond, piping or other process equipment.
- e. Growing, drying, or standing crops, timber including standing timber, livestock.
- f. Watercraft, aircraft, satellites, railroads and railroad rolling stock and motor vehicles licensed for highway use.

- g. Docks, piers, wharves and all other offshore property; wells and pipelines, except pipelines on **your** premises.
- h. Bridges, tunnels, dams or dikes.
- i. Transmission and distribution lines greater than one thousand (1,000) feet of **your** premises.
- j. Animals, birds or fish, except for research purposes.
- k. Furs, jewelry and precious and semi-precious stones.
- l. Underground property, underground mines or property while located within shafts and caverns or any property contained therein.
- m. Intangible property.

SECTION III – GENERAL CONDITIONS

1. Valuation

The value of the **covered property** shall be determined as follows:

a. Accounts Receivable:

- (1) Interest charges on any loan to offset impaired collections pending repayment of such sums made uncollectible by such loss or damage;
- (2) Collection expense in excess of normal collection cost and made necessary because of such loss or damage;
- (3) Other expenses, when reasonably incurred by **you** in reestablishing records of accounts receivable following such loss or damage.

For the purpose of this Coverage Part, credit card company charge media shall be deemed to represent sums due **you** from customers, until such charge media is delivered to the credit card company.

When there is proof that a loss of records of **Accounts Receivable** has occurred but **you** cannot more accurately establish the total amount of accounts receivable outstanding as of the date of such loss, such amount shall be computed as follows:

- (1) The monthly average of accounts receivable during the last available twelve months shall be adjusted in accordance with the percentage increase or decrease in the twelve months average of monthly gross revenues which may have occurred in the interim.
- (2) The monthly amount of accounts receivable thus established shall be further adjusted in accordance with any demonstrable variance from the average for the particular month in which the loss occurred, due consideration also being given to the normal fluctuations in the amount of accounts receivable within the fiscal month involved.

There shall be deducted from the total amount of accounts receivable, however established, the amount of such accounts evidenced by records not lost or damaged, or otherwise established or collected by **you**, and an amount to allow for probable bad debts which would normally have been uncollectible by **you**.

b. Electronic Data Processing Equipment:

Replacement cost if replaced; if not replaced, at actual cash value on the date of loss.

c. **Electronic Data Processing Media:**

The cost of transferring data, programs or any other software stored on electronic, electromechanical, electromagnetic data processing or production equipment from backup or from originals of a previous generation, but this Coverage Part does not insure any other cost including research, engineering or other cost of restoring or recreating information lost.

d. **Valuable Papers:**

The cost to repair or replace the property with other of like kind and quality including the cost of gathering and/or assembling information; or, if not so replaced, actual cash value.

e. **Transit:**

In the event of loss of or damage to **covered property** in due course of transit under this Coverage Part, the **covered property** shall be valued at the amount of invoice, including prepaid or advanced freight, if any, **your** profit or commission, as selling agent, and such other costs and charges as may have accrued and become legally due thereon since shipment.

In the absence of an invoice, the **covered property** shall be valued at its actual cash value at point of shipment.

f. **All Other Covered Property Not Defined Above:**

Liability hereunder shall not exceed the smallest of the following:

- (1) The costs to repair or replace with new materials of like kind and quality, whichever is least costly; or
- (2) The actual expenditures incurred in repairing or replacing, whichever is less.

In the event of loss or damage to such **covered property** that is not repaired or replaced, then the basis of recovery shall be the actual cash value of the **covered property** at the time of loss with proper deduction for depreciation, and shall in no event exceed what it would then cost to repair or replace the **covered property** with material of like kind and quality within a reasonable time but no longer than within one year following the date of loss, after such a loss.

It is agreed, however, that the damaged or destroyed **covered property** has been replaced for the purpose of this valuation basis whenever **you** expend an equivalent amount for any such **covered property** (other than maintenance) for use in **your** business.

2. Appraisal

If **you** and **we** fail to agree on coverage hereunder or the amount of loss, each shall, upon the written demand either from the other party made within sixty (60) days after receipt of proof of loss by **us**, select a competent and disinterested appraiser. The appraisers shall then select a competent and disinterested umpire. If the appraisers should fail for thirty (30) days to agree upon such umpire, then upon the request of **you** or **us**, such umpire shall be selected by a judge of a court of record in the appropriate jurisdiction in which such appraisal is pending. Then, at a reasonable time and place, the appraisers shall appraise the loss, stating separately the value and the amount of loss. If the appraisers fail to agree, they shall submit their differences to the umpire. An award in writing by any two of the three shall determine the amount of loss. **You** and **we** shall each pay his or its chosen appraiser and shall bear equally the other expenses of the appraisal and of the umpire.

3. Assistance And Cooperation

Following a loss:

You shall use due diligence and do and concur in doing all things reasonably practicable to avoid or diminish any loss of or damage to the **covered property**.

You shall cooperate with **us** and, upon **our** request and expense, shall attend hearings and trials and shall assist in effecting settlements, in securing and giving evidence, in obtaining the attendance of witnesses and in conducting suits.

4. Claims Adjustment Assignment

In the event of loss or damage covered by this Coverage Part and subsequent notification thereof, **our** claims personnel will be assigned the responsibility to investigate, properly document, and coordinate in a timely manner the claims adjustment process, in cooperation with **you**, and acting on behalf of any participating insurance company(ies) and determining loss settlement(s) at the expressed direction and approval of the participating insurance company(ies). In the event engineers, accountants, consultants and other experts are required in the claims adjustment process, the participating insurance company(ies) agree to mutually select necessary experts and split the expenses accordingly. Notwithstanding anything to the contrary in this policy (including without limitation this Coverage Part and any endorsement, schedule or other document attached to this policy), in the event of loss, **we** reserve the right at all times to appoint a loss adjuster or representative to act on **our** behalf.

5. Loss Payable

Loss, if any, shall be adjusted with and payable to **you** or as directed by **you**, the receipt of which shall constitute a release in full of all liability under this Coverage Part with respect to such loss.

6. Consequential Loss

This Coverage Part insures against reduction in value to the remaining part or parts of any lot of merchandise, usually sold by lots or sizes, color ranges, or other classifications due to damage to or destruction of a part of such lots or other classifications due to a peril insured against.

7. Debris Removal

- a. This Coverage Part covers the cost of removal of debris of **covered property** resulting from a peril insured against.
- b. This Coverage Part will not cover the following expenses:
 - (1) decontamination of the debris;
 - (2) extraction of **pollutants or contaminants** from land or water; or
 - (3) removal, restoration or replacement of **pollutants or contaminants** or polluted land or water.

No liability shall exist under this provision unless such expenses are reported to **us** within 180 days after the date of direct physical loss or damage.

8. Earthquake, Volcanic Action And Flood

- a. (1) If more than one earthquake shock or volcanic action occurs within any period of seventy-two (72) hours during the Policy Term, the beginning of which seventy-two (72) hour period may be determined by **you**; or

- (2) If any **flood** occurs within a period of the continued rising or overflow of any river(s) or stream(s) and the subsidence of same within the banks of such river(s) or stream(s);

such earthquake shock, volcanic action, or **flood** shall be deemed to be a single occurrence within the meaning of this Coverage Part.

- b. Should any time period referred to in paragraph a. above extend beyond the expiration date of this policy and commence prior to expiration, **we** shall pay all such earthquake shock, volcanic action, or **flood** losses occurring during such period as if such period fell entirely within the Policy Term.
- c. **We** shall not be liable, however, for any loss caused by any earthquake shock, volcanic action, or **flood** occurring before the effective date and time or commencing after the expiration of the Policy Term.

9. Errors Or Omissions

This insurance shall not be prejudiced by any unintentional or inadvertent error or omission resulting in incorrect description of the interest, risk or **covered property**, provided notice is given to **us** as soon as practicable, upon discovery.

10. Excess Insurance

Excess insurance is insurance over the limit of insurance set forth in this Coverage Part. The existence of such excess insurance shall not prejudice the coverage provided under this Coverage Part nor will it reduce any limits under this Coverage Part.

11. Expediting Expense

This Coverage Part covers the reasonable extra cost of temporary repair and of expediting the repair of damaged **covered property** insured hereunder, including overtime and express freight or other rapid means of transportation. However, such expenses shall not exceed the amount by which the loss is reduced.

12. Fire Brigade Charges And Extinguishing Expenses

This Coverage Part covers the following expenses resulting from a peril insured against:

- a. Fire brigade charges and other extinguishing expense for which **you** may be assessed; and
- b. Loss of fire extinguishing materials expended.

13. Loss Adjustment Expenses

This Coverage Part is extended to include reasonable and customary expenses incurred by **you**, or by **your** representatives, for preparing and certifying details requested by **us** of a claim resulting from a loss which would be payable under this Coverage Part.

This Coverage Part is not extended to cover the cost of a public adjuster working on **your** behalf.

14. Machinery

In case of loss or damage by a peril insured against to any part of a machine or unit consisting of two or more parts when complete for use, **our** liability shall be limited to the value of the part or parts lost or damaged or, at **your** option, and with **our** consent, to the cost and expense of replacing or duplicating the lost or damaged part or parts or of repairing the machine or unit.

15. Notice Of Loss

As soon as practicable after any loss or damage occurring under this Coverage Part is known to **your** Home Office Insurance Department, **you** shall report such loss or damage with full particulars to **your** broker or producer for prompt transmission to **us**.

16. Other Insurance

This Coverage Part may be issued in conjunction with certain other insurance policies written by or provided by **us**.

Except as stated above, and except for insurance described by the Excess Insurance clause or the Underlying Insurance clause, this Coverage Part shall not provide coverage to the extent of any other collectible insurance, whether directly or indirectly covering the same **covered property** against the same causes of loss.

In the event such other insurance policies provide coverage for loss or damage also covered under this Coverage Part, coverage hereunder shall be excess and the limits of insurance stated herein shall be inclusive of the limits provided by such other insurance policies and not in addition thereto.

17. Pair And Set

Except as provided under the Machinery clause, and under the Consequential Loss clause, in the event of loss or damage by a peril insured against to any article or articles which are a part of a pair or set, the measure of loss or damage to such article or articles shall be, at **your** option:

- a. the reasonable and fair proportion of the total value of the pair or set, giving consideration to the importance of said article or articles, but in no event shall such loss or damage be construed to mean total loss of the pair or set; or
- b. at **your** option, and with **our** consent, the full value of the pair or set provided that **you** surrender the remaining article or article of the pair or set to **us**.

18. Preservation of Property

We will pay for:

- a. Reasonable and necessary costs, over and above normal operating costs, incurred by **you** for actions to temporarily protect or preserve **covered property**, and
- b. Direct physical loss or damage to **covered property** removed from any one location,

provided that such actions or removal is necessary due to imminent direct physical loss or damage to **covered property** by a peril not otherwise excluded.

This condition does not apply to **covered property** while in transit.

19. Reinstatement

Any loss under this Coverage Part shall not reduce the amount of this Coverage Part, except where annual aggregates apply.

20. Salvage And Recoveries

Where legally permitted and where loss payments under the **local underlying policy** or **non-program policy** are not detrimentally affected, all salvages, recoveries, and payments,

excluding proceeds from subrogation and underlying insurance recovered or received prior to a loss settlement under this Coverage Part shall reduce the loss accordingly.

21. Underlying Insurance

- a. Underlying insurance is insurance on all or any part of the deductible and against all or any of the perils covered by this Coverage Part including declarations of value to a carrier for hire. The existence of such underlying insurance shall not prejudice or affect any recovery otherwise payable under this Coverage Part.
- b. If the limits of such underlying insurance exceed the deductible amount which would apply in the event of loss under this Coverage Part, then that portion which exceeds such a deductible amount shall be considered Other Insurance.

22. Payment Of Loss

All adjusted claims under this Coverage Part shall be due and payable no later than thirty (30) days after presentation and acceptance of proofs of loss by **us** or **our** appointed representative.

23. Proof Of Loss

It shall be necessary for **you** to render a signed and sworn Proof of Loss to **us** or **our** representative stating:

- a. The time, place and cause of loss, damage or expense;
- b. **Your** interest and the interest(s) of all others;
- c. The value of the **covered property** involved in the loss; and
- d. The amount of loss, damage or expense.

SECTION V – DEFINITIONS

In addition to "SECTION III - Common Definitions" of the Common Conditions and Definitions, the following definitions apply to this Coverage Part.

1. **Accounts Receivable** means all sums due to **you** from customers, provided **you** are unable to effect collection thereof as the direct result of loss of or damage to records of **Accounts Receivable**.
2. **Covered property** means personal property as set forth in Sections I. A, and B. which is not otherwise excluded under Section II. 2.
3. **Electronic Data Processing Equipment** means data processing systems including computer equipment and networks, component parts and related systems, and peripheral equipment.
4. **Electronic Data Processing Media** means programming records pertaining to electronic and electro-mechanical data processing or electronically controlled equipment, including the data thereon; as well as the materials on which the data are recorded, including but not limited to magnetic tapes, floppy disks or hard disks, paper tapes and punch cards.
5. **Flood** means, whether natural or man-made, flood waters, surface water, waves, tide or tidal water, overflow or rupture of a dam, levy, dike or other surface containment structure, storm surge, the rising, overflowing or breaking of boundaries of natural or man-made bodies of water, or the spray from any of the foregoing, all whether driven by wind or not. A tsunami shall not be considered a **flood**.

6. **Fungus, mold or spore** means:

- a. **Fungus** including, but not limited to, any of the plants or organisms belonging to the major group fungi, lacking chlorophyll, and including **mold**, yeast, rusts, mildews, smuts and mushrooms;
 - b. **Mold** including, but not limited to, any superficial growth produced on damp or decaying organic matter or on living organisms, and **fungi** that produce **mold**; and/or
 - c. **Spore** including, but not limited to, any dormant or reproductive body produced by or arising or emanating out of any **fungus**, **mold**, mildew, plants, organisms or microorganisms.
7. **Land improvements** mean any alterations to the natural condition of the land by grading, landscaping, earthen dikes or dams, as well as additions to land such as pavements, roadways, or similar works, but excluding golf courses.
8. **Pollutants or Contaminants** means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste, which after its release can cause or threaten damage to human health or human welfare or causes or threatens damage, deterioration, loss of value, marketability or loss of use to **property** insured hereunder, including, but not limited to, bacteria, fungi, virus, or hazardous substances. Waste includes materials to be recycled, reconditioned or reclaimed. **Pollutants or contaminants** do not include **fungus, mold or spore**.
9. **Valuable Papers** means written, printed or otherwise inscribed documents and records, including but not limited to books, maps, films, drawings, abstracts, deeds, mortgages, micro-inscribed documents and manuscripts but not including **Electronic Data Processing Equipment** and **Electronic Data Processing Media**, money and/or securities.

SECTION VI – LIMITS OF INSURANCE

1. **We** shall not be liable for more than the amount(s) shown in this Coverage Part's Schedule of Limits for any one occurrence, subject to the sublimits of insurance, as respects loss or damage to **covered property** arising out of all perils insured against.

SECTION VII – DEDUCTIBLES

1. Each claim for loss, damage, or expenses arising out of any one occurrence shall be adjusted separately and from the amount of such adjusted claim shall be deducted the sum(s) shown in this Coverage Part's Schedule of Limits:
2. Whether the claim involves loss at one or more locations, the deductible amount shall apply against the total loss suffered by **you** from any one occurrence.
3. If two or more deductible amounts in this Coverage Part apply to a single occurrence, the total to be deducted shall not exceed the largest deductible applicable.

ENDORSEMENT NO. 1

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

**COVERAGE TERRITORY - AMENDED
(EXCLUDED LOCATIONS)**

This endorsement modifies coverage provided under each of the following Coverage Part(s), if this policy includes such Coverage Part(s):

All Coverage Parts

Notwithstanding the definition of **coverage territory** in Section III of the Common Conditions and Definitions, with respect to the Coverage Part(s) listed above, the insurance provided by this policy does not apply to any **insured event, occurrence, accident**, offense, loss, **injury**, damage, claim or **suit** occurring in any of the following countries, jurisdictions, or locations:

Republic of Belarus

The Russian Federation (as recognized by the United Nations) or their territories, including territorial waters, or protectorates where they have legal control (legal control shall mean where recognized by the United Nations).

Ukraine (in accordance with the borders established as of the 1991 Declaration of Independence, including the Crimean peninsula and the Donetsk and Luhansk regions) -

(Foreign Business Travel Property only)

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 2

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**ACCESS OR DISCLOSURE OF CONFIDENTIAL OR PERSONAL MATERIAL OR INFORMATION,
DATA-RELATED LIABILITY, CYBER INCIDENT AND DATA PRIVACY EXCLUSION ENDORSEMENT
(WITH LIMITED BODILY INJURY OR PROPERTY DAMAGE EXCEPTION)**

FOREIGN COMMERCIAL GENERAL LIABILITY COVERAGE PART

1. **SECTION I – COVERAGES, COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**, 2. Exclusions, q. Access or Disclosure of Confidential Or Personal Information (with Exceptions for **Bodily Injury** and Physical Injury to Tangible Property), is deleted in its entirety and replaced by the following:

- q. Access Or Disclosure Of Confidential Or Personal Material Or Information; Electronic Data; and Cyber Incident

Bodily injury or property damage arising out of:

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**; or
- (3) a **cyber incident**; or
- (4) **Violation of Law Addressing Data Privacy**.

This exclusion does not apply to **bodily injury or property damage** as defined by this endorsement arising out of that which is described in Paragraph (1), (2) or (3) above.

This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

2. **SECTION I – COVERAGES, COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**, 2. Exclusions, s. Access or Disclosure of Confidential Or Personal Information, is deleted in its entirety and replaced by the following:

- s. Access Or Disclosure Of Confidential Or Personal Material Or Information and Cyber Incident

Personal and advertising injury arising out of:

ENDORSEMENT NO. 2

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) a **cyber incident**; or
- (3) **Violation of Law Addressing Data Privacy.**

This exclusion does not apply to **bodily injury** as defined by this endorsement arising out of that which is described in Paragraph (1) or (2) above.

This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

3. **SECTION I – COVERAGES, COVERAGE D – EMPLOYEE BENEFITS LIABILITY**, 2. Exclusions is amended to include the following additional exclusion:

Access Or Disclosure Of Confidential Or Personal Material Or Information; Electronic Data; and Cyber Incident

Any sums the insured becomes legally obligated to pay or any defense, investigation, or settlement arising out of:

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**; or
- (3) a **cyber incident**; or
- (4) **Violation of Law Addressing Data Privacy.**

This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

4. **SECTION I – COVERAGES, COVERAGE E – CRISIS RESPONSE**, 2. Exclusions is amended to include the following additional exclusion:

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This endorsement, effective 12:01 A.M., January 28, 2026

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Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

Access Or Disclosure Of Confidential Or Personal Material Or Information; Electronic Data; and Cyber Incident

Crisis response costs or crisis management loss arising out of:

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**; or
- (3) a **cyber incident**; or
- (4) **Violation of Law Addressing Data Privacy.**

This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

5. **SECTION I – COVERAGES, COVERAGE F – EMPLOYEE CRIMINAL DEFENSE**, 2. Exclusions is amended to include the following additional exclusion:

Access Or Disclosure Of Confidential Or Personal Material Or Information; Electronic Data; and Cyber Incident

Reimbursement for legal expense and defense costs arising out of:

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**; or
- (3) a **cyber incident**; or
- (4) **Violation of Law Addressing Data Privacy.**

This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

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By: Insurance Company Of the State of Pennsylvania

6. **SECTION I – COVERAGES, COVERAGE G – ARCHAEOLOGICAL LIABILITY**, 2. Exclusions is amended to include the following additional exclusion:

Access Or Disclosure Of Confidential Or Personal Material Or Information; Electronic Data; and Cyber Incident

Any **archaeological expenses** or any defense or investigation arising under this coverage part arising out of:

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**; or
- (3) a **cyber incident**; or
- (4) **Violation of Law Addressing Data Privacy**.

This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

7. **SECTION I – COVERAGES, COVERAGE H – WILDFIRE LIABILITY**, 2. Exclusions is amended to include the following additional exclusion:

Access Or Disclosure Of Confidential Or Personal Material Or Information; Electronic Data; and Cyber Incident

Wildfire suppression costs arising directly or indirectly out of:

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**; or
- (3) a **cyber incident**; or
- (4) **Violation of Law Addressing Data Privacy**.

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This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

8. **SECTION I – COVERAGES, COVERAGE I – REPUTATIONAL DEFENSE**, 2. Exclusions is amended to include the following additional exclusion:

Access Or Disclosure Of Confidential Or Personal Material Or Information; Electronic Data; and Cyber Incident

Reputational defense costs arising out of:

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**; or
- (3) a **cyber incident**; or
- (4) **Violation of Law Addressing Data Privacy**.

This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

9. **SECTION I – COVERAGES, TAX LIABILITY PAYMENT** is amended to include the following section:

3. Access Or Disclosure Of Confidential Or Personal Material Or Information, Electronic Data, and Cyber Incident Exclusion

We will not pay Tax Liability Payments arising directly or indirectly out of:

- (1) any access to or disclosure of any person's or organization's confidential or personal material or information, including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, biometric information or any other type of nonpublic material or information; or
- (2) the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**; or

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(3) a cyber incident; or

(4) Violation of Law Addressing Data Privacy.

This insurance does not apply to notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access or disclosure of any person's or organization's confidential or personal material or information.

10. With respect to this endorsement only, the following definitions apply:

Bodily injury means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time. **Bodily injury** does not include emotional distress, mental anguish, humiliation, mental distress or emotional injury, or any similar injury unless such injury results from physical injury, to the extent permitted by law.

Cyber incident means any:

1. Unauthorized access to or use of any computer system;
2. Malicious code, virus or any other harmful code that is directed at, enacted upon or introduced into any computer system and is designed to access, alter, corrupt, damage, delete, destroy, disrupt, encrypt, exploit, use or prevent or restrict access to or the use of any part of any computer system or otherwise disrupt its normal functioning or operation; or
3. Denial of service attack which disrupts, prevents or restricts access to or use of any computer system, or otherwise disrupts its normal functioning or operation.

Electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CDROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

Property damage means physical injury to tangible property, including all resulting loss of use of that property. All such loss of use will be deemed to occur at the time of the physical injury that caused it. **Electronic data** is not tangible property.

Violation of Law Addressing Data Privacy means the following:

Bodily Injury, property damage, personal and advertising injury, or any other type of coverage or liability under this policy, arising directly or indirectly out of any action or omission that violates or is alleged to violate:

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- a. Any federal, state or local statute, ordinance, regulation or other law that addresses, prohibits, or limits access to, use of or the printing, dissemination, disposal, obtaining, collecting, storing, safeguarding, recording, retention, sending, transmitting, communicating, selling or distribution of any person's or organization's confidential or personal material or information, including financial, health, biometric or other nonpublic material or information including, to the extent applicable, but not limited to:
 - (1) The Illinois Biometric Information Privacy Act (BIPA), including any amendment of or addition to such law; or
 - (2) The California Consumer Privacy Act (CCPA), including any amendment of or addition to such law; or
- b. Any law of a jurisdiction other than the United States of America (including its territories and possessions) or Puerto Rico that is similar to any statute, ordinance, regulation or other law described in Paragraph a. above, including but not limited to the European Union's General Data Protection Regulation.

All other terms, conditions and exclusions remain unchanged.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 3

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

EXCLUSION - TESTING OR CONSULTING ERRORS AND OMISSIONS

This endorsement modifies insurance provided under the following:

FOREIGN COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to **Paragraph 2., Exclusions of Section I - COVERAGE A - Bodily Injury And Property Damage Liability** and **Paragraph 2., Exclusions of Section I - COVERAGE B - Personal And Advertising Injury Liability**:

This insurance does not apply to **bodily injury, property damage or personal and advertising injury** arising out of:

1. An error, omission, defect or deficiency in:
 - a. Any test performed; or
 - b. An evaluation, a consultation or advice given, by or on behalf of any insured;
2. The reporting of or reliance upon any such test, evaluation, consultation or advice; or
3. An error, omission, defect or deficiency in experimental data, or the insured's interpretation of that data.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 4

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

EXCLUSION - TRANSMISSIBLE SPONGIFORM ENCEPHALOPATHY (TSE)

This endorsement modifies insurance provided under **your** FOREIGN COMMERCIAL GENERAL LIABILITY COVERAGE PART.

For purposes of this endorsement, the term "**loss, damage, or injury**" includes without limitation **bodily injury, property damage, and personal and advertising injury**.

For purposes of this endorsement, the term "**Transmissible Spongiform Encephalopathy (TSE)**" includes without limitation any loss, cost or expense which is related to or contributed to, caused or accelerated by or results from any form of TSE, as well as any supervision, instructions, recommendations, warnings or advice given or which should have been given in connection therewith.

The following exclusion is added to the entire policy:

This insurance does not apply to, and no coverage is provided for, any **loss, damage or injury** (including without limitation any cost or expense, including without limitation cost or expense related to, arising from or associated with inspection costs, surveillance costs, slaughter costs, clean-up, remediation, containment, removal or abatement) in whole or in part resulting from, caused or aggravated by, or contributing or relating to any form of **Transmissible Spongiform Encephalopathy (TSE)**, including without limitation Bovine Spongiform Encephalopathy (BSE), Chronic Wasting Disease (CWD), Creutzfeldt-Jakob Disease, New Variant Creutzfeldt-Jakob Disease (nv-CJD), Scrapie or Transmissible Mink Encephalopathy, regardless of any other cause, event, material or product that contributed concurrently or in any sequence to that **loss, damage or injury**.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 5

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

U.S. AND CANADA JURISDICTION EXCLUSION

This endorsement modifies insurance provided under the following:

FOREIGN COMMERCIAL GENERAL LIABILITY COVERAGE PART

Section I – COVERAGE A - Bodily Injury and Property Damage Liability, 1., Insuring Agreement, d. How This Insurance Applies, (4) is deleted and replaced by the following:

(4) Any claim or **suit** is made or brought in the **coverage territory** or Puerto Rico.

Section I – COVERAGE B - Personal and Advertising Injury Liability, 1., Insuring Agreement, d. How This Insurance Applies, (3) is deleted and replaced by the following:

(3) Any claim or **suit** must be made or brought in the **coverage territory** or Puerto Rico.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 6

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED - WHERE REQUIRED UNDER CONTRACT OR AGREEMENT

This endorsement modifies insurance provided under the following:

FOREIGN BUSINESS AUTO LIABILITY COVERAGE PART

FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE COVERAGE PART

The following sub-section is added to the end of "COVERAGE A. LIABILITY COVERAGE", "5. Who Is An Insured":

- d. Any person or organization **you** are obligated to include as an additional insured under this policy as a result of any contract or agreement **you** enter into which requires **you** to furnish insurance to such person or organization of the type provided by this policy, but only with respect to liability arising out of a **covered auto**. However, the insurance provided will not exceed the lesser of:
 - (1) The coverage and/or limits of this policy, or
 - (2) The coverage and/or limits required by said contract or agreement.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 7

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

EXCLUSION - INJURY TO PARTICIPANTS

This endorsement modifies insurance provided under the following:

FOREIGN BUSINESS AUTO LIABILITY COVERAGE PART

FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE COVERAGE PART

"SECTION II - EXCLUSIONS" is amended by the addition of the following exclusion:

Injury To Participants

Bodily injury sustained by any person while practicing for, or participating in, any trip or tour activity sponsored, organized, arranged, booked, operated or conducted by **you** or by others contracted by or acting on **your** behalf or in **your** name.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 8

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

FELLOW EMPLOYEE EXCLUSION - DELETED

This endorsement modifies insurance provided under the following:

FOREIGN BUSINESS AUTO LIABILITY COVERAGE PART

FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE COVERAGE PART

The title and text of the "Fellow Employee" exclusion in "SECTION II - LIABILITY COVERAGE", "B - Exclusions" is deleted in its entirety and replaced with the following:

5. INTENTIONALLY OMITTED

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 9

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEWLY ACQUIRED ENTITY COVERAGE EXTENDED

This endorsement modifies insurance provided under the following:

FOREIGN BUSINESS AUTO LIABILITY COVERAGE PART

FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE COVERAGE PART

SECTION I – COVERAGES, COVERAGE A LIABILITY COVERAGE, 5., Who Is An Insured, is amended to include the following as insureds:

- d. any organization you newly acquire or form (other than a partnership, joint venture or limited liability company) if you maintain ownership of more than 50% of its ownership interest, unless there is other similar insurance available to such organization; however, (1) coverage under this provision is afforded only until the 180th day after you acquire or form such organization or the end of the Policy Term set forth in the Declarations, whichever is earlier, and (2) this provision does not apply to bodily injury or property damage that occurred before you acquired or formed such organization.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 10

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

TERRORISM EXCLUSION - DELETED

This endorsement modifies insurance provided under the following:

FOREIGN BUSINESS AUTO LIABILITY COVERAGE PART

FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE COVERAGE PART

SOLELY with respect to "COVERAGE A LIABILITY COVERAGE" and "COVERAGE B MEDICAL EXPENSE COVERAGE" contained in **SECTION I - COVERAGES**, the "Terrorism" exclusion in "**SECTION II - EXCLUSIONS**" is deleted in its entirety.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 11

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

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By: Insurance Company Of the State of Pennsylvania

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FOREIGN COMMERCIAL PACKAGE POLICY

U.S. And Canada Jurisdiction Exclusion

This endorsement modifies insurance provided under the following:

FOREIGN BUSINESS AUTO LIABILITY COVERAGE PART

FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE COVERAGE PART

Section V - GENERAL CONDITIONS, 6. Policy Term; Coverage Territory is deleted and replaced by the following:

Under this Coverage Part, **we** cover **accidents** that occur during the Policy Term shown in the Declarations and within the **coverage territory**. In addition, any claim or **suit** must be made or brought in the **coverage territory**.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 12

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

WAR EXCLUSION REVISED FOR AUTO LIABILITY – DESIGNATED COUNTRIES ONLY

This endorsement modifies insurance provided under the following:

FOREIGN BUSINESS AUTO LIABILITY AND PHYSICAL DAMAGE COVERAGE PART

SECTION II – EXCLUSIONS, 13. War is deleted in its entirety and replaced by the following:

13. War

Solely with respect to insurance provided under COVERAGE A **LIABILITY COVERAGE** and COVERAGE B **MEDICAL EXPENSE COVERAGE**:

Bodily injury or property damage arising directly or indirectly as a result of or in connection with **war**, whether declared or not, or any act or condition incident to **war** in any of the following countries or jurisdictions:

1. Republic of Belarus;
2. The Russian Federation (as recognized by the United Nations) or their territories, including territorial waters, or protectorates where they have legal control (legal control shall mean where recognized by the United Nations); and
3. Ukraine (in accordance with the borders established as of the 1991 Declaration of Independence, including the Crimean Peninsula and the Donetsk and Luhansk regions); and
4. Afghanistan, Democratic Republic of the Congo, Iraq, Libya, Myanmar, Somalia, South Sudan, Syria, Yemen

Solely with respect to insurance provided under COVERAGE C **PHYSICAL DAMAGE**:

Loss arising directly or indirectly as a result of or in connection with **war**, whether declared or not, or any act or condition incident to **war** anywhere in the **Coverage Territory**.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 13

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EMERGENCY SECURITY AND POLITICAL EVACUATION ENDORSEMENT

This endorsement modifies insurance provided under the following:

FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS' LIABILITY COVERAGE PART

As respects this endorsement only, if, as a result of an **Occurrence** that takes place during an **Insured Person's Period of Coverage** and while traveling outside his or her **Home Country**, an **Insured Person** requires a **Security Evacuation**, we will pay benefits to **Transport** the **Insured Person** to the **Nearest Place of Safety**.

BENEFIT LIMITS

- A. Benefits will be payable for eligible expenses subject to a limit of \$25000 per **Occurrence** provided Travel Guard is used. Eligible expenses are for **Transportation** and **Related Costs** to the **Nearest Place of Safety** necessary to ensure the **Insured Person's** safety and well-being as determined by the **Designated Security Consultant**. **Security Evacuation** benefits are payable only once per **Occurrence**.

Benefits will also be payable for **Transportation** and **Related Costs** within 14 days of the **Security Evacuation** to either of these locations as chosen by the **Designated Security Consultant**:

- (1) back to the **Host Country** if return is safe and permitted; or
- (2) the **Insured Person's Home Country**; or
- (3) where the entity that sponsored the **Insured Person's** trip is located.

Benefits will be payable for consulting services by **Designated Security Consultant** for seeking information on a **Missing Person** or kidnapping cases if the **Insured Person** is deemed kidnapped or a **Missing Person** by local or international authorities. This benefit is subject to the Limit per **Occurrence** stated above.

Travel Guard must make all arrangements and must authorize all expenses in advance of any benefits being paid. Travel Guard is not responsible for the availability of **Transport** services. Where a **Security Evacuation** becomes impractical because of hostile or dangerous conditions, a **Designated Security Consultant** will endeavor to maintain contact with the **Insured Person** until a **Security Evacuation** becomes viable.

- B. **We** will reimburse **you** for eligible expenses up to a limit of \$10,000 per **Occurrence** if other than Travel Guard is used.

ENDORSEMENT NO. 13

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

Right of Recovery

If, after a **Security Evacuation** is completed, it becomes clear that the **Insured Person** was an active participant in the events that led to an **Occurrence**, we have the right to recover all **Transportation** and **Related Costs** from the **Insured Person**.

Changes in Terms and Conditions

The terms and conditions of this endorsement, including but not limited to the definition of **Excluded Countries**, may be changed at any time to reflect conditions that, in the opinion of **us**, constitute a change in the **Insured Person's** security evacuation exposure. **We** will give the **Insured Person** written notice of any change in the terms and conditions of this endorsement at least 30 days in advance of the effective date of the change.

Definitions

Advisory means a formal recommendation by the **Appropriate Authorities** that the **Insured Person** or citizens of his or her **Home Country** or citizens of the **Host Country** leave the **Host Country**.

Appropriate Authority(ies) means the government authority(ies) in the **Insured Person's Home Country** or the government authority(ies) of the **Host Country**.

Designated Security Consultant means an employee of a security firm under contract to Travel Guard or a Travel Guard designated service provider who is experienced in security and measures necessary to ensure the safety of the **Insured Person(s)** in his or her care.

Excluded Countries/Country means the following countries from which **Security Evacuations** are not available under this endorsement: Iraq and Afghanistan or any country subject to the administration and enforcement of U.S. economic embargoes and trade sanctions by the OFFICE OF FOREIGN ASSETS CONTROL (OFAC).

Home Country means the country of citizenship of the **Insured Person**. If the **Insured Person** has dual citizenship, for the purposes of this endorsement, his or her **Home Country** is the country of the passport he or she used to enter the **Host Country**.

Host Country means any country, other than an **Excluded Country**, in which an **Insured Person** is traveling while covered under the Policy.

Imminent Physical Danger means the **Insured Person** is subject to possible physical injury or sickness that could result in grave physical harm or death.

Insured person(s) means **you** and includes any of **your** directors, officers or **employees**, together with any **guests**, who at the time of a **security evacuation** are traveling to or within the **host country** at **your** request or approval and who are not citizens or residents of the **host country**.

Missing Person means an **Insured Person** who disappeared for an unknown reason and whose disappearance was reported to the **Appropriate Authority(ies)**.

Natural Disaster means a storm (wind, rain, snow, sleet, hail, lightning, dust or sand), earthquake, flood, volcanic eruption, wildfire or other similar event that:

1. is due to natural causes; and
2. results in such severe and widespread damage that the area of damage is officially declared a disaster area by the government of the **Host Country** and the area is deemed to be uninhabitable or dangerous.

ENDORSEMENT NO. 13

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By: Insurance Company Of the State of Pennsylvania

Nearest Place of Safety means a location determined by the **Designated Security Consultant** where:

1. the **Insured Person** can be presumed safe from the **Occurrence** that precipitated the **Insured Person's Security Evacuation**; and
2. the **Insured Person** has access to transportation; and
3. the **Insured Person** has the availability of temporary lodging, if needed.

Occurrence means any of the following situations in which an **Insured Person** finds him or her self while covered by the endorsement:

1. expulsion from a **Host Country** of being declared persona non-grata on the written authority of the recognized government of a **Host Country**;
2. political or military events involving a **Host Country**, if the **Appropriate Authorities** issue an **Advisory** stating that citizens of the **Insured Person's Home Country** or citizens of the **Host Country** should leave the **Host Country**;
3. victim of a **Verified Physical Attack** or a **Verified Threat of Physical Attack** from a third party;
4. the **Insured Person** had been deemed kidnapped or a **Missing Person** by local or international authorities and, when found, his or her safety and/or well-being are in question within 7 days of his or her being found.

Period of Coverage means the period of time during which the Policy is in force with respect to the **Insured Person**.

Related Costs means food, lodging and, if necessary, physical protection for the **Insured Person** during the **Transport** to the **Nearest Place of Safety**.

Security Evacuation means the extrication of an **Insured Person** from the **Host Country** due to an **Occurrence** which results in the **Insured Person** being placed in **Imminent Physical Danger**.

Transport/Transportation means the most efficient and available method of conveyance. In all cases, where practical, economy fare will be utilized. If possible, the **Insured Person's** common carrier tickets will be used.

Verified Physical Attack means deliberate physical harm of the **Insured Person** confirmed by documentation or physical evidence.

Verified Threat of Physical Attack means a threat against the **Insured Person's** health and safety as confirmed by documentation and/or physical evidence.

Exclusions

No benefits are payable under this endorsement for charges, fees or expenses:

1. payable under any other provision of, or endorsement to, the Policy to which this endorsement is attached;
2. that are recoverable through the **Insured Person's** employer;
3. arising from or attributable to an actual fraudulent, dishonest or criminal act committed or attempted by an **Insured Person**, acting along or in collusion with others;
4. arising from or attributable to an alleged fraudulent, dishonest or criminal act committed or attempted by an **Insured Person**, acting along or in collusion with others unless the **Designated Security Consultant** determines that such allegations were intentionally false, fraudulent and malicious and made solely to achieve a political, propaganda and/or coercive effect upon or at the expense of the **Insured Person**;

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5. due to the **Insured Person's** failure to maintain and possess duly authorized and issued required travel documents and visas;
6. arising from an **Occurrence** which took place in an **Excluded Country**;
7. for repatriation of remains expenses;
8. for common or endemic or epidemic diseases or global pandemic disease as defined by the World Health Organization;
9. for medical services;
10. for monies payable in the form of a ransom if a **Missing Person** case evolves into a kidnapping;
11. for consulting services other than by a **Designated Security Consultant** seeking information on **Missing Person** or kidnapping cases;
12. arising from or attributable, in whole or in part, to a debt, insolvency, commercial failure, the repossession of any property by any title holder or lien holder or any other financial cause;
13. arising from or attributable, in whole or in part to non-compliance by the **Insured Person** with regard to any obligation specified in a contract or license;
14. due to military or political issues if the **Insured Person's Security Evacuation** request is made more than 14 days after Appropriate Authority(ies) Advisory was issued.
15. due to a storm (wind, rain, snow, sleet, hail, lightning, dust or sand), earthquake, flood, volcanic eruption, wildfire or other similar event that:
 - a. is due to natural causes; and
 - b. results in such severe and widespread damage that the area of damage is officially declared a disaster area by the government of the **Host Country** and the area is deemed to be uninhabitable or dangerous.

ENDORSEMENT NO. 14

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

EMPLOYEE BUSINESS TRIP COVERAGE EXTENSION

This endorsement modifies insurance provided under the following:

FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART

PART ONE – EMPLOYEE INJURY BENEFIT INSURANCE (INCLUDING SUPPLEMENTAL REPATRIATION EXPENSE), Section A. **How This Insurance Applies**, is amended to define the term “employment-related **injury**” to include any **injury** arising out of activities necessary or incidental to employment within the **coverage territory** sustained during a **business trip**.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 15

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

FOREIGN COMMERCIAL PACKAGE POLICY

EXPLANATION OF ASSISTANCE SERVICES PROVIDED WITH YOUR POLICY

Assistance Services are provided with **your** policy as described below. These are provided as additional services in connection with the insurance provided under the following:

FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART

Covered Persons receive access to certain services of AIG Travel, as such services are described in an agreement on behalf of AIG Travel and **us**. Such access to services exists for so long as this Policy remains in force.

These services are provided only to **Covered Persons** as defined in "SECTION 3 - ADDITIONAL DEFINITIONS" of the STATED BENEFIT ENDORSEMENT other than **employees** who are **Local Hire or National**.

(Note that calls to AIG Travel for assistance services do not constitute notice of claims for coverage(s) under this policy or any other policy issued by us or others. These assistance calls are for handling of the additional services described below which are provided to you in connection with your insurance coverage.)

For informational purposes only, following is a summary of the applicable assistance services:

1. TRAVEL MEDICAL ASSISTANCE

- a. **Emergency Medical Evacuation Transportation Assistance:** In the event of a medical emergency to a **Covered Person**, AIG Travel's in-house medical staff will make a full evaluation. If a medical condition cannot be treated in a local facility, all necessary arrangements will be made to coordinate and arrange emergency medical transportation to the nearest most appropriate medical facility. Once stabilized and/or treated, arrangements are made to bring the applicable **Covered Person** home.
- b. **Physician / Dentist / Hospital / Vision Referral:** Contact information for local physicians, dentists, optometrists and/or hospitals/clinics will be provided to each **Covered Person** upon their request.
- c. **Repatriation of Mortal Remains:** In the event of death while traveling away from home, AIG Travel will make all necessary arrangements for the return of an applicable **Covered Person's** mortal remains, including compliance with local government regulations.
- d. **Return Travel Arrangements:** In the event of hospitalization of a **Covered Person**, arrangements will be made for unattended minors traveling with the **Covered Person** to be flown home.
- e. **Emergency Prescription Replacement:** If medications are lost or stolen, arrangements will be made to assist in obtaining new prescriptions and when legally permitted, shipment of prescription medication will be coordinated if medications cannot be obtained locally.

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By: Insurance Company Of the State of Pennsylvania

- f. **Dispatch of Doctor or Specialist:** If a **Covered Person** is injured or ill and unable to visit a doctor, AIG Travel will arrange for a medical phone consultation or a doctor visit when available.
- g. **Medical Evacuation Quote:** AIG Travel will contact air ambulance providers to confirm availability, obtain quotes for the service requested and assist in coordinating arrangements.
- h. **In Patient and Out Patient Medical Case Management:** AIG Travel's medical staff will monitor an applicable **Covered Person's** condition while such **Covered Person** is hospitalized away from home. Such monitoring will include telephone consultations with on-site physicians or the home physician, evaluation of medical data, and communication with such **Covered Person's** family. AIG Travel's medical staff will determine if proposed treatment conforms to generally accepted medical standards and may recommend alternative treatment methods and/or alternative treatment locations.
- i. **Qualified Liaison to Relay Medical Info to Families:** If the Covered Person is unable to communicate with their family, AIG Travel will facilitate communications.
- j. **Visitation Arrangements:** If a Covered Person is hospitalized, travel arrangements can be made for relatives or visitors to travel to the bedside.
- k. **Eyeglasses and Corrective Lens Replacement Assistance:** AIG Travel will locate a service provider to replace eyeglasses or corrective lenses that are lost, broken, or stolen.
- l. **Direct Billing to Medical Providers:** AIG Travel will coordinate with the medical provider to arrange direct billing when available.
- m. **Medical Cost Containment and Overseas Investigation:** AIG Travel will work with the medical service providers to achieve discounts and will audit medical expenses and pursue investigations if necessary.
- n. **Medical Bill Assessments:** AIG Travel will assess medical bills from **Covered Persons** upon request to ensure services provided are appropriate to the medical treatment needed and that charges are reasonable and customary.
- o. **Shipment of Medical Records:** AIG Travel will provide assistance in shipping needed medical records of **Covered Persons** to the emergency medical facility.
- p. **Medical Equipment Rental or Replacement:** AIG Travel will assist in locating a facility or provider to supply medical equipment to the **Covered Person** and will coordinate arrangements.
- q. **Insurance Claims Coordination:** In the event of a medical emergency, AIG Travel will coordinate claims as well as issues between an applicable **Covered Person's** insurance carrier and the emergency medical service provider, including guarantee of hospital admission fees or medical expense payments based on insurance or other financial security available to such **Covered Person**.

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2. EMERGENCY TRAVEL ASSISTANCE SERVICES: The following are available to **Covered Persons** for travel to and from locations related to the Business Operations described in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS of the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART when such travel is outside of the **Covered Person's** country of permanent assignment:

- a. **Flight Re-bookings:** AIG Travel will assist **Covered Persons** in re-booking flights in the event of a flight cancellation, delay or schedule change.
- b. **Hotel Re-bookings:** AIG Travel will assist **Covered Persons** in re-booking current reservations in the event of a flight cancellation, delay or schedule change.
- c. **Rental Vehicle Bookings:** AIG Travel will assist **Covered Persons** in booking car rentals.
- d. **Emergency Return Travel Arrangements:** In the event of an emergency, AIG Travel will assist with making hotel, flight, and car rental arrangements to return home.
- e. **Hotel Check In:** In the event of a travel delay, AIG Travel can assist a **Covered Person** in calling their hotel to guarantee a late arrival check in. AIG Travel can also assist with a hotel guarantee based on a personal source of funds when a **Covered Person** has a credit card stolen or lost.

3. WORLDWIDE TRAVEL ASSISTANCE SERVICES

- a. **Lost/Stolen Luggage and Personal Effects:** AIG Travel will assist with the return of lost luggage by coordinating efforts with the commercial carrier. In the event a **Covered Persons** personal effects are lost or stolen while traveling, AIG Travel will assist in the search. AIG Travel will coordinate efforts to get the lost luggage to the current destination or home.
- b. **Lost/Stolen Travel Documents/Travel Tickets:** If a **Covered Person's** travel documents (passport, visas, tickets, etc.) are lost or stolen, AIG Travel will assist such **Covered Person** in their efforts to replace such documents.
- c. **ATM Locations:** **Covered Persons** can receive assistance locating ATM locations worldwide that accept their credit card or other card requirements.
- d. **Emergency Cash Transfer Assistance:** AIG Travel can assist **Covered Persons** to obtain cash advances in local or US currency for medical emergencies or other travel needs. Advances are based on a personal source of funds.
- e. **Travel Documentation Information:** **Covered Persons** will be assisted with advice regarding passport/visa requirements, customs entry/exit restrictions and regulations, and can learn where to obtain necessary travel documents. AIG Travel will assist in expediting procurement of necessary documents.
- f. **Emergency Telephone Translation Assistance:** In emergency situations, multilingual counselors are available for telephone translation services in all major languages. Referrals are available to interpreter services.

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- g. **Emergency Message:** AIG Travel will assist with contacting family or business contacts in the event of an emergency situation while the **Covered Person** is traveling.
- h. **Travel Delay Reports:** AIG Travel will assist in providing up to date travel delay reports and information.
- i. **Worldwide Long Distance Calling Cards:** AIG Travel will provide assistance on the purchase of long distance calling cards for worldwide telephoning.
- j. **Immunizations:** AIG Travel will provide advice to **Covered Persons** regarding recommended immunizations for intended destinations or points of transit.
- k. **Embassy or Consulate Referral:** AIG Travel will provide addresses and phone numbers of local embassies or consulates to **Covered Persons** while they are traveling.
- l. **Currency Conversion or Purchase:** AIG Travel will provide foreign exchange rates and assist with the purchase of foreign currency.
- m. **Medical Advisory or Epidemic Updates:** AIG Travel will provide up to date information regarding local medical advisories, epidemics and available preventive measures in the desired location.
- n. **Travel Supplier Strike Information:** AIG Travel will provide up to date information regarding travel supplier strikes and potential impact on travel.
- o. **Legal Referrals and Bail Bond Assistance:** AIG Travel will provide a **Covered Person** with legal referrals in their general area.
- p. **Public Holiday Information:** AIG Travel will provide the **Covered Person** with local worldwide public holiday information for the desired location.

DISCLAIMER OF LIABILITY; INDEMNIFICATION AGREEMENT

Disclaimer of Liability: AIG Travel will attempt to refer **Covered Persons** to appropriate medical and other providers. However, such providers are independent providers, and neither AIG Travel, nor **us** are responsible for the suggestion of, or quality of services or advice rendered by, any such provider. Certain services may be provided by an independent third party vendor.

Services shall not be available once the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART or the STATED BENEFIT ENDORSEMENT is no longer in force. In the event the limits of this Policy are exhausted, AIG Travel, at its option, may provide services subject to the provision of a personal funding source.

By requesting assistance services, a **Covered Person** agrees to assign to AIG Travel such **Covered Person's** rights to recover from any other responsible insurer any expense AIG Travel pays or advances if such expense is not covered by the terms and conditions of this Policy.

ENDORSEMENT NO. 15

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*In all cases, the medical and other providers suggested by AIG Travel are not representatives, employees or agents of AIG Travel, or **us**, and the final selection of the medical and other providers is solely **our** and/or the applicable **Covered Person's** choice, provided that, if such choice contradicts the advice of the AIG Travel Medical Department, then such choice may void benefits that would otherwise be available under this Policy. Neither AIG Travel, or **us** shall have responsibility for the selection of, or any of the medical or other services or advice rendered by, the medical or other provider, and neither AIG Travel, nor **us** shall be liable for any negligent or other acts or omissions of any such provider. **Covered Persons** shall have no recourse against AIG Travel, or **us** with respect to any such entity's suggestion of or contract with a medical or other provider.*

Indemnification Agreement: *The first Named Insured understands that the individuals entitled to benefits under this Policy may receive certain services. Such services include those described above and will be provided by AIG Travel. The first Named Insured understands that certain of the services, including for example medical evacuation services, are available only in connection with evacuation necessary as a result of work-related injuries. Furthermore, the first Named Insured understands that in certain situations, including for example emergency situations, AIG Travel may provide certain services without knowledge of the fact that the corresponding injury may not be work-related, and the first Named Insured agrees to indemnify AIG Travel for any expenses incurred in any situation in which the corresponding injury is not work-related, or in the event the policy limit(s) is exceeded. Any indemnification payment owing under the previous sentence shall be due and payable within 15 days of such time as the first named insured is notified of the indemnification obligation, and an interest charge of 1.5% per month shall apply to any late payment.*

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 16

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEWLY ACQUIRED OR FORMED ORGANIZATIONS

This endorsement modifies insurance provided under the following:

FOREIGN WORKERS COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART

Subparagraph "B. Who Is Insured" " in the **GENERAL SECTION** of the **FOREIGN WORKERS COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART** is revised to include the following paragraph:

Any organization **you** acquire or form who is an employer, other than a partnership, joint venture or limited liability company, and over which **you** maintain more than 50% ownership interest and exercise management or financial control, is an insured if there is no other similar insurance available to that organization. However, coverage under this provision is afforded only until the 180 day after **you** acquire or form the organization or the end of the policy period, whichever is earlier.

(If no number is filled in above to designate the number of days, then "sixty (60)" shall be deemed to be inserted.)

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 17

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

STATED BENEFIT ENDORSEMENT

This endorsement modifies insurance provided under the following:

FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART

Words and phrases that appear in bold type print in this endorsement have special meaning as set forth in "PART SIX - DEFINITIONS" of the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART to which this endorsement is attached and in "SECTION 3 - ADDITIONAL DEFINITIONS" of this endorsement and in "SECTION II - COMMON DEFINITIONS" of the COMMON CONDITIONS AND DEFINITIONS.

GENERAL SECTION

Stated Benefit

a. We will pay the **Stated Benefit** to the **Covered Person** (or, in the event of death, to the **Covered Person's** beneficiary) if that **Covered Person** suffers a loss covered under this endorsement arising from an **Injury**. The Principal Sum Amount applicable to each **Covered Person** is set out in the **schedule**.

The Stated Benefit we pay per this endorsement is separate from and in addition to benefit, where applicable, we pay per the Employment Injury Benefit under this coverage part.

Repatriation of Remains

b. We will also pay a benefit not to exceed \$20,000 per person for covered expenses reasonably incurred resulting from an accident in the **Coverage Territory**, for the return of the body of a **Covered Person**, to such **Covered Person's** country of citizenship, hire or permanent residence, if such person dies from bodily injury or disease not deemed compensable under Part One - Employee Injury Benefit Insurance (including Supplemental Repatriation). All repatriation of remains arrangements must be approved by us.

SECTION 2 - STATED BENEFIT SCHEDULE

Principal Sum Amount:

Classification of Employee:	Principal Sum Amount (each Covered Person)
U.S. Employee	\$50,000
U.S. Employee Traveler	\$50,000
Canadian Employee	\$50,000
Canadian Employee Traveler	\$50,000
Third Country National	\$25,000

Aggregate Limit Any One Accident: \$ 500,000.

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If **Injury** to a **Covered Person** results, within 365 days of the date of the accident that caused the **Injury**, in that a **Covered Person** suffering any one of the losses specified in the table below, the **Stated Benefit we** will pay will be based upon the indicated percentage of the Principal Sum Amount shown in the table below for that loss:

Stated Benefit Table	
For Loss of:	percentage of Principal Sum Amount payable
• Life	100%
• Both Hands or Both Feet	100%
• Sight of Both Eyes	100%
• One Hand and One Foot	100%
• One Hand and the Sight of One Eye	100%
• One Foot and the Sight of One Eye	100%
• Speech and Hearing in Both Ears	100%
• One Hand or One Foot	50%
• Sight of One Eye	50%
• Speech or Hearing in Both Ears	50%
• Hearing in One Ear	25%
• Thumb and Index Finger of Same Hand	25%

- Loss of a hand or foot means complete severance through or above the wrist or ankle joint.
- Loss of sight of an eye means total and irrecoverable loss of the entire sight in that eye.
- Loss of hearing in an ear means total and irrecoverable loss of the entire ability to hear in that ear.
- Loss of speech means total and irrecoverable loss of the entire ability to speak.
- Loss of thumb and index finger means complete severance through or above the metacarpophalangeal joint of both digits.

If more than one loss is sustained by a **Covered Person** as a result of the same accident, only one amount, the largest, will be paid.

Benefit - Immediate Family member

Following an **Injury** to a **Covered Person**, we will pay, upon the prior approval of Travel Guard, expenses reasonably incurred up to the maximum of \$5000 to return to their current place of primary residence the **Immediate Family Member**, with an attendant for the **Immediate Family Member** if necessary; but not to exceed the cost per person of a single one-way economy airfare ticket less the value of applied credit from any unused return travel tickets; and subject to a per person maximum of \$1500; and subject to the Aggregate Limit any One Accident when combined with a **Stated Benefit** payable to a **Covered Person**.

SECTION 3 - ADDITIONAL DEFINITIONS

The following additional definitions apply solely to this STATED BENEFIT ENDORSEMENT:

1. **Stated Benefit** means the amount payable for a loss listed in the Stated Benefit Table.

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2. **Covered Person** means **your employee** who is a member of a **Classification of Employee**, other than **Local Hire or National**, and is covered by indicating a benefit in the column "Part One - Employee Injury Benefit Insurance" in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY INSURANCE COVERAGE PART SCHEDULE OF COVERAGES AND LIMITS while such person's coverage under this endorsement is in force.
3. **Immediate Family - Member** means a person who is related to the **Covered Person** in any of the following ways: spouse, brother-in-law, sister-in-law, son-in-law, daughter-in-law, mother-in-law, father-in-law, parent (includes stepparent), brother or sister (includes stepbrother or stepsister), or child (includes legally adopted or stepchild).
4. **Injury** means an injury to the body: (1) which is sustained as a direct result of an unintended, unanticipated accident that is external to the body and that occurs while the injured **Covered Person's** coverage under this endorsement is in force; and (2) which directly (independent of sickness, disease, mental incapacity, bodily infirmity or any other cause) causes a loss covered under this endorsement. No other definition of injury, bodily injury or Bodily Injury by accident in the policy applies to this STATED BENEFIT ENDORSEMENT.
5. **Physician** means a licensed practitioner of the healing arts acting within the scope of his or her license who is not: (1) the **Covered Person**; (2) an **Immediate Family Member**; or (3) retained by the Named Insured.
6. **Schedule** means "SECTION 2 - STATED BENEFIT SCHEDULE" of this endorsement.

SECTION 4 - EXCLUSIONS

The following exclusions apply only with respect to this STATED BENEFIT ENDORSEMENT:

1. No coverage shall be provided under this endorsement and no payment shall be made for any loss resulting in whole or in part from, or contributed to by, or as a natural and probable consequence of any of the following excluded risks even if the proximate or precipitating cause of the loss is an accidental bodily injury:
 - A. Suicide or any attempt at suicide or intentionally self-inflicted Injury or any attempt at intentionally self-inflicted Injury or any act of autoeroticism.
 - B. Sickness or disease, or mental incapacity or bodily infirmity whether the loss results directly or indirectly from any of these.
 - C. The **Covered Person's** commission of or attempt to commit a crime.
 - D. Infections of any kind regardless of how contracted, except bacterial infections that are directly caused by botulism, ptomaine poisoning or an accidental cut or wound independent and in the absence of any underlying sickness, disease or condition including but not limited to diabetes.

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- E. Full-time active duty in the armed forces, National Guard or organized reserve corps of any country or international authority (Loss caused while on short-term National Guard or reserve duty for regularly scheduled training purposes is not excluded).
- F. The **Covered Person** being under the influence of intoxicants.
- G. The **Covered Person** being under the influence of drugs unless taken under the advice of and as specified by a **Physician**.
- H. Stroke or cerebrovascular accident or event; cardiovascular accident or event; myocardial infarction or heart attack; coronary thrombosis; aneurysm.
- I. The **Covered Person** riding in or driving any type of motor vehicle as part of a speed contest or scheduled race, including testing such vehicle on a track, speedway or proving ground.
- J. Death of **Covered Person** occurs while the **Covered Person** is on vacation for more than 14 days.
- K. Expenses incurred upon return to the territorial limits of the **Covered Person's** country of domicile.

SECTION 5 - LIMITS OF INSURANCE

The maximum amount payable for the **Stated Benefit** due to a loss from an **Injury** to any one **Covered Person** is limited to the Principal Sum Amount shown in the **schedule** as adjusted by the applicable percentage of the Principal Sum Amount listed in the Stated Benefit Table in "SECTION 2 - STATED BENEFIT SCHEDULE."

The **Stated Benefit** may be reduced if more than one **Covered Person** suffers a loss as a result of the same accident. The maximum amount payable for all such losses for all **Covered Persons** will not exceed the amount set forth as the Aggregate Limit any One Accident shown in the **schedule**. If the combined maximum amount otherwise payable for all **Covered Persons** must be reduced to comply with this provision, the reduction will be taken by applying the same percentage of reduction to the individual maximum amount otherwise payable for each **Covered Person** for all such losses.

SECTION 6 - CONDITIONS

The following conditions apply solely with respect to this STATED BENEFIT ENDORSEMENT:

1. **Covered Person's Effective Date**

A **Covered Person's** Stated Benefit coverage under this endorsement begins on the latest of: (1) the effective date of this endorsement; or (2) the date the person becomes a member of a covered **Classification of Employee**.

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2. Covered Person Termination Date

A **Covered Person's** Stated Benefit coverage under this endorsement ends on the earliest of: (1) the date the policy is terminated; (2) the date the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART is terminated; (3) the date coverage under this endorsement is terminated; (4) the date the **Covered Person** ceases to be a member of a covered **Classification of Employee**. Termination of coverage will not affect a claim for a covered loss that occurred while the **Covered Person's** coverage under Stated Benefit Endorsement was in force.

3. Stated Benefit Claims Provisions

The following claims provisions apply solely with respect to coverage under this STATED BENEFIT ENDORSEMENT and supersedes any contrary provisions in the FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART:

A. Notice of Stated Benefit Claim

Written notice of a claim for **Stated Benefit** must be given to **us** within 30 days after a **Covered Person's** loss, or as soon thereafter as reasonably possible. Notice given by or on behalf of the claimant to **us** as stated in the "YOUR DUTIES IF INJURY OCCURS" with information sufficient to identify the **Covered Person**, is deemed notice to **us**.

B. Claim Forms

We will send claim forms to the claimant upon receipt of a written notice of claim. If such forms are not sent within 15 days after the giving of notice of a claim, the claimant will be deemed to have met the proof of loss requirements upon submitting, within the time fixed herein for filing proof of loss, written proof covering the occurrence, the character and the extent of the loss for which claim is made. The notice should include the **Covered Person's** name, the Named Insured's name and the Policy number.

C. Proof of Loss

Written proof of loss must be furnished to **us** within 90 days after the date of the loss. Failure to furnish proof within the time required neither invalidates nor reduces any claim if it was not reasonably possible to give proof within such time, provided such proof is furnished as soon as reasonably possible and in no event, except in the absence of legal capacity of the claimant, later than one year from the time proof is otherwise required.

D. Payment of Claims/Beneficiary

Upon receipt of due written proof of death, payment for loss of life of a **Covered Person** will be made, in equal shares, to the survivors in the first surviving class of those that follow: the **Covered Person's** (1) spouse; (2) children; (3) parents; or (4) brothers and sisters. If no class has a survivor, the beneficiary is the **Covered Person's** estate.

Upon receipt of due written proof of loss, payments for all losses, except loss of life, will be made to (or on behalf of, if applicable) the **Covered Person** suffering the loss. If a **Covered Person** dies before all payments due have been made, the amount still payable will be paid as described above for loss of life.

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Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

If any payee is a minor or is not competent to give a valid release for the payment, the payment will be made to the legal guardian of the payee's property. If the payee has no legal guardian for his or her property, a payment not exceeding \$1,000 may be made, at **our** option, to any relative by blood or connection by marriage of the payee, who, in **our** opinion, has assumed the custody and support of the minor or responsibility for the incompetent person's affairs.

Any payment we make in good faith fully discharges **our** liability to the extent of the payment made.

E. **Physical Examination and Autopsy.**

We at **our** own expense have the right and opportunity to examine the person of any individual whose loss is the basis of claim hereunder when and as often as **we** may reasonably require during the pendency of the claim and to make an autopsy in case of death where it is not forbidden by law.

All other terms, conditions, and exclusions shall remain unchanged.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 18

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOREIGN COMMERCIAL PACKAGE POLICY

TERRORISM EXCLUSION DELETED - EMPLOYERS LIABILITY

This endorsement modifies insurance provided under the following:

FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART

In regard to any covered **Classification of Employee** who is a **U.S. Employee, U.S. Employee Traveler, Canadian Employee, Canadian Traveler or Third Country National**, paragraph 4 of D. Exclusions in **PART TWO - EMPLOYERS LIABILITY INSURANCE** is deleted.

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT NO. 19

This endorsement, effective 12:01 A.M., January 28, 2026

Forms a part of Policy No.: WS11014566

Issued to: PARTNERS OF THE AMERICAS INC

By: Insurance Company Of the State of Pennsylvania

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WAR EXCLUSION REVISED - DESIGNATED COUNTRIES ONLY - EMPLOYERS LIABILITY

This endorsement modifies insurance provided under the following:

FOREIGN VOLUNTARY COMPENSATION AND EMPLOYERS LIABILITY COVERAGE PART

PART TWO - EMPLOYERS LIABILITY INSURANCE, D. Exclusions, 3. is deleted in its entirety and replaced with the following:

3. **Injury**, damages, claim or **suit** for any consequence, whether direct or indirect, proximately or remotely, occasioned by or contributed to by **war** to **employees**:
 - a. Categorized as **Local Hire or National** anywhere in the **Coverage Territory**; and
 - b. Categorized as **U.S. Employee Traveler, Canadian Employee Traveler, U.S. Employee, Canadian Employee or Third Country National** in the following countries or jurisdictions:
 - i. Republic of Belarus;
 - ii. The Russian Federation (as recognized by the United Nations) or their territories, including territorial waters, or protectorates where they have legal control (legal control shall mean where recognized by the United Nations); and
 - iii. Ukraine (in accordance with the borders established as of the 1991 Declaration of Independence, including the Crimean Peninsula and the Donetsk and Luhansk regions); and
 - iv. Afghanistan, Democratic Republic of the Congo, Iraq, Libya, Myanmar, Somalia, South Sudan, Syria, Yemen

All other terms, conditions, and exclusions shall remain the same.



AUTHORIZED REPRESENTATIVE



Travel Guard®

WorldRisk Assistance Card

Name of Insured Organization

PARTNERS OF THE AMERICAS INC

Policy Number:

WS11014566

Please note this is not a credit card or medical insurance card

Call AIG Travel, when you are traveling outside the USA and Canada on a trip sponsored by the insured organization and you need help finding or arranging services such as:

- > Medical Assistance and Travel Medical Emergency Services
- > Personal and Pre-Trip Services
- > Legal Assistance
- > Emergency Cash - From Personal Funding Source
- > Lost Baggage or Passport Assistance
- > Insurance Coordination
- > Evacuation and Repatriation
- > Emergency Message Center
- > Other General Assistance

AIG Travel can be reached collect at +1 (817) 826-7008 or within the U.S. or Canada, call (800) 401-2678.

To access your 24/7 travel assistance website, visit www.aig.com/us/casualty/travelguardassistance or download the AIG Travel Assistance app to your Apple or Android smartphone

The availability of services is subject to the terms and conditions of the policy to the insured. All products are written by insurance company subsidiaries or affiliates of American International Group, Inc.

AIG Travel, Inc., a member of American International Group, Inc., is a worldwide leader in travel insurance and global assistance. Travel Guard® is the marketing name for its portfolio of travel insurance and travel-related services, including medical and security services, marketed to both leisure and business travelers around the globe. Services are provided through a network of wholly owned service centers located in Asia, Europe and the Americas.

In all cases, the medical professional, medical facility and/or attorney suggested by AIG Travel to the eligible person pursuant to the Service Agreement (Agreement) are not employees or agents of AIG Travel, and the final selection of the medical professional, medical facility and/or legal counsel is the insured's choice. AIG Travel assumes no responsibility for any medical advice and/or legal counsel given by the medical professional, medical facility and/or attorney, nor shall AIG Travel be liable for the negligence or other wrongful acts or omissions of any of the legal and/or health care professionals providing direct service pursuant to the Agreement. The insured shall not have any recourse against AIG Travel by reason of its suggestion of, or contact with, a medical professional, medical facility and/or attorney.

AIG Travel makes every effort to refer the insured to the appropriate providers and is not responsible for the quality of results provided. Services shall not be available if the insurance policy or specific coverage is no longer in effect or the policy limit has been exhausted. By requesting assistance, the insured agrees to assign AIG Travel the right to recover any incurred expenses from any of the insured's responsible insurers.

93640 AMS 06/18



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